PAYMENT ADVICE

Customer	Charlie Harrison
Invoice Number	INV-1475
Amount Due	**5,490.99**
Due Date	13 Aug 2022
Amount Enclosed	_____
	Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Gina REGALI
Occupation	Full time carer
Address	Known to National Disability Insurance Scheme (NDIS)
Date	11 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Gina REGALI.

3. My residential address is known to the National Disability Insurance Scheme.

4. I am the mother of Angelus Regali-Park (Angel) and Indiana Regali-Park. Both of my sons are participants in the NDIS. The boys live with me in the family home. Angels NDIS plan is plan managed through Manage Mode. My contact there is Tim.

5. On 11 October 2022, I had a conversation with NDIA Investigator James LANE regarding concerns about claims that have been made against Angel's and Indiana's plan by service provider Forward Focus Group. I make this statement to record my dealings with Forward Focus Group.

6. Angel is a twenty-year-old boy who has been diagnosed with autism and has strict dietary requirements. He is also visually impaired being diagnosed with Erlands which effects his ability to see in bright light.

7. I started dealing with Forward Focussed Group as they were recommended to me by the NDIS because they were in Armadale where we live. I can't remember who I

Signature ..... Witness .....

spoke to but after I got the name, I contacted them by Phone. I spoke to a man who identified himself as Blake. He is the main person I have spoken to from the Forward Focus Group. I have also spoken with a woman named Sally when Blake was on leave.

8. Angel and I met with Blake at their office. At this time Blake completed some document on the tablet with Angel's details and then Angel to digitally sign it. I wanted to read the document and requested a hard copy. Blake advised me that it would be sent to me, but it never was.

9. We had a second meeting with Blake at their office and same as before, Blake completed some kind of computer-generated document and got Angel to sign it digitally. I asked for a hard copy and again he said it would be sent to me, but it never was.

10. Despite all the promises made to me they could provide the support that Angel needs, Forward Focussed Group did nothing that we asked for.

11. Both Angel and Indiana were taken out by Forward Focused Group on a boat cruise on the Swan River on New Year's Eve on December 2021. Prior to them going, I was assured by Blake that there would be a support worker on board the boat to look after Angel and Indiana. Blake told me the cruise would cost about $6000 each and I asked where the money would come from. Blake and Sally both told me Angel and Indiana have spare money in their plans. That sounded a bit off to me but they told me it wouldn't interfere with any of the other supports they had in place.

12. After Angel and Indiana went on the cruise, they told me there was no support worker and that the adults just got drunk. Blake was aware of Angel's dietary requirements and yet there was no food available for him to eat, so he ate nothing, and the cruise went for 5 hours.

13. I later became aware that Forward Focused group had claimed against Angel's plan for taking him on the cruise. I sent an email to Blake at forward focus group looking for an explanation. My emails went unanswered.

14. On 5 January 2022, I received an email from Tim from Management Mode with an attached invoice from "The Hive". I had never heard of The Hive or Hybrid Hive and I was told that The Hive was a supplier for Forward Focused Group. I can say that the services claimed on the invoice never happened. I contacted Sally by Email and she never got back to me.

EXHIBIT: I NOW PRODUCE GR01: AN INVOICE FROM THE HIVE DATED 24 DECEMBER 2021. DESCRIBED AS 2 PAGES.

15. On 14 January 2022, I sent an email to Blake with an attached monthly statement from Manage mode which records the claims made against Angel's plan and requested an explanation of what had been claimed. I did this because Angel did not at any time receive any services from anybody from Forward Focus Group. What we got from them was Zero. Blake did not respond.

EXHIBIT: I NOW PRODUCE GR02: A 3 PAGE MONTHLY ACTIVITY STATEMENT FROM MANAGEMENT MODE FOR THE PERIOD OF 5 DECEMBER 2021 TO 4 JANUARY 2022 IN RELATION TO THE ABOVE.

16. On 20 January 2022, I received an email from Tim at Manage Mode with an attached invoice dated 3 January 2022, from Forward Focused Group for two days of Short Term Accommodation. This did not happen, no one has ever taken Angel from home for any length of time and it certainly didn't happen on New Year's Day or the next day. It just didn't happen.

EXHIBIT: I NOW PRODUCE GR03: AN INVOICE FROM THE HIVE DATED THE 3 JANUARY 2022 RELATING TO THE ABOVE OF 1 PAGE.

17. On 25 January 2022, I received an email from Tim at Manage Mode with an attached invoice dated 25 January 2022, from Forward Focused Group claiming for services for Angel. These services were self-management capacity building and support coordination. There were no supports to coordinate because there were no services. There were no services for self-management Capacity building. On 27 January 2022, I received a text from Blake telling me that "I believe the accounts

team was changing the invoices and fixing it and maybe sending a new one for confirmation' and a further text saying they were 'changing the dates on the December Hive invoice'.

EXHIBIT: I NOW PRODUCE GR04: AN INVOICE FROM FORWARD FOCUSED GROUP DATED THE 25 JANUARY 2022 RELATING TO THE ABOVE OF 1 PAGE.

18. On 29 January 2022, I received an email from Tim at Management Mode asking if I had approved the payment of the invoice for services on the first and second of January. Attached to that message was an email from Rejaul Alam, Manager Accounts and Finance at Forward Focused Group advising that "we have been advised by the participants have approved the invoice".

EXHIBIT: I NOW PRODUCE GR05: AN EMAIL FROM TIM AT MANAGEMENT MODE RELATING TO THE ABOVE CONSISTING OF 9 PAGES.

19. I was never contacted by Forward Focused Group about approving the invoices and I did not give any approval to have the invoice paid.

20. After this fiasco I took steps in early February 2022 to get my boys well away from Forward Focused Group. I had nothing to do with them since.

21. James LANE asked me about two claims on Indiana's plan made by Forward Focused Group on 24 June 2022. $3431.46 was claimed for 67.9 hours for House Cleaning And Other Household Activities which was said to be provided on 1 January 2022 and asked me to comment.

22. Nobody came to clean my house and it just didn't happen. I never received any cleaning from Forward Focused Group.

23. To assist my statement, I refreshed my memory from my emails and documents regarding Angel and Indiana.

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Gina REGALI

Statement taken and signature witnessed by me about 12:00pm on 11 October 2022 at Armadale in Western Australia.

Signature _____
James LANE
Investigator
Armadale WA

THE HIVE

TAX INVOICE

Angelus Regali-Park

Invoice Date
24 Dec 2021

Invoice Number
INV-0116

Reference
NDIS 431035309

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime 01/12/2021 - 03/12/2021	4.75	57.10	GST Free	271.23
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 07/12/2021	2.00	57.10	GST Free	114.20
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 08/12/2021 - 10/12/2021	5.50	57.10	GST Free	314.05
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 13/12/2021	3.25	57.10	GST Free	185.58
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 15/12/2021	1.50	57.10	GST Free	85.65
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 17/12/2021	2.75	57.10	GST Free	157.03
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 20/12/2021 - 21/12/2021	2.30	57.10	GST Free	131.33
				Subtotal	1,259.07
				TOTAL AUD	1,259.07

Due Date: 30 Dec 2021
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Angelus Regali-Park
Invoice Number	INV-0116
Amount Due	1,259.07
Due Date	30 Dec 2021
Amount Enclosed	

Enter the amount you are paying above

To: Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

GR02 PAGE 1 OF 3

Manage Mode
NDIS Plan Managers

Monthly NDIS Activity Statement
05 December 2021 - 04 January 2022

05 January 2022

Angelus Regali-Park
7 SCOTIA PL
ARMADALE WA 6112

Dear Angelus,

This is your NDIS Activity Statement for the period of **05 December to 04 January** for your NDIS Plan dated 23/08/2021 to 23/08/2023.

Please review the below information and if you have any questions, please do not hesitate to contact us by phone or email.

Please note that the figures below may not reflect a complete view of your NDIS plan or a complete view of your monthly and total payments due to the following:

- Some NDIS Support Areas may be paid directly by NDIS or paid directly by participant;
- The service may have been provided in a previous month, but not claimed until this month; and/or;
- The service may have been provided during the month, but the provider has not yet issued an invoice for the service.

Regards

Manage Mode
Manage Mode
invoices@managemode.com.au

Support Area: Core Budget

Budget: $15,992.00 — Balance as at 05 Dec 2021 — $13,810.65

Assistance with daily life (includes Supported Independent Living)

Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
13 Dec 2021	NDIS-835-1	13 Dec 2021	Forward Focused Group	01_134_0117_8_1	Self-Management Capacity Building	$65.09

Assistance with social and community participation

Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
24 Dec 2021	INV-0116	01 Dec 2021 to 21 Dec 2021	The Hive	04_104_0125_6_1	Access Community Social And Rec Activities - Weekday Daytime	$1,259.06
24 Dec 2021	INV-0116	01 Dec 2021 to 21 Dec 2021	The Hive	04_104_0125_6_1	Access Community Social And Rec Activities - Weekday Daytime	$0.01
09 Dec 2021	2156-015	22 Nov 2021 to 05 Dec 2021	Directions Disability Support Services	04_112_0136_6_1_T	Group Activities In The Community - 1:2 - Standard - Saturday - TTP	$187.48
24 Dec 2021	2167-010	18 Dec 2021	Directions Disability Support Services	04_112_0136_6_1_T	Group Activities In The Community - 1:2 - Standard - Saturday - TTP	$187.48

Consumables

No transactions

Balance as at 04 Jan 2022 — $12,111.53

Support Area: Improved life choices

Budget: $2,739.15 — Balance as at 05 Dec 2021 — $2,089.00

Improved life choices

Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
04 Jan 2022	INV-0997	04 Jan 2022	Manage Mode	14_034_0127_8_3	Plan Management - Financial Administration	$104.45

Balance as at 04 Jan 2022 — $1,984.55

Support Area: Improved daily living skills

Budget: $27,158.60 — Balance as at 05 Dec 2021 — $24,303.60

Improved daily living skills						
Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
10 Dec 2021	I020257	10 Dec 2021	Down South Therapy Services	15_053_0128_1_3	Therapy Assistant - Level 2	$108.49
14 Dec 2021	I020545	14 Dec 2021	Down South Therapy Services	15_056_0128_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy	$180.00
					Balance as at 04 Jan 2022	$24,015.11

Support Area: Coordination of Supports

Budget: $2,403.36 — Balance as at 05 Dec 2021 $2,027.83

Coordination of Supports						
Invoice Date	Invoice Number	Service Date	Provider	NDIS Reference	Description	Amount
13 Dec 2021	NDIS-835-1	13 Dec 2021	Forward Focused Group	07_002_0106_8_3	Level 2: Coordination Of Supports	$250.35
					Balance as at 04 Jan 2022	$1,777.48

Support Area: Finding and keeping a job

Budget: $22,789.44 — Balance as at 05 Dec 2021 $22,789.44

Finding and keeping a job						
No transactions						
					Balance as at 04 Jan 2022	$22,789.44

GR03

T34

TAX INVOICE

Angelus Regali-Park
7 Scotia Pl
ARMADALE WA 6112
AUSTRALIA

Invoice Date
3 Jan 2022

Invoice Number
INV-0557

Reference
NDIS 431035309

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_061_0115_1_1	STA & Assistance (Inc. Respite) - 1:1 Public Holiday - New Year's Day - 01/01/2022	1.00	3,458.93	GST Free	3,458.93
01_060_0115_1_1	STA And Assistance (Inc. Respite) - 1:1 - Sunday - 02/01/2022	1.00	2,782.77	GST Free	2,782.77
				Subtotal	6,241.70
				TOTAL AUD	6,241.70

Due Date: 10 Jan 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Angelus Regali-Park
Invoice Number	INV-0557
Amount Due	6,241.70
Due Date	10 Jan 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

GR04 PAGE 1 OF 1 **T34**

FORWARD FOCUSED
YOU ARE OUR FOCUS

TAX INVOICE

Angelus Regali-Park
7 Scotia Pl
ARMADALE WA 6112
AUSTRALIA

Invoice Date
25 Jan 2022

Invoice Number
NDIS-1136-1

Reference
NDIS 431035309

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
07_002_0106_8_3	Level 2: Coordination Of Supports - 18/01/2022	0.50	100.14	GST Free	50.07
07_002_0106_8_3	Level 2: Coordination Of Supports - 19/01/2022	1.00	100.14	GST Free	100.14
01_134_0117_8_1	Self-Management Capacity Building - 20/01/2022	0.50	65.09	GST Free	32.55
01_134_0117_8_1	Self-Management Capacity Building - 25/01/2022	0.50	65.09	GST Free	32.55
				Subtotal	215.31
				TOTAL AUD	**215.31**

Due Date: 31 Jan 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Angelus Regali-Park
Invoice Number	NDIS-1136-1
Amount Due	215.31
Due Date	31 Jan 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Lane, James

From: Tiaki Regali <tiakiregali@gmail.com>
Sent: Friday, 23 September 2022 4:09 PM
To: Holder, Raymond
Subject: Fwd: FW: N. YE Cruise / Respite
Attachments: image004.jpg

You don't often get email from tiakiregali@gmail.com. Learn why this is important

---------- Forwarded message ---------
From: **Tim Edwards** <tim@managemode.com.au>
Date: Fri, 28 Jan. 2022, 4:07 pm
Subject: FW: N. YE Cruise / Respite
To: Tiaki Regali <tiakiregali@gmail.com>

Hi Gina,

Hope you are well.

Rejaul has advised below that you have approved the respite invoice on 01st to 02nd of January? Is this correct?

Kind Regards,



Tim Edwards | Plan Manager

Manage Mode

e: tim@managemode.com.au

p: (08) 6115 6388

a: 1 Prowse Street, West Perth WA 6005

w: www.managemode.com.au

From: Rejaul Alam <rejaul.a@ffg.net.au>
Sent: Friday, 28 January 2022 1:26 PM

T34

To: Tim Edwards <tim@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>; Vida Reid <vida@ffg.net.au>; Jarrod Chitiz <jarrod@managemode.com.au>; Marc Eadie <marc@managemode.com.au>
Subject: RE: N. YE Cruise / Respite
Importance: High

Hi Tim,

Hope you are well.

I am following up on my previous email.

We have been advised by the participants that they have approved the invoices.

Could you please advise an ETA on the payments please.

Thank you,

Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478895054

E rejaul.a@ffg.net.au
W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

From: Rejaul Alam
Sent: Thursday, 20 January 2022 9:57 AM
To: Tim Edwards <tim@managemode.com.au>; Marc Eadie <marc@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>; Vida Reid <vida@ffg.net.au>
Subject: RE: N. YE Cruise / Respite

Hi Tim,

Thank you for your email.

Please advise payments once approved by the participants.

Have a great day.

Thank you,

Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478895054

E rejaul.a@ffg.net.au
W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

From: Tim Edwards <tim@managemode.com.au>
Sent: Thursday, 20 January 2022 9:36 AM
To: Rejaul Alam <rejaul.a@ffg.net.au>; Marc Eadie <marc@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>
Subject: RE: NYE Cruise / Respite

Hi Rejaul,

Thanks for your email.

I recall the conversation in question and Vida suggested that this could be charged as respite as it was 48 hours care with 2 nights accommodation, I did not suggest this. This conversation was also why I was so confused when FFG were chasing invoices for both the 04_210_0125_6_1 invoices AND the respite. Anyhow, this is clear now. We will send the two invoices in question through to the participant / nominee for approval after which we will pay.

Kind Regards,

Tim Edwards | Plan Manager

Manage Mode

e: tim@managemode.com.au

p: (08) 6115 6388

a: 1 Prowse Street, West Perth WA 6005

w: www.managemode.com.au

From: Rejaul Alam <rejaul.a@ffg.net.au>
Sent: Wednesday, 19 January 2022 4:17 PM
To: Tim Edwards <tim@managemode.com.au>; Marc Eadie <marc@managemode.com.au>
Cc: Danica H <danica.h@ffg.net.au>
Subject: RE: NYE Cruise / Respite

T34

Hi Tim,

Thank you for your response. @Marc Eadie thank you for your time on the phone.

So we are all on the same page- the only invoices we are seeking payment for are the Respite invoices.

This is to say,

- Payment needed for INV-0557 and INV-0554
- Please Ignore INV-0515 and INV-0547

Clarification : I recall our conversation between myself, Vida and Tim on the 24th of December. Time advised that Manage mode needed the agency clarification to pay for any invoices on 04_210_0125_6_1. We were advised to charge for the respite for prompt payments as the participants were provided respite for two days.

I hope that clarifies your query.

Please feel free to reach out if you need further assistance.

Thank you,

Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478895054

E rejaul.a@ffg.net.au
W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

T34

From: Tim Edwards <tim@managemode.com.au>
Sent: Wednesday, 19 January 2022 3:59 PM
To: Rejaul Alam <rejaul.a@ffg.net.au>
Cc: Marc Eadie <marc@managemode.com.au>
Subject: FW: NYE Cruise / Respite

Hi Rejaul,

Thanks for your email.

Jarrod doesn't recall mentioning I would call you back, hence why he didn't relay to me and this wasn't done.

Regardless, we would appreciate a written response on this one, happy to take a call post that to discuss. I sent the attached which we have yet to hear back on.

Kind Regards,

Tim Edwards | Plan Manager

Manage Mode

e: tim@managemode.com.au

p: (08) 6115 6388

a: 1 Prowse Street, West Perth WA 6005

w: www.managemode.com.au

T34

From: Marc Eadie <marc@managemode.com.au>
Sent: Wednesday, 19 January 2022 1:16 PM
To: Tim Edwards <tim@managemode.com.au>
Subject: Fwd: NYE Cruise / Respite

a: Manage Mode Pty Ltd

e: marc@managemode.com.au

w: www.managemode.com.au

t: (08) 6115 6388

From: Rejaul Alam <rejaul.a@ffg.net.au>
Sent: Wednesday, January 19, 2022 12:28:29 PM
To: Marc Eadie <marc@managemode.com.au>
Cc: Jarrod Chitiz <jarrod@managemode.com.au>; Vida Reid <vida@ffg.net.au>; Danica H <danica.h@ffg.net.au>; Virginie Fanny-Dullo <virginie.f-d@ffg.net.au>
Subject: RE: NYE Cruise / Respite

Hi Merc,

I rang your office twice over the last week to discuss these invoices. I had a chat with Jarrod on Friday and he advised that Tim looking after our invoices and will call me back. I am still awaiting call back from Tim.

Please call me back and I will go through the invoices with you, Tim or your team.

Thank you,

T34

Rejaul Alam
Manager – Accounts & Finance at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 M 0478895054

E rejaul.a@ffg.net.au
W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

From: Marc Eadie <marc@managemode.com.au>
Sent: Tuesday, 4 January 2022 4:33 PM
To: Vida Reid <vida@ffg.net.au>; Rejaul Alam <rejaul.a@ffg.net.au>
Cc: Jarrod Chitiz <jarrod@managemode.com.au>
Subject: NYE Cruise / Respite
Importance: High

Hi Vida and Rejaul,

FFG has sent some conflicting invoices, where it appears the new claim is for respite rather than the event (or perhaps a combination, however the dates are interlapping regardless). For example invoice INV-0547 appears to have been superseded by INV-0557?

As such I am uncertain as to what the current claims are as no credit notes have been provided that I am aware of.

For the participants we manage that may be involved with the event, can you please resend the applicable invoices and provide credit notes for the cancelled/original invoices.

I believe they are Angelus Regali-Park, Madeleine Robinson, James Loh. If there are others please send through the relevant invoices as well.

We can then assess the correct claims.

Kind regards,

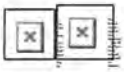


Marc Eadie | Plan Manager

Manage Mode

e: marc@managemode.com.au

p: (08) 6115 6388



a: 1 Prowse Street, West Perth WA 6005

w: www.managemode.com.au

Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Bassam Abau Haidar
Occupation	Retiree
Address	Known to National Disability Insurance Scheme (NDIS)
Date	14 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Bassam Abau Haidar. I prefer to be called Sam. I am 65 years of age.
3. My residential address is known to the National Disability Insurance Agency (NDIA).

4. I have medically diagnosed with physical disorders. Due to the disability caused by polio, I have received benefits from the Australian Government through NDIS since 2020. My NDIS Participant number is 431524488.
5. I know Vida Reid (REID). I am aware she is the director of a provider business called Forward Focus Group (FFG). REID has provided support services to me from about a year ago. I do not use her for services anymore.
6. I am also aware she has another provider businesses called Hybrid Hive (HH). I thought I was getting services from FFG up until I received an invoice from HH.
7. I signed a service agreement with FFG when I first started with them. I don't remember if I was given a copy. I don't remember ever having a service agreement with HH.
8. As REID is an unregistered provider, I am aware the invoices for her services are put though a Plan Management Agency called National Disability Support Partners (NDSP).

Signature

Witness

9. I recall receiving monthly statements from NDSP for the services claimed by REID.
10. The services provided by REID and her companies included I needed a wheelchair which I received in the end, a few times they made a phone call on my behalf, I only saw Vida once or twice, the first time when I signed the agreement and their may have been a second time. The main person I dealt with regularly was a lady called Honey. She organised the wheelchair, and made a few phone calls for me. When I first met Vida I already had all of the equipment I needed except the wheelchair.
11. On 14 October 2022, I had a conversation with NDIS Investigator Tim JARRATT. He was making enquiries into the claiming that had occurred against my plan by FFG and HH.
12. Tim JARRATT has told me that FFG have made claims against my NDIS plan for house cleaning and asked me to comment. I have never received housecleaning from FFG.
13. Tim JARRATT has told me that FFG have made claims against my NDIS plan for provider travel and asked me to comment. I have never had a conversation with FFG about them claiming provider travel. I did not authorise FFG to claim this.
14. Tim JARRATT has told me that HH have made claims against my NDIS plan for provider travel and asked me to comment. I have never had a conversation with HH about them claiming provider travel. I did not authorise HH to claim this.
15. Tim JARRATT has told me that HH have made claims against my NDIS plan for access to community social and recreational and asked me to comment. This has never happened.
16. Tim JARRATT has told me that FFG have made claims against my NDIS plan for coordination of supports and asked me to comment. This is what Vida did for me she was my support coordinator.
17. Tim JARRATT has told me FFG have made claims against my NDIS plan for counselling and asked me comment. I have never received this service.
18. Tim JARRATT has told me FFG have made claims against my NDIS plan for self managed capacity building and asked me to comment. I have never received this service. Now I understand what this means because it was written in the invoices so many times. This is why I had rung and spoke with Honey about the invoices. There was one occasion Honey rang me and she asked me to authorised two invoices. They were for around $10,000 and $12,000. Honey said, "Uncle Sam

can you approve some payments we have mailed you please," When I looked at these two invoices and saw the amounts I was shocked. I saw they mentioned a lot of services I hadn't received and ones I didn't understand what they were. I did not authorise these payments. I rung Honey about this and said what is this, what are all these services that I don't even know what that mean. Honey put me on to Vida and Vida told me that she had told Honey not to deal with me moneywise. Vida then put me on to a male called Rejaul in FFG's finance division, Rejaul gave me his mobile number 0478 895045. Rejaul told me not to worry from now on you wont be receiving with these invoices, what I authorise FFG will get paid. Rejaul must have told the plan manager and they rang me and they said how can someone from FFG approve their own invoices. They weren't happy about this. I wrote this down on my calendar in the notes area for the month of August 2022. Tim JARRATT has taken a photograph of this.

19. Tim JARRATT has told me that FFG have claimed against my NDIS plan for short term accommodation or respite and asked me to comment. Vida offered me to stay in a hotel for 2 days in order for me to be able to go on a celebration she was having on a river boat. This was around February 13th which was a Sunday. I declined because it was a Sunday and I go to church. I have never had accommodation provided to me by FFG.
20. Tim JARRATT has told me that HH have claimed against my NDIS plan for short term accommodation or respite and asked me to comment. I have never had accommodation provided to me by HH.
21. Tim JARRATT has told me that HH have claimed against my NDIS plan for assistance with self care and asked me to comment. I have never had this I look after myself.
22. Tim JARRATT has told me that FFG have claimed against my NDIS plan for assistance with decision making and asked me to comment. Definitely no.
23. Tim JARRATT has told me that FFG have claimed against my NDIS plan for power assistive technology and asked me to comment. The only thing I have received is my wheelchair and it is not power assisted in any way. They provided nothing else like this.

24. Tim JARRATT has told me that FFG have claimed against my NDIS plan for low cost AT – Personal care and safety and asked me to comment. I have never received anything like this.
25. I have never had carers from either FFG or HH do anything for me at my house or anywhere else.
26. My plan manager will have all the records and invoices they sent them to me but I cant find them.
27. A little while after I started FFG Honey asked me if she take a video of me talking about the services I was getting from them and I was happy for them to do this. At the time I was happy to do this because at that time I wasn't aware of they way they run their business.
28. I ended services with FFG after I had tried to get in touch with Rejaul to speak about the invoices and they told me he'd left. After this I decided I did not want to stay with FFG and I sent Vida 2 emails on 19/08/2022 telling her I was terminating her services.
    EXHIBIT I PRODUCE THOSE EMAILS DATED 19/08/2022 marked annexure BH-01

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Bassam Abau Haidar

Statement taken and signature witnessed by me about 12pm on
14 October 2022 at Thornlie in Western Australia.

Signature _____
Tim JARRATT
NDIS Fraud Investigator

Annexure BH-01 1 of 2

Jarratt, Tim

From: Sam Haidar <samhaidar@hotmail.com>
Sent: Friday, 14 October 2022 2:40 PM
To: Jarratt, Tim
Subject: FW: Good evening.

You don't often get email from samhaidar@hotmail.com. Learn why this is important

Sent from Mail for Windows

From: Sam Haidar
Sent: Friday, 19 August 2022 6:46 PM
To: Vida Reid
Subject: Good evening.

My dear friend Vida I thank you for your help. however, I would like to cancel my contract with forward focus nothing personnel but I have to do so.
please forgive me
if I have upset. from your friend

Sam or Bassam

Jarratt, Tim

From: Sam Haidar <samhaidar@hotmail.com>
Sent: Friday, 14 October 2022 2:40 PM
To: Jarratt, Tim
Subject: FW: Good Evening.

You don't often get email from samhaidar@hotmail.com. Learn why this is important

Sent from Mail for Windows

From: Sam Haidar
Sent: Friday, 19 August 2022 6:35 PM
To: Vida Reid
Subject: Good Evening.

dear Vida, I thank you for the care you have shown to help, however, I'm sorry to cancel the contract with forward focus NDIS informed me that in my plan I don't have money to pay the " personnel coordinator" besides I know how to look after myself.
Vida, please forgive me if I have upset you nothing personal.
God bless you and I thank you so much, from your friend "Bassam" Sam.

Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Andrew David HAHN
Occupation	Utility Operator
Address	Known to National Disability Insurance Scheme (NDIS)
Date	14 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Andrew David HAHN and I am 38 years of age.

3. My residential address is known to the National Disability Insurance Scheme.

4. I am a NDIS participant and currently plan managed. I have had a plan with the NDIS since 2018 and my participant number is 431173013. My disabilities are autism, anxiety, and depression. I currently have one support worker that I see once a week for four hours. My current budget is $78,577.87 per the one year period of the plan.

5. As I required a plan manager, my friend Christie recommended me to a woman called Terri who was a support coordinator working for a company called Forward Focus Group (FFG) which provided support coordination services. This would have been in March 2021. I later met with Terri on 8 March 2021.

6. Also at this meeting was Vida Reid who introduced herself as the owner of FFG. In general terms, we discussed meeting with an LAC and advocating for supports for myself. I already had a plan at that point, but Vida and Terri thought my plan could be better designed around what I wanted to achieve.

Signature

Witness

7. I signed a service agreement on 8 March 2021 and was emailed a copy of the agreement on 9 March 2021 by Vida.

Exhibit One: I now produce FFG Individual Service Agreement – NDIS Support Coordination dated 8 March 2021 consisting of eight pages – Annexure AH001 refers.

8. After this agreement was signed, Vida advocated on behalf with the LAC to have my plan changed and different services included in the plan. As a result of Vida's advocacy, I was provided a new plan commencing on 9 June 2021. I have provided a copy of the plan to investigators from the NDIS.

Exhibit Two: I now produce NDIS Plan dated 9 June 2021 consisting of 15 pages - Annexure AH002 refers.

9. This plan included Capacity Building Supports relating to Improved Life Choices, Improved Daily Living, Improved Relationships, and Support Coordination for a total amount of $25,710.43

10. In October 2021, I was appointed a new support coordinator by the name of Blake Sadler as Terri had left FFG. In November 2021, I needed somewhere to live, and I had a discussion about this with Vida. Vida put me into a Quest Apartment in Rockingham and charged this against the respite funding in my plan.

11. I have been shown a spreadsheet by NDIS investigators today 14 October 2021 which shows that NDSP Plan Managers have made 12 payment requests for STA and Assistance (Inc. Respite) for a total of $23,796.28. These payment requests were made on behalf of FFG and submitted between 16 November and 5 December 2021. I stayed at the Quest Apartments from 18 November 2021 to 26 November 2021 for a total of nine nights.

12. Vida never told me how much she was going to charge against my plan for the accommodation at the Quest Apartments. In February 2022 I was checking the funds in my plan and saw the invoices for the accommodation at the Quest

Apartments. I was shocked, and emailed FFG asking them about these charges. Their response was that respite care was the only line item that they could use for the accommodation. I made some enquiries online and saw that the average charge for the Quest Apartments was $230 per night.

13. During this period, Vida was trying to find longer term accommodation for me. She presented me with an option to move into her Supported Independent Living (SIL) accommodation in Safety Bay. I agreed to this option and moved into this accommodation on 26 November 2021. Vida assured me that the cost of the SIL accommodation at Safety Bay would be covered under my plan.

14. I had also requested several services from Vida from the commencement of the new plan on 9 June 2021including psychosocial counselling, but these services never materialised.

15. On 9 March 2022, I sent an email to NDSP asking them not to pay any invoices from FFG or Hybrid Hive without me first reviewing them. NDSP informed me via email that FFG had submitted to them several invoices which NDSP has raised payment request for against my plan. These invoices from FFG were for services that had never been provided to me.

16. For example, FFG had invoiced NDSP for providing me with psychosocial counselling for about $10,000 in total. This counselling was never provided to me.

17. Investigators have asked me today whether I ever received a service called Assistance with Self Care Activities. I have never received this service from either FFG or The Hive. The business name was Hybrid Hive, but they referred to themselves as The Hive.

18. Investigators have also asked me whether I received 38 hours of Assessment Recommendation Therapy or Training in April 2021 from FFG. I did not receive this service from FFG or The Hive.

19. Investigator have also asked me whether I received 62.8 hours on 15 July 2021 for Capacity Building and Training in Self-Management and Plan Management from FFG. I did not receive this service from FFG or The Hive.

20. In summary, the only services I received from FFG was the accommodation at the Quest Apartments which was highly inflated, and a handyman to install a venetian blind at the house I was living in prior to moving into the Quest Apartments. At the same house, there were two times that they sent a gardener for about four hours each time. The handyman and gardening services were provided sometime around June to October 2021.

21. In relation to the Safety Bay accommodation, I lived there from the 26 November 2021 until I was evicted on 29 April 2022. When I moved in Safety Bay, it was under the understanding that I would receive SIL. Vida said she was going to get me SIL funding and that would then cover that accommodation.

22. In March 2022, I had a plan review meeting with the LAC from APM. Vida was conference called into this meeting. The LAC informed us at this meeting that I would not be approved for SIL funding.

23. A few weeks after I was refused SIL funding, I was served an eviction notice and I moved out of the Safety Bay accommodation. After I was evicted on 29 April 2022, I did not receive any services at all from either FFG or Hybrid Hive.

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Andrew David HAHN

Statement taken and signature witnessed by me about 5.00pm on
14 October 2022 at Gosnells in Western Australia.

Signature _____
Gerard Righetti

Signature

Witness

Assistant Director – Fraud Investigations
Melbourne

Signature

Witness

AH SCH T36

FORWARD FOCUSED

Document created: 1.11.2020
Updated:25.11.2020

Forward Focused Individual Service Agreement – NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	**Andrew Hahn**

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	Andrew Hahn
Participant Plan Number	**431173013**
Service/plan Dates	2/03/2021 – 2/03/2022

FORWARD FOCUSED

Document created: 1.11.2020
Updated:25.11.2020

The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	Outcome
Support Coordination	**Assistance to strengthen Andrew's ability to coordinate and implement supports, strengthen their broader system of support and coordinate a range of both funded and other government services.**

4. Services

The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
Level 2	$10,000	As agreed and balance to come out of my core funding of my NDIS plan

FFG Support Coordinator Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

7. Occupational Safety and Health

An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed**.

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

   a. your plan will be automatically adjusted to account for the increase in prices; and

   b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

FORWARD FOCUSED

14. Acknowledgement

Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.

Signed by:

Name: Signature:

[Participant / Participant's representative] *[Participant / Participant's representative]*

Date: 08/03/2021

Name: Terri Roberts Signature:

Authorised person from FFG ***Authorised person from FFG***

Date: 08/03/2021

FFG contact details:

FFG Address	**Perth Metropolitan**
Contact Name	**Terri Roberts**
Contact Number	**04788896396**

FFG/NDIS Service Agreement check list

- ☑ I understand what is expected of me
- ☑ I understand what is expected from FFG
- ☑ I understand what services I have agreed for FFG to deliver
- ☑ I understand what services will be delivered by FFG and how they will be charged
- ☑ I understand what to do if I want to make changes to this Service agreement
- ☑ I understand what is expected of me if I want to make changes to my services
- ☑ I understand what is expected of me if I want to end this Service agreement
- ☑ I understand what to do if I have a problem and I know who to contact
- ☑ I have signed the Service agreement acknowledgement
- ☑ I have provided FFG a copy of my NDIS plan

FORWARD FOCUSED

Document created: 1.11.2020
Updated: 25.11.2020

☑ I have a copy of this Service agreement for my records or a copy will be sent to me

I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: [redacted]
[Participant / Participant's representative]

Signature [redacted]
[Participant / Participant's representative]

Date: 08/03/2021

AH 002

T36

If not delivered: GPO Box 700 Canberra ACT 2601

NDS2LETTERD600W7B2U9

Delivered by the
National Disability Insurance Agency
GPO Box 700
CANBERRA ACT 2601
1800 800 110
ndis.gov.au

Reference: **431173013**

Mr. Andrew Hahn
P.O.BOX 3276 BROADWAY
NEDLANDS WA 6009

9 June 2021

Dear Mr. Hahn

Your NDIS plan approval

Please find a copy of your approved National Disability Insurance Scheme (NDIS) plan attached to this letter. The plan started on 9 June 2021 and will be reviewed by 9 June 2022.

How we developed your plan
We recently received new information about your disability related support needs.

This information assisted us to complete an unscheduled review of your plan. This is referred to as a section 48 review under the National Disability Insurance Scheme Act 2013 (NDIS Act).

As discussed with you, I reviewed your plan to ensure you were receiving the right supports to meet your circumstances. Please note as a result of this review, the duration or overall plan value may have changed.

It is important to remember that any funding received from the NDIS for supports must be used for that purpose. Rebates or reimbursement from another government department or private health insurance agency cannot be claimed for things that have been purchased using NDIS funding.

You can request an internal review of a decision about this plan within three months of receiving this notice. You can still use this plan while it is being reviewed. Details on how to request a review are at the end of this letter.

Please note that funds in your core budget are flexible. This means you can choose how to spend this funding to meet your support needs.

What you need to do
1). Please **read through** your plan and make note of the "My NDIS contact" listed. We encourage you to think about how you would best like to use your plan funded supports.

2). Tell your **support providers** that you have a new NDIS plan. This may include telling them about any changes to the plan and/or the supports they are providing for you.

3). Read the NDIS participant **booklets** to help start using your plan. You can find and print these from the NDIS website (ndis.gov.au) under "booklets and factsheets", or you can contact us and we can print these for you.

Next steps
Your "My NDIS Contact" will **contact you** about starting to use your plan. They will explain the plan funded supports, answer any questions, and help you to connect to support providers.

In the meantime, If you would like to discuss your plan, you can ask for your "My NDIS Contact" when contacting us in any of the ways listed under the "we're here to help" section of this letter.

Yours sincerely

Kerwin M
Delegate of the CEO
WA Central North Metro
National Disability Insurance Agency

My Branch Manager:
Ed DUNCAN
NDIA SES1 State Manager

How to request for your plan approval decision to be reviewed
If you disagree with the decision about your plan approval you can request the decision to be reviewed within 3 months of receiving this notice.

We're here to help:

Online

- Internet Relay Users **relayservice.gov.au**
- NDIS mailbox **enquiries@ndis.gov.au**
- NDIS website **ndis.gov.au**
- NDIS webchat **nccchat.ndis.gov.au/i3root**

Phone

- NDIS National Contact Centre **1800 800 110**
- TTY Users **1800 555 677**
- Speak and Listen Users **1800 555 727**
- If you need help with English **131 450**

In Person

- You can also visit a **Local Area Coordinator, Early Childhood Partner** or **NDIS Office** in your area

Have your circumstances changed?
If so, this may affect your NDIS plan or supports. It is important that you contact us about any change in your circumstances.
This change could include:

- compensation you are applying for or have received
- significant changes to your care arrangements
- starting school and/or
- looking for work.

How to request a review of this decision

If you disagree with this decision, you can request an internal review of a decision within three months of receiving this notice.

When asking for an internal review you should explain why you think the decision made is incorrect. The staff member who works on the internal review won't have been involved in the earlier decision. They may want to talk to you as part of this process.

If you would like to request an internal review of a decision, you can do so either:

- Send a letter to:
  National Disability Insurance Agency
  GPO Box 700
  Canberra ACT 2601
- Visit an NDIS office
- Call **1800 800 110**
- Send an email to **enquiries@ndis.gov.au**

If you request an internal review and are not happy with the decision the Agency makes at that time, you can apply for an external review by the Administrative Appeals Tribunal (AAT).

The NDIS website (ndis.gov.au) provides more information about requesting a review. Search for "Operational Guidelines" and click on the link to "Review of Decisions" to read more.

Thank you and the NDIA looks forward to working with you on implementing your NDIS plan.

ANDREW HAHN - NDIS plan

NDIS number: 431173013

My NDIS contact: **Jenneane M**

Local Area Coordinator

APM Communities

Phone: 1300276522

Email: Jenneane.Moylan@ndis.gov.au

NDIS plan start date: 09 June 2021

NDIS plan review due date: 09 June 2022

A National Disability Insurance Agency (NDIA) representative will contact me about my plan review before my plan review due date.



My profile

Information about me

This is personal information about me and I can choose to share this information with my service providers.

Date of birth

15 October 1983

Preferred contact method – email

alpha.hyde@gmail.com

About me

My name is Andrew I am 37 years of age I'm currently homeless and living temporarily with a friend. My parents and older brother Chris live in Canberra.
The current housing situation has been a significant challenge for me.

I have a short casual contract, I would like to be able to continue working at Westcare.
I have an interest in technology and I like to spend time on my PC and console games.
I am a member of my local Society for Creative Anachronism, Dragons Bay in Wandi. (I have been unable o participate in the last few months due to current circumstances.)
I am also a part of Perth Sci-Fi Meet-up group, I attend movie screening when they occur this has been very intermittent due to COVID 19

My Family and friends

- Limited informal supports

My parents and older brother Chris live in Canberra. I speak to my Dad and Chris occasionally over the phone.

My Services and community involvement

- I am a member of my local Society for Creative Anachronism, Dragons Bay in Wandi.

I am also a part of Perth Sci-Fi Meet-up group, I attend movie screening when they occur.

These activities have frequently been on hold due to COVID restrictions.
- Morrison House - Psychologist Paula Linehan
- Beyond Blue Support Service

Provider who you can call 24 hours / 7 days a week 1300 22 4636 who will be there to listen, provide information and advice, and point you in the right direction so you can seek further support for the cost of a local call.

My goals

This is what I want to achieve

Short-term goal

I would like to live in a home of my own in a peaceful and stable environment.

How I will achieve this goal	How I will be supported
I will be assisted to secure appropriate housing, which may include supports to assist me to maintain my tenancy and the provision of appropriate assessments and services. This support will allow me to build my capacity as a tenant and assist me to address any barriers with securing long term tenancy.	• I will be supported by my LAC to connect with the appropriate services and supports to allow me to achieve my plan goal.

Short-term goal

I would like be able to be able to sustain long term and stable employment in a job that I enjoy.

How I will achieve this goal	How I will be supported
I will be supported to obtain and keep long term stable employment in a job that I enjoy. I will be assisted to build my capacity in the work place and post work placement supports to be provided on the job. This is support will assist to reduce any barriers I my experience in maintaining my employment.	• I will be supported by my LAC to connect with the appropriate services and supports to allow me to achieve my plan goal.

Medium or long-term goal

I would like to continue to develop my emotional regulation skills to build my capacity and support my mental health and wellness

How I will achieve this goal	How I will be supported
I will be supported to continue to develop my skills of emotional regulation across all environments including the workplace and in the community.	• I will be supported by my LAC to connect with the appropriate services and supports to allow me to achieve my plan goal.

Medium or long-term goal

I would like to increase my ability to engage in social and activities and be able to feel comfortable in social settings and activities.

How I will achieve this goal	How I will be supported
I will be supported to increase my ability to engage in social activities and be able to feel comfortable in social settings and activities. This support will assist me to build my social skills and assist me to identify and reduce any barriers that may be preventing me from achieving my social and community goals.	• I will be supported by my LAC to connect with the appropriate services and supports to allow me to achieve my plan goal.

Funded supports information

My funded supports can help me achieve my goals

Managing my NDIS funding

There are 3 different ways my plan funding can be managed:

- **Self-managed:** I will claim funding from my NDIS plan to pay providers myself or my plan nominee or child representative may do this on my behalf. Providers will invoice me directly for supports I have agreed they will provide.
- **Plan-managed:** My plan management provider will make claims and pay providers on my behalf for supports I have agreed they will provide.
- **NDIA-managed:** Providers will claim payment directly from my NDIS plan based on active service bookings. Where supports are NDIA-managed, I can only use an NDIS registered provider.

My funding may be managed in one or more of these ways and is listed with my funding on the following pages.

Stated Supports

Where a support is listed as 'stated' in my plan, I must purchase this support as described in my plan. I cannot swap 'stated' supports for any other supports.

In-Kind Supports

Where a support is listed as 'in-kind' in my plan, I must continue with my existing service provider as they have been pre-paid to deliver this service. However, if I have a concern about using my in-kind provider I can raise my concerns with my NDIS contact.

Quote Required

Where a support is listed as 'quote required' additional information such as quotes and/or specialist reports will be required. Once the quote is approved, the funding will be made available in my plan.

Total funded supports $69,354.83

For 09 June 2021 – 09 June 2022

Core Supports

Core supports help with my everyday activities, my current disability related needs and to work towards my goals. The Core Supports budget is the most flexible, and in most cases, funding can be used across the support categories (however, this may not include transport).

Goal/s my Core Supports funding can help me achieve:

- I would like to live in a home of my own in a peaceful and stable environment.
- I would like to continue to develop my emotional regulation skills to build my capacity and support my mental health and wellness
- I would like to increase my ability to engage in social and activities and be able to feel comfortable in social settings and activities.

Core Supports	Budget
Core supports are used to help with daily activities and community participation. Funding may be used flexibly between these supports: Social and Community Participation: $11 537.76 has been allocated for flexible supports to enable maximum independence in personal activities of daily living and to assist with participating in activities of interest within my community. Supports in Employment: $28 400.64 allocated to purchase the supports I need to help me at work and maintain my current employment. And, Low-cost Assistive Technology: $250 is included for the purchase of Basic (Level 1) and Standard (Level 2) assistive technology, and minor repairs for my AT, to support me to achieve my plan goals and outcomes. A report outlining progress against the plan goals and recommendations for future planning is required to be submitted to the NDIA 6 weeks prior to plan review. Reports to be submitted to enquiries@ndis.gov.au. **My Core Supports funding will be:** • $40,188.40 Plan-managed	**$40,188.40**

Core Supports	Budget
Transport $3456.00 allocated as a contribution towards my transport costs - to access my community and engage in social / community / employment activities of interest. **My Transport funding will be:** • $3,456.00 Plan-managed	**$3,456.00**
Total Core Supports	**$43,644.40**

Funded supports continued

Capacity Building Supports

My Capacity Building supports are intended to build my independence and reduce my need for the same level of support into the future. My progress and outcomes from these supports will be shared at each plan review.

Unlike my Core Supports budget, my Capacity Building Supports budget cannot be moved from one support category to another. Funding can only be used to purchase approved individual supports that fall within that Capacity Building category.

Goal/s my Capacity Building Supports funding can help me achieve:

- I would like to live in a home of my own in a peaceful and stable environment.
- I would like be able to be able to sustain long term and stable employment in a job that I enjoy.
- I would like to continue to develop my emotional regulation skills to build my capacity and support my mental health and wellness
- I would like to increase my ability to engage in social and activities and be able to feel comfortable in social settings and activities.

My Capacity Building funding can be spent in the following ways:

Capacity Building Supports	Budget
Improved Life Choices (CB Choice & Control) STATED SUPPORT: Plan management and financial capacity building - set up costs - One-off (per plan) establishment fee. And, STATED SUPPORT: Plan management financial administration developing and processing monthly statements (administrative functions only). **My Stated Supports funding will be:** • $232.35 NDIA-managed Plan Management And Financial Capacity Building - Set Up Costs • $1,253.40 NDIA-managed Plan Management - Financial Administration	**$1,485.75**
Improved Daily Living (CB Daily Activity)	**$3,879.80**

Capacity Building Supports	Budget
Flexible funding for therapy services including: individual assessment, therapy and/ or training. Therapeutic supports to facilitate my functional improvement through adjustment, adaptation and building capacity to participate in the broader community. Therapists to: Undertake assessments to monitor, record and review my progress towards my plan goals. Reports to be submitted to enquiries@ndis.gov.au. 6 weeks prior to plan review or as requested. **My Improved Daily Living funding will be:** • $3,879.80 Plan-managed	
Improved Relationships (CB Relationships) Funding for 36 hours of specialist behaviour intervention support, 20 hours of behaviour management plan and training in behaviour management strategies. A report detailing outcomes achieved is to be provided to the NDIA by the registered specialist behaviour support practitioner before this plan is due for review. Reports to be sent to: enquiries@ndis.gov.au. **My Stated Supports funding will be:** • $8,453.88 Plan-managed Specialist Behavioural Intervention Support • $3,879.80 Plan-managed Behaviour Management Plan Incl. Training In Behaviour Management Strategies	**$12,333.68**
Support Coordination	**$8,011.20**

Capacity Building Supports	Budget
Level 2: Coordination Of Supports - 80 hours of support coordination has been funded to assist with completing a housing exploration to identify long term housing options, and to link me in with available mainstream housing services as soon as possible. My support coordinator will also provide me with assistance to connect to, engage with and coordinate chosen service providers. Please note: This is intended as a time limited support to assist with my housing needs, as a priority. It is expected that my support coordinator will complete a warm handover at the end of this plan period, with my local area coordinator available to assist me further. A progress report is to be submitted to enquiries@ndis.gov.au 6 weeks prior to next plan review. **My Stated Supports funding will be:** • $8,011.20 NDIA-managed Level 2: Coordination Of Supports	
Total Capacity Building Supports	**$25,710.43**

Find out more

Who to contact if I need information or help with my plan

My NDIS contact:

Jenneane M
Local Area Coordinator
APM Communities
Ph: 1300276522
E-mail: Jenneane.Moylan@ndis.gov.au

My next plan review due date:

09 June 2022

A National Disability Insurance Agency (NDIA) representative will contact me about my plan review before my plan review date.

Booklet 3 - Understanding your NDIS plan

I can refer to Booklet 3 to help me understand my NDIS plan and how to use funding, arrange supports and services and work toward my goals. It will also help me review my goals and prepare for my plan to be reviewed. If I do not have a copy, I can ask my NDIS contact or visit the NDIS website.

Important changes

If something important changes or is going to change (e.g. I move house, start work or school, if I get or may get compensation relating to an injury, or if my goals change) I will notify my NDIS contact.

For general enquiries, contact the NDIA

Call NDIA	1800 800 110
If I use a TTY	1800 555 677 and ask for 1800 800 110
If I use Speak and Listen (speech-to-speech relay)	1800 555 727 and ask for 1800 800 110
If I use the National Relay Service	www.relayservice.gov.au and ask for 1800 800 110
If I need help with English	TIS 131 450

Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Lisa Mulock
Occupation	Palliative Care Clinical Nurse Specialist
Address	Known to National Disability Insurance Scheme (NDIS)
Date	17 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Lisa Mulock. I am 49 years of age.

3. My residential address is known to the National Disability Insurance Scheme.

4. I am the mother and nominee of NDIS Participant Bekki Mulock. (NDIS no. 430901389) Bekki is eligible for the scheme because she has a diagnosis of Autism. Bekki requires assistance with money, activities of daily living, cooking, shopping and functional everyday tasks and employment.

5. On 17 October 2022 I had a discussion with NDIA Investigator James Lane regarding one of Bekki's previous providers called Forward Focus Group (FFG).

6. I located FFG because they were recommended to me by a young lady named Cara in February 2021. Cara worked for APM. She said they would be perfect for Bekki. I phoned them on the number that was given to me, and I spoke to a lady named Vida, and she told me what services she can provide for Bekki.

7. A girl named Chloe came to my house on 27 August 2021 for us to put together a service agreement. It initially sounded quite good. Chloe stated that FFG was going

Signature

Witness

to do this, this and this for us after filling her in on what we needed and it sounded good, but after we signed the service agreement and it was a lengthy conversation, it opened up some old emotional wounds and Chloe said we would be able to get counselling, but the waiting list was about 18 months. It was about a two-hour appointment. At one point Chloe also said that we could go to Margarete River or Crown Casino for a weekend and it would be taken out of Bekki's plan for respite.

EXHIBIT: I NOW PRODUCE THE SERVICE AGREEMENT FOR BEKKI IN RELATION TO THE ABOVE CONSISTING OF 8 PAGES. ANNEXURE LM001.

8. We got no services from FFG. I called FFG two or three weeks later and was told by a man named Blake that Chloe had left within two weeks of coming out to see me. They were really forceful about making some appointments, and there were three or four occasions when you rescheduled work to be available and no one came. When I called FFG to talk about this I was greeted with hostility.

9. On 7 December 2021 I received an email from FFG Support Coordinator Sally See asking me whether Bekki would be interested in going on a New Years Eve cruise. I replied that Bekki was still waiting for therapy and supports for, and that if they weren't arranged soon, I would have no choice but to look for other providers. Bekki needed supports but they were just offering cruises and flower arranging.

EXHIBIT: I NOW PRODUCE THE EMAIL IN RELATION TO THE ABOVE CONSISTING OF ONE PAGE. ANNEXURE LM002.

10. On 24 January 2022 I emailed Tania Hendrikse from the NDIS about my concerns with FFG as a worker named Honey NGUYEN had contacted me on 12 January 2022 asking me if Bekki would like to go on an $800 per person Valentine's Day cruise. I then got a phone call from Honey asking if she can book Bekki onto the cruise. Honey said that there would no out of pocket expense and it would all come out of Bekki's plan.

EXHIBIT: I NOW PRODUCE THE EMAIL IN RELATION TO THE ABOVE CONSISTING OF ONE PAGE FRONT AND BACK. ANNEXURE LM003.

LM
Signature

Witness

11. On 25 January 2022 I replied to an email sent to me by NDIS worker Tania Hendrikse who gave me a breakdown of the Support Coordination funding that had been drawn down on from Bekki's plan. Specifically, 2.5 hours which may have been when Chloe came out, but no other services had been provided.

EXHIBIT: I NOW PRODUCE THE EMAIL IN RELATION TO THE ABOVE CONSISTING OF TWO PAGES. ANNEXURE LM004.

12. In the last week of January 2022, I spoke with Tania Hendrikse and asked her to cease services with FFG on my behalf as Vida had been contacting me outside of business hours, sometimes as late as 10pm, and what I felt was trying to force me into receiving services. I ended up having to block Vida all together in late January. There was no professional boundaries. There was a guy named Simon REID who I think wanted to take over from Blake but I wasn't interested in FFG at all by then.

13. After this I've had phone calls from withheld numbers and my work number, which was given to them in my initial meeting, but only to be used in an emergency if Bekki was out in their care.

14. James Lane informed me that on 28/10/2021 FFG had claimed against Bekki's NDIS plan for 31 hours of cleaning services totalling $1,556.20 and asked me to comment.

15. I'm speechless. We did not get anything; we never had any cleaning. That's just terrible.

16. James Lane informed me that on 7/11/2021 FFG had claimed against Bekki's NDIS plan for 31 hours of cleaning services totalling $1,528.30 and asked me to comment.

17. Bastards. I'm furious, that's bloody disgusting. Never has it been in any of Bekki's plans that she needs cleaning. She lives with me, I do it. All I wanted for Bekki was for someone to provide her with the supports for employment and life skills for travelling and cookery.

LM
Signature

Witness

18. James Lane informed me that services have been claimed against Bekki's plan from Provider Choice Plan Management in relation to Support Coordination and asked me to comment.

19. I've never heard of them, and I have no idea who they are. I've been paying invoices out of my own bank account, and I've never received any services or had any contact with anyone from Provider Choice Plan Management.

20. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature LMulock
Lisa Mulock

Statement taken and signature witnessed by me about 3:15pm on 17 October 2022 at Golden Bay in Western Australia.

Signature
James Lane
Golden Bay

ANNEXURE LM601

T37

FORWARD FOCUSED

Document created: 1.11.2020
Updated:25.11.2020

Forward Focused Individual Service Agreement – NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	**Bekki Mulock / Lisa Mulock**

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	**Bekki Mulock**
Participant Plan Number	**430901389**
Service/plan Dates	29 March 2021 29 March 2022

LM

FORWARD FOCUSED

The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

LM

(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	Outcome
Support Coordination	**Assistance to strengthen Bekki's ability to coordinate and implement supports, strengthen their broader system of support and coordinate a range of both funded and other government services.**
Finding and Keeping a Job	**Assistance to assist Bekki in finding and keeping suitable employment**

FORWARD FOCUSED

4. Services

The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
Level Support Coordination	$2002.80	As agreed and balance to come out of my Capacity Building Supports funding of my NDIS plan
Finding and Keeping A job	$ 9,481.50	Finding and Keeping a Job (CB Employment)

FFG Support Coordinator Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

7. Occupational Safety and Health

An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed**.

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

   a. your plan will be automatically adjusted to account for the increase in prices; and

   b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

9. Provider Travel

We will charge you for travel in accordance with the NDIS Price Guide, as amended from time to time.

10. Changes to this Service Agreement

If changes to the Services, or their delivery, are required, FFG and the Participant agree to discuss and review this Service Agreement.

From time to time, FFG can make alterations to this Service Agreement due to changes in the policy and procedure of the NDIA.

FFG and the Participant agree that any changes to this Service Agreement will be in writing.

11. Ending this Service Agreement

Either Party may terminate this Service Agreement by giving the other Party one month's notice in writing.

12. Feedback, Complaints and Disputes

Feedback, complaints and disputes The FFG welcomes feedback.

How to raise your concerns and complaints:

1. Tell your support staff or your case manager. This is often the quickest way to address and resolve your concerns.
2. You can also raise your concerns and complaints with the Manager of the service.
3. FGG's website https://forwardfocusedgroup.com.au also has a Feedback Form you can complete. This form will be sent to the FFG's Manager Policy, Planning & Development.

If you are not satisfied or do not want to talk to this person, you can contact the National Disability Insurance Agency by calling **1800 800 110**, visiting one of their offices in person, or visiting the website **ndis.gov.au** for further information.

13. Goods and Services Tax (GST)

All prices are GST inclusive (if applicable).

For the purposes of GST legislation, you agree that:

The Services described in this Service Agreement are reasonable and necessary supports specified in the statement of supports in the Participant's NDIS plan currently in effect under section 37 of the *National Disability Insurance Scheme Act 2013*;

The Participant's NDIS plan is expected to remain in effect during the period the Services are provided; and

The Participant/Participant's representative will immediately notify the FFG if the Participant's NDIS Plan is replaced or the Participant stops being a participant in the NDIS.

LM

FORWARD FOCUSED

Document created: 1.11.2020
Updated:25.11.2020

14. Acknowledgement

Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.

Signed by:

Name: Signature: Bekki Mulock / Lisa Mulock

[Participant / Participant's representative]

Bekki Mulock

[Participant / Participant's representative]

Mulock

Date:

Name:

Authorised person from FFG

Signature: _____

Authorised person from FFG

Date:

FFG contact details:

FFG Address	**Perth Metropolitan**
Contact Name	**Vida Reid**
Contact Number	**0478889648**

FFG/NDIS Service Agreement check list

- ☑ I understand what is expected of me
- ☑ I understand what is expected from FFG
- ☑ I understand what services I have agreed for FFG to deliver
- ☑ I understand what services will be delivered by FFG and how they will be charged
- ☑ I understand what to do if I want to make changes to this Service agreement
- ☑ I understand what is expected of me if I want to make changes to my services
- ☑ I understand what is expected of me if I want to end this Service agreement
- ☑ I understand what to do if I have a problem and I know who to contact
- ☑ I have signed the Service agreement acknowledgement
- ☑ I have provided FFG a copy of my NDIS plan

FORWARD FOCUSED

Document created: 1.11.2020
Updated:25.11.2020

☑ I have a copy of this Service agreement for my records or a copy will be sent to me

I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: Bekki Mulcok / Lisa Mulock Signature: Bekki Mulock

[Participant / Participant's representative] *[Participant / Participant's representative]*

Lisa Mulock

Date:

ANNEXURE LM002

T37

Lane, James

From: lisa mulock <lisamulock@icloud.com>
Sent: Tuesday, 11 October 2022 3:27 PM
To: Lane, James
Subject: Fwd: Expression of Interest: New Year Eve Cruise

You don't often get email from lisamulock@icloud.com. Learn why this is important

FYI

Lisa

Begin forwarded message:

From: lisa mulock <lisamulock@icloud.com>
Date: 7 December 2021 at 15:23:59 AWST
To: Sally S <sally.s@ffg.net.au>
Subject: Re: Expression of Interest: New Year Eve Cruise

Hi Sally

Thanks for the email.
We are still waiting to hear about employment services and bekkis therapy. Chloe came over and then blake called and said she had left . I've tried 2 times to call blake. If we can't get these things up and running. I will have no choice but to look for other providers so Bekki can utilise her plan.

Regards
Lisa

On 7 Dec 2021, at 14:18, Sally S <sally.s@ffg.net.au> wrote:

Hi Lisa,

I am Sally, support coordinator for Forward Focused Group, how are you? I attempted to call you today to see if Bekki would be interested to join our New Year Eve Cruise on 31st December 2021 on Swan River?
As we do not have the specific details yet, I am only collecting an expression of interest. 😊 Please reply to let me know if she would be interested in joining our cruise and watching the New Year's fireworks with us!

Best Regards,

Sally See (She/Her)
Support Coordinator at Forward Focused Group
A: 2/210 Jull Street, Armadale, WA 6112 [Next to Dome Café]
M: 0478-864-273
E: sally.s@ffg.net.au
W: https://forwardfocusedgroup.com.au

LM

ANNEXURE LM003

Lane, James

From: lisa mulock <lisamulock@icloud.com>
Sent: Tuesday, 11 October 2022 3:26 PM
To: Lane, James
Subject: Fwd: Valentines Day Cruisse on the Crystal Swan Sunday 13 February 2022

You don't often get email from lisamulock@icloud.com. Learn why this is important

FYI

Lisa

Begin forwarded message:

From: lisa mulock <lisamulock@icloud.com>
Date: 24 January 2022 at 15:38:36 AWST
To: Tania Hendrikse <Tania.Hendrikse@ndis.gov.au>
Subject: Fwd: Valentines Day Cruisse on the Crystal Swan Sunday 13 February 2022

Please see attached email regarding our conversation

Lisa x

Begin forwarded message:

From: lisa mulock <lisamulock@icloud.com>
Date: 12 January 2022 at 10:32:31 AWST
To: Honey Nguyen <honey@ffg.net.au>
Subject: Re: Valentines Day Cruisse on the Crystal Swan Sunday 13 February 2022

Hi Honey

$800 per person?

Thanks but no that's incredibly expensive

Lisa

Sent from my iPad

On 12 Jan 2022, at 10:27 am, Honey Nguyen <honey@ffg.net.au> wrote:

Dear Bekki ,

I am writing to invite you & family to spend Valentines day on our Sea Dream Cruise Sunday 13th Feb 11am to 3pm 💝🌹

Let's make this year Valentines Day special , celebrating love, friendship and appreciation on the famous Crystal Swan cruise , we have

- Food Provided
- Custom made Valentines day Cake by Cake Paradise
- Performance by the one & only Michelle Harpist
- Comedian
- Romantic flower arrangements by Rosey Arrangements
- Belly Dancers
- DJ to play light music (please bring your own ear muffs if you require due to sound/noise sensitivity)
- Support Staff available on Cruise

Price is $800 per person. Please let me know if you would like to attend and if you need further clarification.

Looking forward to hearing from you.

<image002.jpg>

<image003.png>

Honey Nguyen
PA To Founding Executive Director
at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M 0478 894 041**
E honey@ffg.net.au
W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing th e-mail

LM

ANNEXURE LM004.

T37

Lane, James

From: lisa mulock <lisamulock@icloud.com>
Sent: Tuesday, 11 October 2022 3:20 PM
To: Lane, James
Subject: Fwd: B Mulock NDIS #430901389 [SEC=OFFICIAL]

You don't often get email from lisamulock@icloud.com. Learn why this is important

Hi James

FYI

Lisa

Begin forwarded message:

> **From:** lisa mulock <lisamulock@icloud.com>
> **Date:** 25 January 2022 at 11:33:16 AWST
> **To:** "Hendrikse, Tania" <Tania.Hendrikse@ndis.gov.au>
> **Subject: Re: B Mulock NDIS #430901389 [SEC=OFFICIAL]**
>
> Hi Tania
>
> This is fraudulent how can they charge for nothing? The 2.25 hours on the 19/1/22 ??
>
> Oh my goodness
>
> Lisa x
>
> > On 25 Jan 2022, at 11:23, Hendrikse, Tania <Tania.Hendrikse@ndis.gov.au> wrote:
> >
> > Hi Lisa,
> >
> > As discussed, below is a break down of the Support Coordination funding that has currently been drawn from Bekki's funding:
> >
> > Date – 19/01/2022
> > Payment Request Number - 197589053
> > Claim Type – Direct Service
> > Claimed Amount - $225.32
> > Quantity: 2.25 hours
> >
> > Date – 06/01/2022
> > Payment Request Number – 195108730
> > Claim Type – Direct Service
> > Claimed Amount - $75.11
> > Quantity: 0.75 hours
> >
> > Date – 06/01/2022
> > Payment Request Number – 195108737
> > Claim Type – Direct Service

LM0

Claimed Amount - $25.04
Quantity: 0.25 hours

Date – 06/01/2022
Payment Request Number – 195108732
Claim Type – Direct Service
Claimed Amount - $75.11
Quantity: 0.75 hours

Kind Regards

Tania Hendrikse

APM - Local Area Coordinator
Mobile: 0438 159 680

National Disability Insurance Scheme Partner delivering Local Area Coordination services
T: 1300 276 522 Email: APMNET@ndis.gov.au



****
** IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail
****
**

LM

Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Karen Ruth Canalija Marasigan
Occupation	Head of Compliance
Address	Known to National Disability Insurance Scheme (NDIS)
Date	17 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Karen Ruth Canalija Marasigan.

3. I am 39 years old.

4. I am the Head of Compliance for the company Zettai Pty Ltd, ABN 21637637131 trading as Assist Plan Managers.

5. I have held this position since December 2021. Prior to this, I held the position of accounts clerk from February 2021 to December 2021. We currently have no fixed office location and work remotely.

6. In my role as Head of Compliance, my key duties include ensuring that the Accounts Team process invoices in compliance with the price guide and NDIA requirements, investigating and responding to compliance-related issues raised by the team.

7. In the course of a normal day my section receives service provider invoices, validates the invoices through our systems, forwards the claim to the National Disability

Insurance Agency (NDIA) for payment and receives funds for successful claims to remit to providers.

8. I am familiar with the computer systems used by the business, and I have access to the electronic and hard copy records held by the business.

9. On 10 March 2020 Assist Plan Managers was registered as a Plan Management service provider with the National Disability Insurance Scheme Commission (NDIS Commission) and was allocated the provider number 4050063455.

10. Assist Plan Managers is registered as an NDIS Plan Manager, which enables us to offer plan management services to National Disability Insurance Scheme (NDIS) participants.

11. As a Plan Manager, Assist Plan Managers act as a financial intermediary and undertake a series of administrative tasks to process financial transactions on the participant's behalf.

12. When we are engaged by the NDIS Participant or their Plan Nominee, we establish their plan details and enter those details into our system.

13. We do not always have access to a Participant's NDIS plan but generally speaking, at a minimum, we will have access to the budget categories that have been allocated in the Participant's NDIS plan and the total funds allocated to be plan managed for those categories.

14. If requested, we then support the participant in exercising their choice and control over the types of goods and services to be purchased using those approved funds as set out in the Pricing Arrangements and Price Limits. We evaluate the claims for payment against the participant plan and NDIS Price Arrangements and Price Limits requirements.

15. A claim is made by a participant or a provider forwarding an invoice, by email to invoices@assistplanmanagers.com.au. That email is then picked up by one of our team

and then reviewed, processing the claims date and details against the participant's details and the NDIS Price Arrangements and Price Limits and any other conditions.

16. Assist Plan Managers can receive hundreds of such emails with invoices attached per day. We archive all of these emails following the company' procedures. The attached invoices are downloaded and stored per individual participant.

17. It is Assist Plan Managers practice to ensure that the Australian Business Numbers that appear on invoices are recorded against the provider at the time a record for the provider is established in the system.

18. All claims processed by Assist Plan Managers are batched for the day and are submitted to the NDIA as a bulk upload. However, in instances where we can't do bulk upload, we will do a single entry. After the upload, we can download a summary of the uploaded invoices and check what has been paid and what hasn't. The following working day we will receive the funds from the NDIS for disbursement to the Service Providers.

19. On the occasions where an invoice has not been paid due to error, we will cancel the invoice on CareView and then investigate further.

20. I know of Vida as the Founding Executive Director of the company Forward Focused Group.

21. I know of the companies Forward Focused Group and The Hive but only as providers with Assist Plan Managers.

22. I have met Vida on one occasion. This was in January 2022. We organised a meeting with her as there were recurring issues with Forward Focused Group's invoices. The common errors were 1.) some line items in newly submitted invoices were already claimed in previous invoices; 2.) invoices with item codes not matching with service booking item codes, and 3.) invoices rejected by client due to services not provided. During this meeting, Vida and her team appeared willing to cooperate and fix the issues and stated that there was a lack of training, and they are still learning.

23. Forward Focused Group and The Hive's bank account details were created on Assist Plan Manager's system.

24. There have been changes to these bank accounts for The Hive and Forward Focused Group since they were created.

25. The email addresses held on Assist Plan Managers system for Forward Focused Group and The Hive are accounts@ffg.net.au and accounts@hybridhive.com.au

NDIS Participant Meghan Goodwin

26. On reviewing the electronic records maintained by Assist Plan Managers, I can state the following for the participant Meghan Goodwin (GOODWIN):

    a. Assist Plan Managers were engaged as the Plan Manager for GOODWIN on 1 December 2021. We provided Plan Management services up to 9 August 2022.

    b. GOODWIN's NDIS number is 431576199

    c. GOODWIN's date of birth is 14 May 1990.

    d. There was a Service Agreement in place between Assist Plan Managers and Meghan Goodwin.

    e. To my knowledge there were service agreements between Forward Focused Group and GOODWIN. Assist Plan Managers were provided with service agreement electronically for GOODWIN from Forward Focused Group.

    f. Claims for payment for GOODWIN from Forward Focused Group and The Hive were received by Assist Plan Managers as invoices created by Forward Focus Group and The Hive as a ".PDF" file attached to an email sent to invoices@assistplanmanagers.com.au by their automated system Xero.

    g. It is my understanding that the accounts teams from The Hive and Forward Focus Group would create these invoices and send them through Xero.

h. Regarding GOODWIN and The Hive, The Accounts Team of Assist Plan Managers would most commonly receive email communication from The Hive employee Virginie Fannie Duloo in relation to invoices and any payment issues.

i. Regarding GOODWIN and Forward Focused Group, The Accounts Team of Assist Plan Managers would most commonly receive email communication from Forward Focused Group employees Danica Hall and Ashleigh Oleksiuk in relation to invoices and any payment issues.

j. The emails from Forward Focused Group with invoices attached are held with Assist Plan Managers.

k. The emails from The Hive with invoices attached are listed in **ANNEXURE A.**

l. Forward Focused Group submitted claims for payment (invoices) to Assist Plan Managers for the participant GOODWIN. Those invoices are listed in **ANNEXURE B.**

m. The Hive submitted claims for payment (invoices) to Assist Plan Managers for the participant GOODWIN. Those invoices are listed in **ANNEXURE C.**

n. Assist Plan Managers batched these invoices with others from Forward Focus Group and The Hive at the time and submitted them to the NDIA as a bulk upload. After this, to see if all the line items are successful, Assist Plan Managers download a file from the portal and check and filter the line items with errors and correct any errors. All the uploads with successful line items will be paid from the NDIA the following day with funds being received into Assist Plan Managers bank account.

o. Assist Plan Managers then matched the claimed invoices with the successful and part claims. Funds were then disbursed to the bank account nominated by FORWARD FOCUS GROUP and THE HIVE when the account was first set up with Assist Plan Managers.

p. Payments to The Hive regarding GOODWIN, were disbursed to BSB 036 022 and Account Number 536 804 in the name of Hybrid Hive Pty Ltd. The initial account for The Hive for payments for GOODWIN was BSB 016 253 and Account Number 154 173 449. The Hive notified Assist Plan Managers of a change to bank account details

on 18 May 2022. The change was made on Assist Plan Manager's system. This was after Assist Plan Managers received an email from Chief Financial Officer Rejaul Alam on 17 May 2022, requesting a change in bank account details.

q. Payments to Forward Focused Group regarding GOODWIN were disbursed to BSB 036 032 and Account number 736 973 in the name of Forward Focus Group Pty Ltd. The initial account for Forward Focus Group for payments for GOODWIN was BSB 016 253 and Account number 152 003 884. Forward Focus Group changed bank accounts on 18 May 2022 on the Assist Plan Managers System. This was after Assist Plan Managers received an email from Chief Financial Officer Rejaul Alam on 17 May 2022, requesting a change in bank account details.

r. When funds were disbursed to these accounts, remittance advice notices were also sent to the email address accounts@ffg.net.au advising of the payments and accounts@hybridhive.com.au.

s. Remittance advices could be for a single payment for a single participant or could be for multiple payments for multiple participants.

t. When the funds were paid to the bank account, they correlate to the remittance notices.

u. The email sending the remittance advice was retained.

v. Assist Plan Managers submitted remittance advices to Forward Focus Group for the participant GOODWIN. Those remittance advices are listed in **ANNEXURE D.**

w. Assist Plan Managers submitted remittance advices to The Hive for the participant GOODWIN. Those remittance advices are listed in **ANNEXURE E**.

NDIS Participant Sarah Jane Clulow

SH

27. On reviewing the electronic records maintained by Assist Plan Managers, I can state the following regarding the participant Sarah Jane Clulow (CLULOW):

a) Assist Plan Managers were engaged as the plan manager for CLULOW on 16 November 2021 and continue in that capacity.

b) CLULOW's NDIS number is 430838840.

c) CLULOW's date of birth is 16 May 1987.

d) There is a Service Agreement in place between Assist Plan Managers and CLULOW.

e) To my knowledge there were Service Agreements between Forward Focus Group, CLULOW. Assist Plan Managers were provided with Service Agreements electronically for CLULOW from Forward Focus Group.

f) Claims for payment for CLULOW from Forward Focused Group were received by Assist Plan Managers as invoices created by Forward Focus Group as a ".PDF" file attached to an email sent to invoices@assistplanmanagers.com.au by their automated system Xero.

g) It is my understanding that the accounts teams from Forward Focus Group would create these invoices and send them through Xero.

h) Regarding CLULOW and Forward Focus Group, the Accounts Team of Assist Plan Managers would most commonly receive email communication from Forward Focus Group employees Danica Hall and Ashleigh Oleksiuk in relation to invoices and any payment issues.

i) The emails from Forward Focused Group with invoices are held with Assist Plan Managers.

j) Forward Focused Group submitted claims for payment (invoices) to Assist Plan Managers for the participant. Those invoices are listed in **ANNEXURE F.**

k) Assist Plan Managers batch these invoices with others from Forward Focus Group and The Hive at the time and submit them to the NDIA as a bulk upload. After this to see if all the line items are successful, Assist Plan Managers download a file from the

portal and check and filter the line items with errors and correct any errors. All the uploads with successful line items will be paid from the NDIA the following day with funds being received into Assist Plan Managers bank account.

l) Assist Plan Managers then matched the claimed invoices with the successful and part claims proceeding to settlement. Funds were then disbursed to the bank account nominated by FORWARD FOCUS GROUP and The Hive when the account was first set up with Assist Plan Managers.

m) Payments to The Hive regarding CLULOW, were disbursed to BSB 036 022 and Account Number 536 804 in the name of Hybrid Hive Pty Ltd. The initial account for The Hive for payments for CLULOW was BSB 016 253 and Account Number 154 173 449. The Hive changed bank accounts on 18 May 2022 on Assist Plan Managers system. This was after Assist Plan Managers received an email from Chief Financial Officer Rejaul Alam on 17 May 2022, requesting a change in bank account details.

n) Payments to Forward Focused Group regarding CLULOW were disbursed to BSB 036 032 and Account number 736 973 in the name of Forward Focus Group Pty Ltd. The initial account for Forward Focus Group for payments for CLULOW was BSB 016 253 and Account number 152 003 884. Forward Focus Group changed bank accounts on 18 May 2022 on Assist Plan Managers System received an email from Chief Financial Officer Rejaul Alam on 17 May 2022, requesting a change in bank account details.

o) When funds were disbursed to this account, a remittance advice notice was also sent to the email address accounts@ffg.net.au advising of the payment and accounts@hybridhive.com.au.

p) Remittance advices could be for a single payment for a single participant or could be for multiple payments for multiple participants.

q) When the funds were paid to the bank account, they correlate to the remittance notices.

r) The email sending the remittance advice was retained.

s) Assist Plan Managers submitted remittance advices to Forward Focus Group for the participant CLULOW. Those remittance advices are listed in **ANNEXURE G.**

ANNEXURE A –EMAILS RECEIEVD FROM THE HIVE WITH INVOICES ATTACHED FOR PARTICIPANT MEGHAN GOODWIN

Email address	Invoice Number	Date sent
on behalf of admin Hive <messaging-service@post.xero.com	0162	21 January 2022
on behalf of admin Hive <messaging-service@post.xero.com	0161	21 January 2022
on behalf of admin Hive <messaging-service@post.xero.com	0143	21 January 2022
on behalf of admin Hive <messaging-service@post.xero.com	0163	21 January 2022
on behalf of admin Hive <messaging-service@post.xero.com	0159	21 January 2022
on behalf of admin Hive <messaging-service@post.xero.com	0150	21 January 2022
on behalf of admin Hive <messaging-service@post.xero.com	0160	21 January 2022
on behalf of Accounts Hive <messaging-service@post.xero.com>	0177	27 January 2022
on behalf of Accounts Hive <messaging-service@post.xero.com>	0323	28 February 2022
on behalf of Accounts Hive <messaging-service@post.xero.com>	0286	28 February 2022
Blesson Varghese <messaging-service@post.xero.com>	0474	8 April 2022

ANNEXURE B – INVOICES SUBMITTED BY FORWARD FOCUSED GROUP FOR PARTICIPANT MEGHAN GOODWIN

Invoice Number	Date
NDIS 861-1	13 December 2021
INV 0485	7 December 2021
NDIS 1031-1	10 January 2022
NDIS 1084-1	14 January 2022
NDIS 1263-1	24 February 2022
NDIS 1284-1	28 February 2022
NDIS 1297-1	3 March 2022
NDIS 1314-1	9 March 2022
NDIS 1398-1	24 March 2022
NDIS 1488-1	8 April 2022

ANNEXURE C – INVOICES SUBMITTED BY THE HIVE FOR PARTICIPANT MEGHAN GOODWIN

Invoice Number	Date
INV 0162	13 January 2022
INV 0161	6 January 2022
INV 0143	9 December 2021
INV 0163	20 January 2022
INV 0159	23 December 2021
INV 0150	16 December 2021
INV 0160	30 December 2021
INV 0177	27 January 2022
INV 0323	25 February 2022
INV 0286	11 February 2022
INV 0474	8 April 2022

ANNEXURE D – REMITTANCE NOTICES SENT TO FORWARD FOCUSED GROUP FOR PARTICIPANT MEGHAN GOODWIN

Remittance Number	Invoice Number	Payment Date
27	861-1	6 January 2022
27	0485	7 January 2022
26	1031-1	13 January 2022
26	1084-1	18 January 2022
25	1263-1	1 March 2022
24	1284-1	3 March 2022
24	1297-1	8 March 2022
24	1314-1	15 March 2022
22	1398-1	29 March 2022
20	14888-1	21 April 2022

ANNEXURE E – REMITTANCE NOTICES SENT TO THE HIVE FOR PARTICIPANT MEGHAN GOODWIN

Remittance Number	Invoice Numbers	Payment Date
8	0162; 0161; 0143; 0163; 0159; 0150; 0160	26 January 2022
8	0177	29 January 2022
8	0323; 0286	3 March 2022
5	0474	12 May 2022

ANNEXURE F – INVOICES SUBMITTED BY THE HIVE FOR PARTICIPANT SARAH-JANE CLULOW

Invoice Number	Date
INV-0850	3/1/2022
INV-0457	18/11/2021
NDIS-789-1	29/11/2021
INV-0942	04/04/2022
NDIS-1227-1	17/02/2022
NDIS-1270-1	24/02/2022

INV-0493	10/12/2021
INV-0657	31/01/2022
INV-0657 (2)	31/01/2022
INV-0673	02/02/2022
INV-0657	31/01/2022
INV-789-1	29/11/2021
INV-0848	20/12/2021
INV-0849	27/12/2021
INV-0850	03/01/2022
INV-0851	10/01/2022
INV-0865	14/02/2022
INV-0869	14/03/2022
INV-0895	21/03/2022
INV-0924	28/03/2022
INV-0942	04/04/2022
INV-0967	11/04/2022
INV-0983	12/042022
INV-0986	13/04/2022
INV-1007	18/04/2022
INV-1011	19/04/2022
NDIS-965-1	22/12/2021
NDIS-999-1	29/12/2021
NDIS-1009-1	29/12/2021
NDIS-1013-1	04/01/2022
NDIS-1147-1	31/01/2022
NDIS-1175-1	10/02/2022

NDIS-1281-1	28/02/2022
NDIS-1303-1	03/03/2022
NDIS-1322-1	10/03/2022
NDIS-789-1	29/11/2021

ANNEXURE G – REMIITTANCES SUBMITTED BY ASSIST PLAN MANAGERS TO FORWARD FOCUS GROUP FOR PARTICIPANT SARAH-JANE CLULOW

Remittance Number	Invoice Number	Payment Date
12	INV-1254	18/06/2022
19	INV-0983	23/04/2022
20	INV-0967	14/04/2022
20	INV-0986	22/04/2022
21	INV-0942	9/04/2022
22	INV-0895	29/03/2022
22	INV-0924	2/04/2022
23	INV-0848	19/03/2022
23	INV-0849	19/03/2022
23	INV-0850	19/03/2022
23	INV-0851	19/03/2022
23	INV-0865	19/03/2022
23	INV-0869	19/03/2022
24	INV-0848	19/03/2022
24	INV-0849	19/03/2022
24	INV-0850	19/03/2022

24	INV-0851	19/03/2022
24	INV-0865	19/03/2022
24	NDIS-1281-1	4/03/2022
24	NDIS-1303-1	8/03/2022
25	INV-0657	2/02/2022
25	INV-0673	4/02/2022
25	NDIS-1175-1	12/02/2022
20	INV-1007	22/04/2022
20	INV-1011	21/04/2022
24	NDIS-1322-1	16/03/2022
24	INV-0869	19/03/2022
25	NDIS-1227-1	22/02/2022
25	NDIS-1270-1	26/02/2022
26	NDIS-1147-1	2/02/2022
27	NDIS-965-1	24/12/2021
27	NDIS-999-1	31/12/2021
27	NDIS-1009-1	31/12/2021
27	NDIS-1013-1	8/01/2022
28	INV-0457	25/11/2021
28	NDIS-789-1	2/12/2021
28	INV-0493	15/12/2021

28. I can produce copies of the bank account statements of Assist Plan Managers to confirm the dates monies were received from the NDIS as a result of the lodging of claims and the subsequent transfer of funds by Assist Plan Managers to Forward Focus Group and The Hive's bank accounts if required. I wish to note though that our bank statements show bulk amounts and the details of the transferred payments are shown in ABA file.

29. I have provided NDIA Investigator Harsley the emails, invoices and remittances in relation to NDIS Participants Meagan Goodwin and Sarah-Jane Clulow which is contained within the Annexures. I did not prepare the Annexures.

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Karen Ruth Canalija Marasigan

Statement taken and signature witnessed by me about 3.43pm on 17 October 2022 at CANNINGVALE in Western Australia.

Signature _____
Sian Harsley
NDIS Investigator

Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Yvonne Charlotte-May Harrison
Occupation	Home Duties
Address	Known to National Disability Insurance Scheme (NDIS)
Date	18 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Yvonne Charlotte-May Harrison and I am 56 years old.

3. In January 2021, I filled in the Access Request Form (ARF) to apply for access to the National Disability Insurance Scheme (NDIS). My doctor who diagnosed me with Bipolar Affective Disorder, Major Depression (Secondary) was Dr Deborah Wearne, also filled in the ARF.

4. On 17 February 2021, I was accepted as a participant of the NDIS and was given my NDIS number 431664181. My first plan was from 2 March 2021 to 2 March 2022 which was to the value of $91,070.55. My current NDIS plan is from 11 October 2022 to 10 October 2024 to the value of $134,369.12.

5. My understanding of the NDIS is to provide funding to pay for services in assisting me with everyday living.

6. In October 2021, I have emails between myself, and a lady called Nikita Yates (Nikita) who was from Roshana Care Group and was my provider at the time. In these emails she was asking me to stay with Roshana Care Group and I declined her request as I was not happy and I wanted to go another provider.

Yvonne Harrison.

C. Bruckner

7. On 3 November 2021, an acquaintance who I met through a friend, gave me a list of recommendations of providers who could provide me with supports. One of these companies was Forward Focus Group (FFG).

8. To the best of my memory, I believe I emailed FFG to ask them about their supports and services.

9. A few days later, I met with a man who worked for FFG who was called Simon Reid (Simon) met at the local coffee shop. In this meeting we discussed my supports I required, to the best of my memory I remember leaving this meeting with Simon with the impression that he was going to be my recovery coach. After this meeting I never saw him again.

10. On 22 November 2021, I received an email from Simon@ffg.net.au inviting me to use their mobile app called 'Careview Advantage' which also included a username and password. I never used this app or logged into it.

11. I have been able to refer in my emails and I can see I have an email from HelloSign on the 2 December 2021 stating I have signed the Service Agreement FFG. In this email I have noticed the dates are in a different format where the Month is listed first.

ANNEXURE: I NOW PRODUCE YH001 MY EMAIL FROM HELLOSIGN SHOWING I HAVE SUCCESSFULLY SIGNED A SERVICE AGREEMENT.

12. During December 2021, FFG provided me with three recovery coach's, I felt the first two were not appropriate and I was happy to have Janine Hall (Janine) as my recovery coach. One of the persons, assigned to me as a recovery coach was Blake Sadler (Blake) from FFG was assigned to me whom I did not feel comfortable with, and I asked for someone else.

13. My gardener and support workers were the only people who came to my home to provide services by FFG or what I believe may have been another company connected to FFG, which was a company called 'The Hive'. The only reason I knew

YHA
Yvonne Harrison

C. Brückner

of the company called 'The Hive' was that the support workers from FFG talked about them. I do not ever remember signing any documents with 'The Hive', when I did ask about getting copies of the documents I signed, I never received a response.

14. On 12 January 2022, I received an email inviting me to attend a "Valentine's Day Cruisse on the Crystal Swan Sunday 13 February 2022".

ANNEXURE: I NOW PRODUCE YH002 A COPY OF THE EMAIL RECEIVED WITH THE INVITATION FOR THE CRUISE IN FEBRUARY 2022.

15. On 16 February 2022, I received an email from Honey Nguyen (Honey) at FFG thanking me for attending the "FFG Sea Dream Valentines Cruise – Thank you". I never went on any cruise with FFG at any stage during my time they were meant to be providing services.

ANNEXURE: I NOW PRODUCE YH003 A COPY OF THE EMAIL RECEIVED WITH THE THANK YOU FOR ATTENDING THE CRUISE IN FEBRUARY 2022.

16. I can remember when my vegetable garden was planted in February 2022, Janine helped me arrange for this to happen. Janine was my recovery coach from FFG at the time, and she would hardly ever come to my home she would mainly make phone calls to me. She only ever came to my home two or three times every other interaction was via phone or video calls.

17. On 28 July 2022, I received an email from Janine Hall to state she was no longer working with FFG.

18. In August 2022, my plan manager emailed me some invoices of concern which I reviewed and could see they were for services I did not receive from FFG or The Hive. I logged into my plan manager portal and I could see there were multiple invoices for services which I didn't receive from FFG or The Hive. At this stage I decided I wanted to terminate my contract with FFG and The Hive. When I was looking at these invoices, I noticed there were claims for 'Psychosocial Recovery

Yvonne Harrison

C. Bruckner

Coaching' which had the reference to the best of my memory 'Sally See'. I can say I have never met anyone who worked for FFG or The Hive called Sally See.

19. On 29 August 2022, I terminated my contract with FFG via email at 2:00pm, this was one months' notice. On the same day I terminated my contract with The Hive by emailing the email on their website which I remember to be hello@hybridhive.com.au. I do not ever remember signing any agreement with the Hive however I wanted to be sure any agreements were cancelled. I never received any response from anyone at the company called The Hive.

20. On 20 September 2022, I received an email from Vida Reid responding to my email sent to her about terminating my contract with Forward Focused Group.

ANNEXURE: I NOW PRODUCE YH004 A COPY OF THE EMAIL RECEIVED WITH FROM VIDA REGARDING MY TERMINATION OF CONTRACT WITH FORWARD FOCUSED GROUP.

21. On 9 October 2022, Christine Bruckner an investigator from the NDIS contacted me to ask about my claims for the NDIS. We had a brief conversation over the phone about these claims.

22. On 18 October 2022, Investigator Bruckner and I met in person, and she showed a list of claims which I can see there are claims for Saturday, Sunday or a Public Holiday, I can say I have never received any services from FFG or The Hive on these days. The only days of the week which the support workers from FFG or The Hive, would come to my home were on Tuesday, Thursdays and Fridays. The gardener from FFG or The Hive came about once a fortnight for about three to five hours and always on a weekday.

23. In this list of claims which Investigator Bruckner showed me on the 18 October 2022, I could see there were claims made by FFG or The Hive claiming they provided services prior to December 2021. I can say I have never received any of these services as I was still with my previous provider which was Roshana Care Group, who provided me with recovery coaching and support co-ordination. I can

YHA

Yvonne Harrison

C. Bruckner

also say I did not have a signed agreement with FFG or The Hive prior to December 2021.

24. In this list of claims I which Investigator Bruckner showed me on the 18 October 2022, I could see there were claims made by FFG or The Hive claiming for cleaning services. I can say I had organised my cleaner myself and arranged payment privately and it was not through FFG or The Hive. I can say that FFG or The Hive never provided cleaning services during my time with them.

25. In this list of claims I which Investigator Bruckner showed me on the 18 October 2022, I could see there were claims made by FFG or The Hive claiming for STA, which I understand to be for Short Term Accommodation. I can say I have always stayed at home unless, I needed to attend hospital. I can say that FFG or The Hive never provided any short-term accommodation during my time with them.

26. In this list of claims I which Investigator Bruckner showed me on the 18 October 2022, I could see there were claims made by FFG or The Hive claiming for 'Employment Support' and 'Supports in Employment'. I can say that FFG or The Hive never provided any support for employment during my time with them.

27. In this list of claims I which Investigator Bruckner showed me on the 18 October 2022, I could see there were claims made by FFG or The Hive claiming for 'Assistance With Self-Care Activities – Standard' and 'Access Community Social And Rec Activities' for large amount of hours over the course of a few days. I can say I have never had anyone at my home providing supports from FFG or the Hive more than 4 hours per day or that would match the extent of what appears to be fabricated claims against my NDIS plan, and there was never more than one person here at a time. One of these examples are where they have claimed for 32 hours between 7 March 2022 to 11 March 2022, I can say at no stage have I ever required that extent of support.

YMH
Yvonne Harrison

C Bruckner

28. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Yvonne Charlotte-May Harrison

Statement taken and signature witnessed by me about 11:45am on 18 October 2022 at a home address in Perth in Western Australia.

Signature _____
Christine Bruckner – Fraud Investigator
Perth Western Australia

From: HelloSign noreply@mail.hellosign.com
Subject: You just signed Consent for the NDIA to Share Your Information form (DOCX 95KB)
Date: 2 Dec 2021 at 10:30:11 am
To: yvehn@westnet.com.au

HELLOSIGN
a Dropbox Company

You have successfully signed your document

DOCUMENT

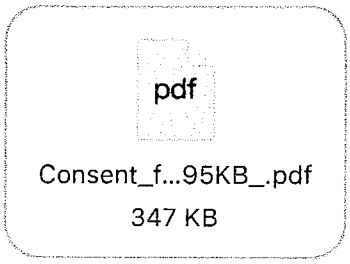
Consent for the NDIA to Share Your Information form (DOCX 95KB)

You can view the document as an attachment below (if it's under 25 MB) or by clicking this link. This document and others can also be accessed on HelloSign by creating an account.

VIEW SIGNED DOCUMENT

⚠ Warning: to prevent others from accessing your document, please do not forward this email.

THE HelloSign TEAM


pdf
Consent_f...95KB_.pdf
347 KB

Form

Consent for the NDIA to share your information

Please complete and sign this form to give the National Disability Insurance Agency (NDIA) permission to share your information on your behalf. The information we will share will depend on the permission you give us on this form. For example, you can agree to us sharing information to a third party about:

- you
- your plan or your funded supports
- your medical reports held by us
- your NDIS plan being developed
- requests asking us to review a planning decision we have made.

You do not have to give your permission if you do not want to share your information. If you give us permission and then decide that you don't want us to share your information anymore, you can withdraw your consent by contacting us. You can do this in writing or verbally.

We will not share your personal information to anyone unless you have given your permission or the disclosure of your information is required or authorised by law.

Note: You can provide your consent to share your information with up to three people and/or organisations on this form.

How do I return this form to the NDIA?

- **Email:** enquiries@ndis.gov.au
- **Mail:** NDIA, GPO Box 700, Canberra ACT 2601
- **In person:** Visit a **Local Area Coordinator, Early Childhood Partner** or **NDIS Office** in your area.

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760e

Form

Part A: Participant details

Note: If you are **not** the participant and you are a child representative, plan nominee or legally appointed decision maker, please complete this section about the participant you are representing.

Full name	Ms Yvonne Harrison
Date of birth (DD/MM/YYYY)	27/10/1965
NDIS participant number	431664181
Preferred contact details (phone number, email address, etc.)	Yvehn@westnet.com.au

Part B: Child representative, plan nominee, legally appointed decision maker details

Please provide your details in this section if you are completing this form on behalf of a participant:

- under 18 years for whom you have parental responsibility, or a child representative
- for whom you are a plan nominee, or
- for whom you are a legally appointed decision maker (for example, a guardian).

The NDIA may ask you to provide confirmation that you are authorised to represent the participant and to verify your identity.

Please mark the relevant box below to indicate your relationship to the participant

☐ Child representative

☑ Plan nominee

☐ Legally appointed decision maker

Participant representative full name	Ms Yvonne Harrison
Preferred contact details (phone number, email address, etc.)	Phone: 0422481217 Email: Yvehn@westnet.com.au

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760e

Form

Part C: Third party details and consent

I consent to the NDIA giving information about me (or the participant I am representing who is identified in Part A of this form), to the following people and/or organisations.

Note: In this part, you can provide the details of up to three people and/or organisations.

3.1 Person and/or organisation 1

Full name	Blake Sadler
Organisation	Forward Focused Group, Mobile:0478857815 Email: blake.s@ffg.net.au

3.1a Please mark the relevant boxes below to indicate the information you give consent to share with this person and/or organisation

My personal information

☐ My name, date of birth, NDIS participant number and NDIS participant status
☑ My address, email and phone number
☑ Details about my Carers
☑ Details about my Informal supports
☑ Details about my Service providers

My NDIS information

☑ The assessments and reports held about me by the NDIA
☑ My NDIA Access Request Form
☑ A copy of all parts of my current NDIS Plan
☑ A copy of my current NDIS Plan's Goals and Aspirations
☑ A copy of my current NDIS Plan's funding and support
☑ My NDIS Contact
☑ A copy of all parts of my previous NDIS Plan/s
☑ A copy of my previous NDIS Plan/s Goals and Aspirations
☑ A copy of my previous NDIS Plan/s funding and support

Any other information

☐ If so, please specify what this information is below:

none

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760e

Form

3.1b Please mark the relevant boxes below to indicate the purpose of your consent for us to share this information

☑ My NDIS Access request
☐ To prepare my first NDIS plan
☑ To review my NDIS plan
☑ To implement my NDIS plan
☑ To review a decision made by the NDIA
☑ To discuss an enquiry, complaint or feedback
☑ To discuss a provider payment query
☑ To discuss a provider quote
☑ To discuss an Administrative Appeals Tribunal request
☑ To discuss compensation I am or will be receiving
☐ Other. Please specify below:

none

3.1c Please mark the relevant box below to indicate the length of time you are providing the consent for

☐ Ongoing
☑ For the duration of my current NDIS plan
☑ For a set time ending (DD/MM/YYYY): 27/10/2025
☐ Once only

3.2 Person and/or organisation 2

Full name	Alex Bowers
Organisation	Forward Focused Group; Mobile: 0478890867 Email: alex.b@ffg.net.au

3.2a Please mark the relevant boxes below to indicate the information you give consent to share with this person and/or organisation

My personal information

☑ My name, date of birth, NDIS participant number and NDIS participant status
☑ My address, email and phone number
☑ Details about my Carers
☑ Details about my Informal supports
☑ Details about my Service providers

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760e

Form

My NDIS information

☑ The assessments and reports held about me by the NDIA
☑ My NDIA Access Request Form
☑ A copy of all parts of my current NDIS Plan
☑ A copy of my current NDIS Plan's Goals and Aspirations
☑ A copy of my current NDIS Plan's funding and support
☑ My NDIS Contact
☑ A copy of all parts of my previous NDIS Plan/s
☑ A copy of my previous NDIS Plan/s Goals and Aspirations
☑ A copy of my previous NDIS Plan/s funding and support

Any other information

☐ If so, please specify what this information is below:

none

3.2b Please mark the relevant boxes below to indicate the purpose of your consent for us to share this information

☑ My NDIS Access request
☐ To prepare my first NDIS plan
☑ To review my NDIS plan
☑ To implement my NDIS plan
☑ To review a decision made by the NDIA
☑ To discuss an enquiry, complaint or feedback
☑ To discuss a provider payment query
☑ To discuss a provider quote
☑ To discuss an Administrative Appeals Tribunal request
☑ To discuss compensation I am or will be receiving
☐ Other. Please specify below:

none

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f676(

Form

3.2c Please mark the relevant box below to indicate the length of time you are providing the consent for

☐ Ongoing

☐ For the duration of my current NDIS plan

☑ For a set time ending (DD/MM/YYYY): 27/10/2025

☐ Once only

3.3 Person and/or organisation 3

Full name	Rachael Thomas
Organisation	Forward Focused Group, Mobile: 0478886578 Email: rachael.t@ffg.net.au

3.3a Please mark the relevant boxes below to indicate the information you give consent to share with this person and/or organisation

My personal information

☑ My name, date of birth, NDIS participant number and NDIS participant status

☑ My address, email and phone number

☑ Details about my Carers

☑ Details about my Informal supports

☑ Details about my Service providers

My NDIS information

☑ The assessments and reports held about me by the NDIA

☑ My NDIA Access Request Form

☑ A copy of all parts of my current NDIS Plan

☑ A copy of my current NDIS Plan's Goals and Aspirations

☑ A copy of my current NDIS Plan's funding and support

☑ My NDIS Contact

☑ A copy of all parts of my previous NDIS Plan/s

☑ A copy of my previous NDIS Plan/s Goals and Aspirations

☑ A copy of my previous NDIS Plan/s funding and support

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760e

Form

Any other information

☐ If so, please specify what this information is below:

none

3.3b Please mark the relevant boxes below to indicate the purpose of your consent for us to share this information

☑ My NDIS Access request
☐ To prepare my first NDIS plan
☑ To review my NDIS plan
☑ To implement my NDIS plan
☑ To review a decision made by the NDIA
☑ To discuss an enquiry, complaint or feedback
☑ To discuss a provider payment query
☑ To discuss a provider quote
☑ To discuss an Administrative Appeals Tribunal request
☑ To discuss compensation I am or will be receiving
☐ Other. Please specify below:

none

3.3c Please mark the relevant box below to indicate the length of time you are providing the consent for

☑ Ongoing
☐ For the duration of my current NDIS plan
☑ For a set time ending (DD/MM/YYYY): 27/10/2025
☐ Once only

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760

Form

Part D: Your declaration

Please note: NDIS participants' aged 18 and over have other options instead of signing this consent form.

- If you are unable to sign in Part D, you may provide verbal consent to the NDIA, or
- You can direct someone aged 18 and over to sign (your 'delegate') in the presence of a witness.

If you direct a delegate to sign on your behalf, your delegate and witness needs to complete Part E. Otherwise, please sign, below.

By signing this consent form (please mark each box below):

☐ I understand I can obtain further information about how the NDIA handles my personal information from the Privacy Notice or Privacy Policy on the NDIS website. You can find this information on the NDIS website (ndis.gov.au/privacy).

☐ I understand I have given the NDIA consent to give information about me to the third party or parties I have listed at Part C on this form so they can take the identified action/s on my behalf.

☐ I understand I can withdraw or change my consent to share information and/or my permission for a third party to act on my behalf at any time.

Signature	YC Harrison
Name	Yvonne Harrison
Date (DD/MM/YYY)	12 / 02 / 2021

If you are not the participant, please mark the relevant box below to indicate your relationship to the participant

☐ Child representative

☐ Plan nominee

☐ Legally appointed decision maker (please provide the NDIA with details of this appointment if not already provided).

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760e

Form

Part E: Your delegate's declaration

Please note: This section is **only** to be completed if you, the participant, is unable to sign this form in Part D. Instead, your chosen 'delegate' must be aged 18 and over and can sign in the presence of a witness.

Signature of participant's delegate	
Name of participant's delegate	
Signature of witness	
Name of witness	
Date (DD/MM/YYY)	

Witness certification (please mark each box below):

☐ I certify this document was signed by the delegate in the presence of the person providing consent

☐ I certify that consent was provided freely and voluntarily; and

☐ I certify that the person providing consent has decision making capacity in relation to the provision of consent provided.

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f676(

Form

Privacy and your personal information

Collection of your personal information

The National Disability Insurance Agency (NDIA) would like some personal information from you to simplify your engagement with the NDIS. Any personal information you provide to the NDIA is safe under the National Disability Insurance Scheme Act 2013 and the Privacy Act 1988. You can also ask to see what personal information (if any) we hold about you at any time and can seek correction if the information is wrong.

Personal information use and disclosure

The NDIA will use your information to support your involvement in the NDIS.

The NDIA will NOT use any of your personal information for any other purpose, or disclose your personal information to any other organisations or individuals (including any overseas recipients), unless authorised by law or you provide your consent for us to do so.

The NDIA's privacy policy describes

- how we use your personal information.
- why some personal information may be given to other organisations from time to time.
- how you can access the personal information we have about you on our system.
- how you can complain about a privacy breach, and how the NDIA deals with the complaint.
- how you can get your personal information corrected if it is wrong.

You can find the policy at the NDIS website (ndis.gov.au/privacy).

Personal information storage

The NDIA uses an Australian Government computer system to store personal information. System users, other than NDIA staff, may at times be able to see your name when they perform program duties, however they can't record, use or disclose information, and they will not know if you become an NDIS participant. State or territory government officials may also have personal information access as part of the agreement between governments to assist the states and territories in their NDIS evaluation.

Doc ID: 9a11e706018b36959abe5b9364e1d58ea1f6760e

HELLOSIGN

Audit trail

TITLE	Consent for the NDIA to Share Your Information form (DOCX...
FILE NAME	FM Consent to Share DOCX (14).docx
DOCUMENT ID	9a11e706018b36959abe5b9364e1d58ea1f6760e
AUDIT TRAIL DATE FORMAT	MM / DD / YYYY
STATUS	Completed

Document history

SENT	**11 / 29 / 2021** 02:30:44 UTC	Sent for signature to Yvonne Harrison (Yvehn@westnet.com.au) from admin@ffg.net.au IP: 159.196.89.232
VIEWED	**12 / 02 / 2021** 02:02:54 UTC	Viewed by Yvonne Harrison (yvehn@westnet.com.au) IP: 220.253.160.11
SIGNED	**12 / 02 / 2021** 02:29:48 UTC	Signed by Yvonne Harrison (yvehn@westnet.com.au) IP: 220.253.160.11
COMPLETED	**12 / 02 / 2021** 02:29:48 UTC	The document has been completed.

Powered by HELLOSIGN

From: **Honey Nguyen** honey@ffg.net.au
Subject: **Valentines Day Cruisse on the Crystal Swan Sunday 13 February 2022**
Date: **12 Jan 2022 at 4:49:27 pm**
To: **yvehn@westnet.com.au**

Dear Yvonne ,

I am writing to invite you & family to spend **Valentines day on our Sea Dream Cruise Sunday 13th Feb 11am to 3pm** 💝🌹

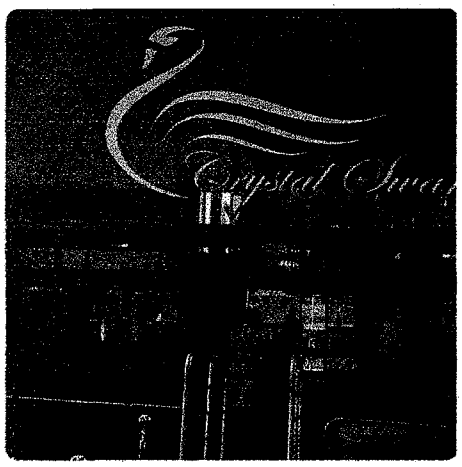
Let's make this year Valentines Day special , celebrating love, friendship and appreciation on the famous Crystal Swan cruise , we have

- Food Provided
- Custom made Valentines day Cake by Cake Paradise
- Performance by the one & only Michelle Harpist
- Comedian
- Romantic flower arrangements by Rosey Arrangements
- Belly Dancers
- DJ to play light music (please bring your own ear muffs if you require due to sound/noise sensitivity)
- Support Staff available on Cruise

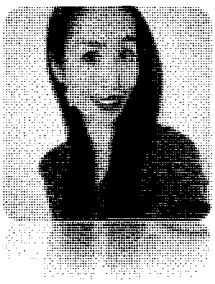
Price is $800 per person. Please let me know if you would like to attend and if you need further clarification.

Looking forward to hearing from you.









Honey Nguyen
PA To Founding Executive Director
at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478 894 041
E honey@ffg.net.au **W** https://
forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

FORWARD FOCUSED
YOU ARE OUR FOCUS

Registered NDIS Provider

From: Honey Nguyen honey@ffg.net.au
Subject: FFG SEA DREAM VALENTINES CRUISE - THANK YOU
Date: 16 Feb 2022 at 11:40:31 am

Dear Participants,

We are writing to thank you for attending our FFG Sea Dream Valentine's Day Cruise on the 13th of Feb 2022!

This year, we welcomed a record-breaking number of 127 people living with a disability on our Valentine's Day event. Your support has helped us continue to expand our mission to provide the community, resources, linkages, and education that people with all abilities require/face on a daily basis, and we have managed to thrive. We hope to see you again at next year's Women's Conference or one of the upcoming workshops listed on our website!

I would like to extend a heartfelt thank you to our donors, sponsors, friends and corporate partners and participants for the support you provided to us to make the day possible, and a dream come true for many.

Your contribution was crucial to the success of the event. You helped us put a smile on so many faces and this is priceless. Together We Can Change Lives.

Here's what a sponsors said about the event: "It is important for our family to make a difference in our local community. Your organization is making a tremendous impact on so many people while teaching us how be more accepting of one another and that we can lend a helping hand to make a difference a step at a time - Thank you for organizing such a great event!"

We plan to organize more events of this kind in the future and eagerly await the opportunity to partner with other providers together again. Please follow our social media pages for future events.

With all our gratitude – FFG Team

Honey Nguyen
PA To Founding Executive Director



at Forward Focused Group
A 2/210 Jull street, Armadale, WA 6112
(Next to Dome Cafe)



P 08-61177786 M 0478 894 041
E honey@ffg.net.au W https://
forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

FORWARD FOCUSED
YOU ARE OUR FOCUS

Registered NDIS Provider

From: **Vida Reid** vida@ffg.net.au
Subject: **RE: URGENT: FW: TERMINATION OF CONTRACT WITH FORWARD FOCUSED GROUP**
Date: **20 Sep 2022 at 12:03:09 am**
To: **yvehn@westnet.com.au**

Hi Yvonne,

I have personally spoken to you myself and ensured all your supports were in order at all times.

I thought we had built quite a good relationship and rapport as I ensured Janine looked after all your needs.

Can I ask for honest feedback as to why you have ceased services. I understand staff leave and at times it's unfortunate that conflict of interest is not adhered to.
I wanted to know the reason of your ceasing services with us so suddenly.

I would also like to pass on all your files and information to your new coordinator which is required for the continuous funding on your NDIS plan and to ensure it is not cut down with our support letter. Please let me know who your new coordinator is and I will happily pass on the info.

In the mean time should you need anything please don't hesitate to reach out 😊

Kind rega



Vida Reid
Founding Executive Director at Forward Focused Group
A 2/210 Juil street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177766 M 0478889648
E vida@ffg.net.au W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

FORWARD FOCUSED
Registered NDIS Provider
Workforce Australia

Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Terri Susan Roberts
Occupation	Support Coordinator
Address	Known to National Disability Insurance Scheme (NDIS)
Date	18 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Terri Susan Roberts and I am 29 years of age.

3. My residential address is known to the National Disability Insurance Scheme.

4. I used to work for Vida Reid.

5. I made a statement to Sian Harsley on the 11th of October 2022. I have since remembered further information in relation to Vida Reid, Forward Focussed Group (FFG) and Infinity Living Options. (ILO). I now wish to include this further information in my statement.

6. Whilst working for Vida at FFG, Vida wanted us to set up our Microsoft account and use our personal emails for this account. To cut costs and have more control over staff a Microsoft family account was used which added all the employees.

7. This then allowed Vida and Simon Reid to have full access to our personal accounts, location, emails, activity on google, Facebook any thing that was linked to my email accounts.

Signature

Witness

8. Vida called my superannuation provider "Host" to check on my superannuation payments she was going to contribute to, and whilst she was on the call changed the primary email address to her own: vida.r@ffg.net.au. I found this out by calling them because when I was trying to reset my password, I wasn't getting the emails, and when I asked them what the listed email address was, they read out hers.

9. Vida also has access to my personal identification and copy of my signature. I am scared that she is going to use this to pin everything on me or cause me more trouble. I'm worried she has my passport and Visa papers.

10. Vida also asked me and other staff members to copy and paste participants signatures over to service agreements and plan manager agreements. I was not comfortable with this, and I would cover myself and call the participants and ask for permission.

11. Participants were signed up to plan mangers without their consent. Vida used Plan Care and Provider Choice. They refused to pay invoices until they confirmed the charges with participants. Vida would then move them to Assist Plan managers.

12. I know that the following participants: Levi Jetoh, Levi Kenyon, Megan Goodwin, Maggie May, Seyed Hashimi, Kaisah Glare and James Loh, were signed up to Assist plan managers without their knowledge. They were all signed by Vida copying and pasting their signatures.

13. I would not say daily, but if you were not doing the work to the speed that Vida wanted, she would offer FFG staff her son's (Alexander Reid), Dexamphetamine. She would dish them out like lollies. Not everyone took them, but some did.

14. I have also attended at Vida's house for social events and have seen both Vida and Simon taking drugs. Vida would be on Alexanders Dexamphetamine; At their house for Simons birthday party there were bowls of weed, (marijuana) in the living room on the tables.

Signature Witness

15. There was a Beef and Beer festival being held in Perth 31st of October 2021 this was advertised on the ILO face book page. Vida wanted to charge $1500 per participant. I said that this was too much as the ticket was $50 and then the night in the hotel. Ozzy (I am not sure of his last name), he was a support worker at FFG. He spoke to myself and Leah about the festival. To cut costs he wanted to make changes. Vida mentioned in front of me that he would get a cut of the profits. After I left FFG I saw that she had gone ahead with this and charged way more than the $1500. I know this because I was told by a participant that they were harassing her to go on the cruise and that they wanted to charge around $6000.

16. I have also been aware of Vida creating corporate accounts in the name of FFG. She would either personally or get staff to call The Quest, Crown, and Rendezvous Hotels to make bookings for participants. They would be charged the standard room rate with a discount. The amount charged would be around $240 a night. Vida would charge 1:1 Respite/ STA $1775.00 per weekday. This price increases on the weekend.

17. I know this happened to participants Barry McDonald on at least one occasion. Levi Kenyon a few times, and David Germon.

18. Vida talked about respite and David's name was mentioned several times.

19. Simon Reid worked as a recovery coach for a few clients and on one occasion Simon flew to Kalgoorlie to see David whilst he was in rehab and charged David's plan for this.

20. I still have access to my Microsoft files which includes KPI reports which includes hours billed. Vida wanted us to bill participants at least 15 hours per day. After the 15 hours our bonus would be 50% of the charge.

21. Vida used computer programs called Careview and Xero. Careview is a therapy system software that bills in 15 min blocks. Careview records can be altered at any time after they have been created. Vida would ask us to call participants and see if they needed anything and then we recorded the hours using Careview. Xero is a

software program for invoicing and Vida would extract information from Careview and use that to bill via plan managers.

22. Vida would also claim support coordination level 2 and 3 from NDIS plans, even though she was not registered. Vida would bill from the Core for "capacity support coordination" through the core area of the plan when the Support coordination level 2 & 3 was exhausted.

23. I have emails, and information in relation to FFG that I have stored on a USB stick and can produce if required to support my statement.

24. After talking to Investigator Harsley there an incident on the 13 of October 2022. It was about 615 pm and I heard a loud knock at the door. I went to the door and a car drove away. It did a u-turn at the cul-de-sac, there were two people in the car and the windows were down. They yelled out something, but I could not make it out, it was aggressive. The car looked like it was a light blue Getz. It had a red P plate on it. I believe they were males, but I could not be sure. They have thrown some brown liquid that has hit the front of my house and my partners car, it smelt like shit,

25. The impact of working with Vida has totally stressed me out and I am feeling threatened and intimidated by her and Simon. I am physically impacted by this. I sought help from psychologists and am fully traumatised. I have quit my job as I believe that this has caused me post traumatic stress disorder.

26. 23rd of September 2022 I attended a VRO court case with my current employer, Nurse Assist 24/7. Vida attended this court case and portrayed to be a lawyer in the court room as she was not a part of the court case. The judge questioned this and requested Vida to remove herself from the court room. Vida's personal assistant, Honey filmed us (Nurse Assist 24/7 office staff) on her mobile phone as she left the court room.

27. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I

Signature Witness

have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Annexure TR001 previous statement taken on 11th October 2022 consisting of 6 pages.

Signature _____
Terri Roberts

Statement taken and signature witnessed by me about 7.46 p.m. on 18 October 2022 at Perth in Western Australia.

Signature _____
Fiona LANE Senior Investigator
Perth

ANNEXURE TR001

Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Terri Susan Roberts
Occupation	Support Coordinator
Address	Known to National Disability Insurance Scheme (NDIS)
Date	11 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Terri Susan Roberts.

3. My residential address is known to the National Disability Insurance Scheme.

4. I know Vida Reid.

5. I first met Vida Reid in 2019. At the time I was working for APM as a senior case manager. Vida was employed as a business manager that was transferred from the Belmont office to my office in Armadale. We worked together in 2019, until she went to APM Local Area Coordinator.

6. I didn't hear from Vida again, until October 2020 where she has contacted me via Facebook Messenger asking me how I was and telling me about her new business. She mentioned that she had a new NDIS business. At the time I didn't know much about the NDIS.

7. We keep in contact regularly between October and December. Eventually she called me on the phone and offered me a full time job. I can't recall the name of the position, but it was a managerial role for a team. I told her I wasn't keen and

Signature

Witness

referred her to Leah Norman, who we also worked with at APM. To my knowledge Leah then gained employment as a Services Manager.

8. Sometime in January 2021, I met with Vida at the Dome Café in Byford where she offered me the position of support coordinator and told me she would match my current salary and a do a bonus structure quarterly.

9. I have remained at APM till February 2021, where afterwards I accepted the position working for Vida as a support coordinator. I received my contract sometime after and saw that the role was a support worker/support coordinator. I called Vida about this and told her that I didn't want to be a support worker. She told me that was just the requirements of what she needed to put in the contract so that the NDIS could help her create her business. At this point in time I still did not know the name of the business as the contract appeared as though I was contracted to her. Vida also informed me that I needed an ABN to start work, I have gotten an ABN sometime later.

10. In February 2021, I commenced working for Vida. Sometime after I started working for Vida, I became aware that the name of the business was Forward Focused Group.

11. The first two days of my employment was recovery coach training, this was under her husband Simon's name for him to get the ticket. For the first few months we worked out of Vida and Simon's home in Mt Richon.

12. My duties were never clearly defined. Vida never educated us on the NDIS and instead she would stand in front of us, take our keyboards and tell us to watch and learn. One day I might be in the car for eight hours a day looking for SIL accommodation, and other days it would be in the office reading reports or doing various different training programs such as DSC support coordination.

13. In late March 2021, Vida asked all staff working for her to copy signatures from old service agreements onto new service agreements for participants. This did not sit well with me and made me feel uncomfortable. I was too fearful to say anything to

Vida about this as I had witnessed her belittle people on the team, and publicly humiliate staff on group chats.

14. Just prior to Vida opening the business office in Armadale in either April or May of 2021, Vida had a friend called Francesco from Modplex Construction that she wanted to go into business with. Vida had wanted to send referrals to him for home modifications for participants. These invoices were coming through at up to $7500 when the amount permitted in the participant's plan was $500. I questioned this with Vida and she told me it was cheap, and that the prices of the invoices were normal. Plan managers would contact me and tell me that the prices were not stated in the plan. Vida would take my computer and then write a response to them on by behalf from my computer. I would freeze and was too scared to say or do anything. Vida made me feel very intimidated and I was never sure of what lengths she would go to.

15. Vida would expect her staff to attend social events and if you didn't attend, she would remove you out of the work group chat and create a new group chat with other members to talk badly about you.

16. In June 2021, Vida approached Leah Norman and I at the Metro Hotel and asked us to go into business with her to create sister companies. She said that Leah would do one and I would do one, we didn't discuss it beyond that at that time.

17. Vida would discuss the idea daily after that.

18. In June 2021, my fiancé Pieter and I were invited to Vida's house for drinks and to create and discuss the business. Pieter was never meant to be involved. It was proposed that night by Vida. She said that you need a Director to create a business and it couldn't be Simon as he is a conflict of interest. She said she only needed Pieter's name for the sake of opening the business and he wouldn't need to do anything. Pieter has agreed to this. We both had very little understanding of what this meant.

19. That night we decided that the name of the business would be Infinity Living Options.

20. To my knowledge Vida organised everything and organised for herself to have 51% of shares of the business with me having 49%. Originally she suggested 50/50, but decided that because she was funding the start-up costs and business administration that she would get 51%.

21. Sometime after, we went to ANZ in Armadale to open a bank account for the business. Vida needed Pieter and my signature to open the company bank account. Pieter attended sometime after to sign.

22. Sometime after this, Vida put a non-qualified recovery coach in a Stayz Air BnB House in Fremantle with NDIS participant Levi Kenyon. One night Levi was showing signs of psychosis and was under the influence of alcohol and returned home where the unqualified coach was present. Levi has attempted to stab the coach. The coach then left the participant in the house in his own. To my knowledge, no action was taken to contact police or an ambulance. After I found out about the situation, I pulled the recovery coach into the office, recorded the conversation on my surface pro and was accompanied by Luke Hazelwood. After this conversation I contacted the Police for a voluntary admittance to mental health for Levi. Levi was self-managed and Vida would access his PRODA account and approve all of his payments.

23. Vida would purchase goods for participants such as washing machines and mobile phones and claim it as an act of goodwill however would charge it to the participant's plan.

24. I am aware that Vida would also receive 20% of all of her referrals to Modplex Constructions. Vida would openly discuss this in the office and around Francesco.

25. Vida would also use Simon as a recovery coach for participants, even though he was not completely qualified with the exception of a two day course. I am aware

Signature Witness

that one of the participants that Simon was a recovery coach for was David Gorman.

26. In October 2021, I am aware that Vida had a facelift. I am aware of this because she made her booking public in the group chat. I was given directive from Simon to see Vida for a plan review. The plan review was via the phone. She informed the NDIS that she had fallen over, hit her head and had to get multiple stitches. She said this was the result of a MS episode and needed more funding in her plan. The planner told her that she needed evidence. Vida stated that she had a medical report from Registered Nurse Ikram from Empowering Community Disability Services that had details of the incident.

27. I decided in October 2021 that I was going to resign. I felt that Vida put participants at risk, bullied and harassed staff members, the business had unethical practices and unpaid bonuses. I submitted my resignation on a Sunday and when I attended work on the Monday, Vida had packed up all of my belongings and walked me out of the office.

28. The same day I resigned Leah has contacted me and told me to check the bank account for the company and my emails as she said that Vida had been hacking personal emails.

29. I have logged on to the ANZ banking app on my phone and checked the account. I saw that just under $59,000 was transferred out. I called ANZ, and it took 24 hours for them to trace it. I was informed by ANZ that it had been deposited into the bank account for Forward Focused Group.

30. After this, Pieter has contacted Vida and instructed her to put the money back in the bank account and halt the business. Vida has then instructed Pieter to correspond only with her legal team.

31. I contacted the ANZ Fraud Team and Pieter also contacted Armadale Police and provided a statement.

32. I started to receive multiple calls from people that worked in the disability sector, expressing their concern that Vida was calling everyone directly and alleging that I was sacked for fraudulent activities and that the NDIS were investigating me for fraud. I am aware that Vida also called every participant and informed them of the same information.

33. I have since, had no direct communication with Vida or Simon Reid

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Terri Susan Roberts

Statement taken and signature witnessed by me about 7:40pm on 11 October 2022 at Baldivis in Western Australia.

Signature _____
Sian Harsley

Signature

Witness

Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Sarah-Jane Hammond
Occupation	Tax Consultant
Address	Known to National Disability Insurance Scheme (NDIS)
Date	18 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Sarah-Jane Hammond and I am 32 years old.

3. In March 2021, I was diagnosed with Autism by Dr Ritu Campbell, who encouraged me to take the diagnosis report of hers to the National Disability Insurance Scheme (NDIS). I then filled out the Access Request Form (ARF) after contacting the NDIS and went into the Rockingham NDIS branch and submitted my paperwork in person.

4. In April 2021, I was accepted as a participant of the NDIS and was given my NDIS number 431685148. My first plan was from 22 April 2021 to 27 July 2022 which was to the value of $61,325.91. My current NDIS plan is from 11 October 2022 to 10 October 2024 which is to the value of $36,895.60.

5. My understanding of the NDIS is to provide funding to pay for services in assisting and supporting me with everyday living. The NDIS is there to cover the Gaps that Medicare and other services cannot assist me with, I understand that it is not for daily living expenses.

Signature

Witness

C. Bruckner

6. In April 2021, my cleaner who I had built a great relationship with was no longer able to provide me with services. I needed to find my own provider and I ended up looking around to find someone else who I was able to trust to come into my home and clean.

7. In December 2021, my mum gave an extended family member who was Elanore Smith (Elanore), worked for a company called Forward Focused Group (FFG), my contact number. I received a called from Elanore and in this discussion, we spoke about what I required and the supports I needed. Elanore said she would give my contact details to someone at FFG.

8. In early February 2022, I received a call from a man called Alex Bowers (Alex) who worked for FFG, in this discussion we spoke about Alex coming to meet me at my home and discuss in further depth of what I was needing.

9. The following week Alex came to my home by himself, we discussed what services I was requiring, and I explained to him I needed cleaning and that this was my main priority. Alex said FFG could help and promised me he would organise cleaning services as they had a cleaner that was employed by FFG directly and had been vetted. In this meeting, I also signed an electronic version of the Service Agreement which I read through and there was cleaning services listed on there as I insisted on reviewing it before signing. On where I signed for the Service Agreement, Alex had little box connected to the laptop like the ones at the bank. I signed this box, but I do not remember ever receiving a copy of that Service Agreement. I do remember something I saw that said please sign.

10. About three weeks later in March 2022 after my meeting with Alex, life was busy, and I really needed the supports we spoke about, and I had not heard from him or the alleged cleaner he mentioned in our meeting. I called Alex and he said he has put me on the list for the cleaner to contact me and he didn't know why I hadn't heard from them. Alex also said I have also filled in this paperwork for you so you can receive Support Co-Ordination. I responded to him and said this was not what we discussed in our meeting, as I only wanted a cleaner and a small amount of yard

work to be done. His response was that was all in the works, we are getting a Support Co-Ordinator to assist with those services.

11. In April 2022, I called Alex from my honeymoon asking him what was happening with my cleaning services as nothing was happening and his response was that we never promised you a cleaner or any of these services. He said that we only said we would assist you in getting Support Co-Ordination. I said to him that my plan was due to be finished soon and I told him not to do anything with my plan and I would sort it out.

12. On the 26 April 2022, when my plan was due to end, I sent a text to Alex stating I will not be continuing services with FFG. Alex sent an email stating sorry to hear that I was leaving and that if I needed anything over the next 4 weeks to let him know. In this email Alex also states that I needed to pay $4,000 cancellation fee personally if I wanted to cease immediately. In this email a copy of a Service Agreement was attached, which was the first time I had ever seen this document.

ANNEXURE: I NOW PRODUCE SH001 A COPY OF THE TEXT MESSAGES SENT TO ALEX CANCELLING AGREEMENT WITH FFG.

ANNEXURE: I NOW PRODUCE SH002 A COPY OF THE EMAIL SENT TO ME ON THE 26 APRIL 2022 FROM ALEX AT FFG.

ANNEXURE: I NOW PRODUCE SH003 A COPY OF THE SIGNED SERVICE AGREEMENT DATED 3 MARCH 2022.

13. On 13 June 2022, I received an email from my plan manager stating there was an outstanding invoice for FFG for $4,003.04. I called FFG immediately and asked them what this invoice was for, their response was it was cancellation fees. I then responded and said my plan has ended and they could not be charging for anything. They said Alex would call me which I never heard from him, so I decided to forward it to the NDIS Fraud team. A few weeks later Alex called me and said we have reduced the amount to $553.27 and that I needed to have my plan manager pay it immediately. I logged into my NDIS portal and noticed the $4,003.04 invoice

had been dropped down to $553.27. I went back to Alex and told him I will not be approving this invoice as it is after my plan has ended and I never received any services from FFG. Alex then said I have to pay it or I will be taken to court, I then told him I reported FFG to NDIS and I would be happy to go to court. I told him that if there were any more questions that Alex would need to contact my plan manager as I was finding this stressful.

ANNEXURE: I NOW PRODUCE SH004 A COPY OF THE INVOICE MY PLAN MANAGER RECEIVED FROM FFG.

14. Since my discussions with Alex in June 2022, I have never spoken with Alex at FFG and I have never spoken to anyone else from FFG.

15. On 17 October 2022, Christine Bruckner (Investigator Bruckner) an investigator from the NDIS contacted me to ask about my claims for the NDIS. We had a conversation over the phone about these claims.

16. On 18 October 2022, Investigator Bruckner and I met in person, and she showed me a list of claims which were submitted by FFG. I was able to see on the list, claims for 'Capacity Building and Training in Self-Management and Plan Management' have been made by FFG. I can confirm I have never received these services or any other services from FFG.

17. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Sarah-Jane Hammond

Statement taken and signature witnessed by me about 9:25 am on 18 October 2022 at an address in Perth in Western Australia.

Signature _____
Christine Bruckner – Fraud Investigator
Perth Western Australia

Signature
Sarah-Jane Hammond

Witness
Christine Bruckner

Document created: 1.11.2020
Updated: 17.12.2021

FORWARD FOCUSED
YOU ARE OUR FOCUS

Forward Focused Individual Service Agreement
NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	Sarah-Jane Hammond

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	Sarah-Jane Hammond
Participant Plan Number	431685148
Service/plan Dates	22/04/2021 - 22/04/2022

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

FORWARD FOCUSED
YOU ARE OUR FOCUS

The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	Outcome
Assistance with Daily Life	01_134_0117_8_1 - Self-Management Capacity Building (Support Coordination)

4. Services

The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
Assistance with Daily Life	$6,509.00	100 Hours of Assistance with Daily Life

FFG Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

7. Occupational Safety and Health

An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed**.

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

a. your plan will be automatically adjusted to account for the increase in prices; and

b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

9. Provider Travel

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

We will charge you for travel in accordance with the NDIS Price Guide, as amended from time to time.

10. Changes to this Service Agreement

If changes to the Services, or their delivery, are required, FFG and the Participant agree to discuss and review this Service Agreement.

From time to time, FFG can make alterations to this Service Agreement due to changes in the policy and procedure of the NDIA.

FFG and the Participant agree that any changes to this Service Agreement will be in writing.

11. Ending this Service Agreement

Either Party may terminate this Service Agreement by giving the other Party one month's notice in writing.

12. Feedback, Complaints and Disputes

Feedback, complaints and disputes The FFG welcomes feedback.

How to raise your concerns and complaints:

1. Tell your support staff or your case manager. This is often the quickest way to address and resolve your concerns.
2. You can also raise your concerns and complaints with the Manager of the service.
3. FGG's website https://forwardfocusedgroup.com.au also has a Feedback Form you can complete. This form will be sent to the FFG's Manager Policy, Planning & Development.

If you are not satisfied or do not want to talk to this person, you can contact the National Disability Insurance Agency by calling **1800 800 110**, visiting one of their offices in person, or visiting the website **ndis.gov.au** for further information.

13. Goods and Services Tax (GST)

All prices are GST inclusive (if applicable).

For the purposes of GST legislation, you agree that:

The Services described in this Service Agreement are reasonable and necessary supports specified in the statement of supports in the Participant's NDIS plan currently in effect under section 37 of the *National Disability Insurance Scheme Act 2013*;

The Participant's NDIS plan is expected to remain in effect during the period the Services are provided; and

The Participant/Participant's representative will immediately notify the FFG if the Participant's NDIS Plan is replaced or the Participant stops being a participant in the NDIS.

14. Acknowledgement

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

Document created: 1.11.2020
Updated: 17.12.2021

Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.

Signed by:

Name: Sarah-Jane Hammo

[Participant / Participant's representative]

[Participant / Participant's representative]

Name: Alex Bowers

Signature: _____

Authorised person from FFG

Authorised person from FFG

Date: 03/03/2022

FFG contact details:

FFG Address	**2/210 Jull street, Armadale, 6112, WA**
Contact Name	Accounts
Contact Number	08-61177786 Accounts@ffg.net.au

FFG/NDIS Service Agreement check list

- ☑ I understand what is expected of me
- ☑ I understand what is expected from FFG
- ☑ I understand what services I have agreed for FFG to deliver
- ☑ I understand what services will be delivered by FFG and how they will be charged
- ☑ I understand what to do if I want to make changes to this Service agreement
- ☑ I understand what is expected of me if I want to make changes to my services
- ☑ I understand what is expected of me if I want to end this Service agreement
- ☑ I understand what to do if I have a problem and I know who to contact
- ☑ I have signed the Service agreement acknowledgement
- ☑ I have provided FFG a copy of my NDIS plan
- ☑ I have a copy of this Service agreement for my records or a copy will be sent to me

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

Document created: 1.11.2020
Updated: 17.12.2021

FORWARD FOCUSED
YOU ARE OUR FOCUS

I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: Sarah-Jane Hammond Signature: _____

[Participant / Participant's representative] ***[Participant / Participant's representative]***

Date: 3/3/2022

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

HELLOSIGN

Audit trail

TITLE	NDIS-FFG Service Agreement
FILE NAME	FFG - NDIS SERVIC...SUPPORT COORD.pdf
DOCUMENT ID	5761b90b70767fe987c98e5ce3e047ce0bcb2a0f
AUDIT TRAIL DATE FORMAT	MM / DD / YYYY
STATUS	• Signed

Document history

SENT	**03 / 03 / 2022** 02:32:10 UTC	Sent for signature to Sarah-Jane Hammond (sez.j.hammond.music@gmail.com) from admin@ffg.net.au IP: 159.196.89.232
VIEWED	**03 / 03 / 2022** 02:32:27 UTC	Viewed by Sarah-Jane Hammond (sez.j.hammond.music@gmail.com) IP: 120.16.172.72
SIGNED	**03 / 03 / 2022** 02:34:59 UTC	Signed by Sarah-Jane Hammond (sez.j.hammond.music@gmail.com) IP: 120.16.172.72
COMPLETED	**03 / 03 / 2022** 02:34:59 UTC	The document has been completed.

Powered by HELLOSIGN

Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Angela CUTLER
Occupation	House wife
Address	Known to National Disability Insurance Scheme (NDIS)
Date	18 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Angela CUTLER I am 58 years of age.

3. My residential address is known to the National Disability Insurance Scheme.

4. I have a diagnosis of Multiple Sclerosis. (M.S)

5. My M.S flares up and this impacts on eye sight, my balance, fatigue and it can impact on my gait.

6. I was with the M.S society and they told me that I needed to go over to the NDIS. I reluctantly agreed and gained access to the NDIS in 2019. My NDIS number is 431171334.

7. After becoming a participant with NDIS APM were our first point of call. I spoke to a person at APM called Cara in the Rockingham office. I was told I needed to get a support coordinator to help me with my NDIS plan. I was given the name of Forward Focussed Group (FFG). I am not sure who it was that recommended FFG.

Signature

Witness

8. I rang FFG and spoke to a person who said her name was Vida and that she owned the company.

9. Vida also told me that she has M.S but she was in remission. She told me that at one time she was in a wheelchair but has since become better.

10. Vida assigned a support coordinator to me, she didn't last long in fact there have been quite a few support coordinators over the time. They never seem to last long. I thought that I would be working with Vida but this was not the case.

11. I am plan managed and this allows me to not have to worry about bills.

12. Issues started with FFG when I received three invoices from FFG The first invoice INV-0890 is dated 18 March 2022 for $13,626.43 for STA for the dates 9/3/2021. I never went anywhere and do not know why I was charged for this service. The second invoice INV 0891 was dated 18 March 2022 for $12758.10 for access the community for 230 hours.There was a third invoice number 0762 but can't remember the value. I never used this service and my husband emailed FFG to query the invoices. I was told it was a clerical error, I do not know if this was repaid into my NDIS account although they emailed, that they would correct it.

    Annexure AC 001 invoice dated 18/3/2022 INV 0890

    Annexure AC 002 Invoice dated 18/3/2022 INV 0891

    Annexure AC 003 email dated 31/3/2022 to query account.

13. FFG have never supplied any supports at all other than support coordination and a O.T assessment. They have organised one respite, but it was not for the dates on those invoices.

14. The other issue with FFG has been in relation to home modifications. This has been a long process in which MODPLEX has claimed $9250.00 for Architectural Drawings, and $8750.00 for project management from my plan. Nothing has been done in relation to the home modifications other than the site visits and drawings

and materials planning. I have questioned this with plan managers and FFG but have been told by the plan manager that due to the way it was included in the plan that they had to pay it in one lot.

Annexure AC 004 quote PP210628 for design and project management.

15. I have not received any services in relation to the home modifications and do not understand how they can claim this from my plan.

16. Investigator LANE has asked me to comment on FFG claiming $8748.81 for assistance with self-care – "Nope "

17. Investigator LANE asked me to comment on FFG claiming for Capacity building and training in self-management – "What's that."

18. Investigator LANE has asked me to comment on FFG claiming provider travel – "Nope."

19. Investigator LANE has asked me to comment on FFG claiming for Assessment recommendation – other therapy – "They did come out but for no more than five hours, not the 48 hours that they have claimed."

20. Investigator LANE has asked me to comment on FFG claiming Access the community – this is the invoice in Annexure AC 002- "This never happened."

21. I have my own support people who take me out and do my housework and gardening. They have been arranged privately and not through FFG.

22. I would have signed a service agreement with FFG this was on a computer not on a piece of paper. I do not have a copy of this agreement.

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I

have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Angela CUTLER

Statement taken and signature witnessed by me about 1.10 p.m. on 18 October 2022 at Perth in Western Australia.

Signature _____
Fiona LANE Senior Investigator
Perth

ACC01 **T42**

FORWARD FOCUSED
YOU ARE OUR FOCUS

TAX INVOICE

Angela Cutler
4 Avignon Rtt
PORT KENNEDY WA 6172
AUSTRALIA

Invoice Date
18 Mar 2022

Invoice Number
INV-0890

Reference
NDIS 431171334

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_058_0115_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 09/03/2021-15/03/2021	5.00	1,728.29	GST Free	8,641.45
01_059_0115_1_1	STA And Assistance (Inc. Respite) - 1:1 - Saturday 09/03/2021-15/03/2021	1.00	2,202.21	GST Free	2,202.21
01_060_0115_1_1	STA And Assistance (Inc. Respite) - 1:1 - Sunday 09/03/2021-15/03/2021	1.00	2,782.77	GST Free	2,782.77
				Subtotal	13,626.43
				TOTAL AUD	**13,626.43**

Due Date: 24 Mar 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Angela Cutler
Invoice Number	INV-0890
Amount Due	**13,626.43**
Due Date	24 Mar 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

AC002 **T42**

FORWARD FOCUSED
YOU ARE OUR FOCUS

TAX INVOICE

Angela Cutler
4 Avignon Rtt
PORT KENNEDY WA 6172
AUSTRALIA

Invoice Date
18 Mar 2022

Invoice Number
INV-0891

Reference
NDIS 431171334

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
04_104_0125_6_1	Access Community Social And Rec Activities - Weekday Daytime 18/08/2020-16/03/2021 @ 7-8 hours per week	230.00	55.47	GST Free	12,758.10
				Subtotal	12,758.10
				TOTAL AUD	**12,758.10**

Due Date: 24 Mar 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Angela Cutler
Invoice Number	INV-0891
Amount Due	**12,758.10**
Due Date	24 Mar 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

1010

AC603 **T42**

Lane, Fiona

From: Angela Cutler <garyandangela@gmail.com>
Sent: Tuesday, 11 October 2022 11:11 AM
To: Lane, Fiona
Subject: Fwd: Finance and billing enquiries / Updated Plan
Attachments: image001.gif; image002.jpg; image003.png; image001.gif; image003.png; image002.jpg; 62ad3d65-bd2f-4f84-9828-ddb7a3a7d374.pdf; Invoice_INV0891_18032022.pdf

You don't often get email from garyandangela@gmail.com. Learn why this is important

---------- Forwarded message ---------
From: **Angela Cutler** <garyandangela@gmail.com>
Date: Thu, 31 Mar 2022, 1:42 pm
Subject: Re: Finance and billing enquiries / Updated Plan
To: Rejaul Alam <rejaul@ffg.net.au>

Hi Rejaul

A lot of correspondence there but essentially it should be attached 2 invoices that should be credited as they were totally unrelated to Angela.

Regards
Gary

On Thu, 31 Mar 2022, 1:15 pm Rejaul Alam, <rejaul@ffg.net.au> wrote:

> Hi Gary,
>
> Just tried calling you, but could not reach.
>
> Please call me back at convenience and we will have a chat.
>
> Thank you,
>
> **Rejaul Alam**
> Chief Financial Officer at Forward Focused Group

AB

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478895054

E rejaul.a@ffg.net.au
W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

From: Angela Cutler <garyandangela@gmail.com>
Sent: Thursday, 31 March 2022 12:34 PM
To: Vida Reid <vida@ffg.net.au>; Rejaul Alam <rejaul@ffg.net.au>
Cc: Danica H <danica.h@ffg.net.au>; Alex Bowers <alex.b@ffg.net.au>
Subject: Re: Finance and billing enquiries / Updated Plan

Hi Vida,

Updated NDIS plan attached.

Hi Rejaul,

Can you give me a call to discuss the incorrect invoices. Also can you please ensure we are cc'd in any invoicing to NDSP plan managers. Thanks.

Regards

Gary Cutler

0421188989

On Tue, 29 Mar 2022, 4:47 pm Vida Reid, <vida@ffg.net.au> wrote:

Hi Gary and Angela,

Hope you are both keeping well. Please let me know if you have received your new plan yet so that we can start the building process and ho9me modification.

Rejaul is our CFO who overlooks our finance department and Danica is our Accounts Manager.

I have raised your concerns re invoices and in this instance Rejaul is fixing this matter personally.

Moving forward any queries re finance please liaise directly with Danica 😉 but I am also available to you as always.





Vida Reid
Founding Executive Director at Forward Focused Group

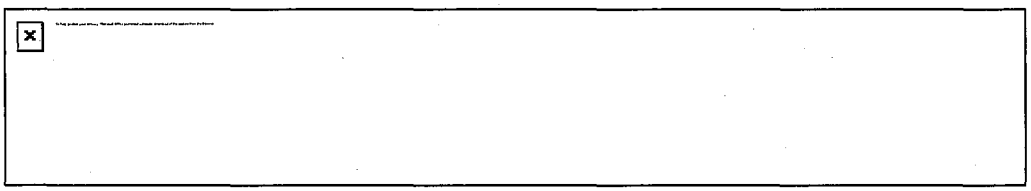
A 2/210 Jull street, Armadale, WA 6112

[Next to Dome Cafe]
P 08-61177786 **M** 0478889648

E vida@ffg.net.au
W https://forwardfocusedgroup.com.au



IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail



AC 004 **T42**

MODPLEX CONSTRUCTION

Quote

Quotation No: PP210628

Quotation Date: 10/03/2022
Valid For: Net Days
Job Address: 4 Avignon Retreat, Port Kennedy, WA 6172

Suite 20, I-eve' 5, 92 waiters Drive
Osborne Park WA 6017
P. 08 6156 0475
E- francesco@modplex.com.au
ABA: 38 634 961 836
ACN•. 634 961 836

Attention To:
National Disability Insurance Scheme (NDIS)
GPO Box 700
Canberra ACT 2601

DESCRIPTION	AMOUNT

Quote is for:-

- Design (Architectural Drawings) and Schedule of Trade Labour and Material Costs $9,250.00

- Project Management $8 ,750.00

Client: Angela Cutler
NDIS no: 431171334
Address: 4 Avignon Retreat, Port Kennedy, WA 6172

The amount is this quote is GST FREE

Quote Total: $18,000.00

Please note that this quotation is valid for 10 days from the date of the quotation and need to be confirmed in writing. We reserve the right to decline.

Thank you.

Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Marisha Lombard
Occupation	Medical Receptionist
Address	Known to National Disability Insurance Scheme (NDIS)
Date	20 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Marisha Lombard and I am 58 years old.

3. On 2 June 2020, I filled in an Access Request Form (ARF) to apply for access to the National Disability Insurance Scheme (NDIS). In July and August 2020, I provided further evidence of my disabilities from my doctors; Dr Sam Takla and Dr Julie Fletcher (Clinical Psychologist) who diagnosed me with Rheumatoid Arthritis, Major Depression and General Anxiety Disorder.

4. On 12 August 2020. I was accepted as a participant of the NDIS and was given my NDIS number 431429651. My first plan was from 28 August 2020 to 6 April 2021 which was to the value of $49,967.91. My current NDIS plan is from 14 October 2022 to 13 October 2024 to the value of $188,991.51.

5. My understanding of the NDIS is to provide funding to pay for services in assisting me with everyday living and my safety.

6. A few months after my first plan had started, I needed a Support Co-Ordinator and I found it really difficult to organise any supports. I was looking up support workers and I found Ahmed's details in the phone book who currently has two companies,

M. Lombard

C. Brückner

one is a not-for-profit organisation who provides support workers. After a few months using Ahmed's company as a support worker, Ahmed visited me to check how things were going and referred me to a lady called Vida for support coordination. Ahmed gave me her contact details and said Vida and Forward Focused Group (FFG) were really good, he said Vida used to work for the NDIS and could tell me what supports I could access.

7. On the same day Ahmed gave me Vida's number I called her straight away asking about Support Co-ordinators. In this conversation with Vida, she said she would arrange a time to come and visit me, that she has a child with a disability on the NDIS and she could help me with using my funding.

8. A few days later, Vida and another person who I don't remember came out to meet with me at my home. She explained again that she had worked for the NDIS and knew everything I would be eligible to receive supports for including things like a scooter, changes to my kitchen and she said it was her job to get me everything I was entitled to. She said she would organise the paperwork electronically so she can have permission with the NDIS to be able to coordinate services for me using my NDIS funding. Vida sent me a document to my email, during this meeting, for me to sign electronically, which I did on my phone. I know I signed a document giving Vida permission to go to NDIS on my behalf, but I cannot remember exactly what this document was. In this meeting Vida asked me if she could take a photo of me to put up in her office. I said to her yes, I would be okay with that. When I looked on the Facebook page for FFG I could see my photo all over Facebook which I did not give her permission to do.

9. After this meeting with Vida, the services I received were the Occupational Therapy, window and carpet cleaning and some gardening. When FFG contacted me my support coordinator changed frequently, and I received emails or calls from Blake, Janine Hall (Janine), Yasmine and an administrator named Kelly from FFG however I do not know who my support coordinator was supposed to be as it was always someone different who contacted me. The only time someone came to my house from FFG was when Vida came twice which was the first time and the second was when I told her I wasn't happy when Vida wanted $50,000 to start the home

M. Lombard

C. Bruckner

modifications I needed for my house. All other interactions with the support co-ordinators were over the phone.

10. I know Janine from FFG organised an Occupational Therapist to get me my bed and scooter through the NDIS. FFG also organised a physio to help me with exercises, but I only had the physio visit once a month.

11. At no stage did Vida from FFG provide the supports or services for any home modifications, there was only a couple of people coming out to do quotes. When Vida told me she wanted $50,000 to do these home modifications. I did not proceed with these home modifications based on the advice from my support worker Chloe, because she told me that is not how NDIS funding should work and I should not use my core budget to pay for home modifications if it is not included in my plan.

12. Sometime in September 2021, I was invited to some type of activity by FFG through an email where they sent it several times. I was unwell at this time and declined their invitation.

13. In about October 2021, I can remember Vida provided me with an opportunity to attend a Flower arrangement course, which I attended this one-day course for two hours. My support worker at the time Ahmed transported me to this one-day course.

14. In December 2021, I remember receiving an email inviting me to attend a New Years Eve Cruise where I responded to Vida and said yes, I would attend. Vida gave me the impression that this cruise is from her share of what she is charged, at no stage did she directly say this was going to be charged out of my NDIS funding. However, because of Covid I did not feel comfortable going, I decided not to attend this cruise. Vida told me that unfortunately it has been paid for already and it wouldn't be refunded and would come out of my NDIS funding.

15. In February 2022, I remember receiving an email and multiple phone calls from a Chinese girl inviting me to attend a Valentine's Day Cruise, where there was going to be entertainment, live acts and buffet food. I explained I did not want to go on the Valentine's Days Cruise because of the Covid restrictions which were still in place. I

M. Lombard C. Bruckner

was not under any impression the funding for this cruise was going to come out of my NDIS funding.

16. After receiving the Valentine's Day invitation February 2022, I received another invitation to attend a multicultural lunch where I had to buy food and they would take us back to a hotel, have a BBQ dinner and then the next day have breakfast. I did not go to this event as I was not well.

17. At some stage I had a conversation with Vida, suggesting I should change my plan manager. On 8 May 2022, Vida emailed me suggesting I should change my plan managers as my current plan managers are restricting my choice and control and were not paying for support's I am entitled to. Vida said that because your current plan managers were not paying the invoices it was not how it goes. Vida said that she knew how it worked as she worked for the NDIS.

18. In May 2022, Onboard Supports was recommended to me by Vida, and they are now my current plan managers. Onboard Supports emailed me on 26 May 2022 beginning services and CC'd in FFG staff member Janine Hall. I like Onboard Supports because they are prompt in paying my NDIS invoices.

19. On 13 September 2022, I sent an email titled 'termination of services' with FFG because I was not happy with the lack of services.

ANNEXURE: I NOW PRODUCE ML001: SENDING EMAIL STATING TERMINATING SERVICES WITH FFG.

20. After I sent the email on the 13 September 2022, I believe Yasmine rang me from a landline asking me to sign for renovations. I told her you're not supposed to contact me as I have terminated my services with FFG. After this conversation I never heard from anyone at FFG.

21. On 17 October 2022, Christine Bruckner an investigator from the NDIS contacted me to ask about my claims for the NDIS. We had a conversation over the phone about these claims.

M. Lombard

C Bruckner

22. On 20 October 2022, Investigator Bruckner and I met, and she showed a list of claims which I can see there are claims for STA which I understand to be Short Term Accommodation, I can say I have never stayed away from my home. I can see claims listed there mentioning 'Access Community Social And Rec Activities', I have never received any of these services from FFG.

23. In our meeting on the 20 October 2022, Investigator Bruckner showed me claims for Counselling services and Psychology services, I can say I have never received these services as all my services for Psychology is claimed through my mental health care plan through Medicare.

24. In our meeting on the 20 October 2022, Investigator Bruckner showed me claims for 'House and/or Yard Maintenance', I can say I have never received these services from FFG or The Hive.

25. In our meeting on the 20 October 2022, Investigator Bruckner showed me claims for 'Community Social And Recreational Activities', I can say I have never received these services from FFG or The Hive.

26. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Marisha Lombard

Statement taken and signature witnessed by me about 8.19 am on 20 October 2022 at an address in Perth in Western Australia. \

Signature _____
Christine Bruckner – Fraud Investigator
Perth Western Australia

ML001

-------- Original message --------
From: custardncream1 <custardncream1@bigpond.com>
Date: 13/9/22 13:04 (GMT+08:00)
To: Vida Reid <vida@ffg.net.au>
Subject: termination of services

Hi Vida,

effective immediately I aould like to cease my services with the company. thankyou for the service. I please do not wish to be contacted by anyone from the company

regards
Marisha

Sent from my Galaxy

NDIS Quality and Safeguards Commission

Forward Focused Group – Review of Evidence

NDIS Quality and Safeguards Commission

Assessment of complaints

Complaint ID	Date submitted	Affected participants	Witnesses	Description	Issues	Notes
4-34939517886	13/4/21	Nicole Kelleher	Rebecca Redick (LAC)	Alleged Vida Reid has been harassing Nicole via emails and Text messages. Tried to threaten, and constantly lying about arranging for services and not following through. Alleged Vida Reid made representations to LAC that Nicole cannot be self-managed, encouraged her to transfer funds from her children's plans to build her plan funding. LAC expressed concern of 'grooming' to 'control her plan'. Allegations refuted by Vida Reid.	• Fraud • Independence, choice and control	Ms Kelleher is no longer engaging FFG.
4-34950936944	26/4/21	Dee Lilpop	Natalia McGregor (advocate)	Vida's treatment of Dee during her short stint as her NDIS provider was unprofessional, insensitive and utterly appalling. Her method of engagement with Dee on all counts exacerbated Dee's levels of severe stress and anxiety to the point of concern over life. Alleges approach was about maximising plan funding, with plan funds exhausted quickly.	• Independence, choice and control	Ms Lilpop is noted by her advocate as being 'extremely vulnerable' and challenges can 'tip her over the edge'.
4-34993098686	27/4/21	James Harwood	Evie	Alleges Vida Reid billed James $1900 for support coordination that were in excess of funds available in plan. Vida Reid issued letter of demand re debt, triggering his psychosocial disability. Alleges that Vida has bullied James, inflated invoices for services that were not delivered or not of quality. Alleges Vida signed James with her husband Simon Reid for recovery coaching and without advising conflict of interest. Further alleges fraud of service agreement in that James never signed it yet it has his signature.	• Conflict of interest • Fraud • Independence, choice and control	Mr Harwood has a psychosocial disability and support coordinator claims Vida Reid's treatment has caused him trauma.
4-34955718354	27/4/2021	Natalie Smith	Namita Sharma	Alleges FFG took over support coordination without notice and not acting in best interests of Natalie. Alleges claiming for counselling which when challenged, FFGH submitted with a different date and for 3 hours despite the appointment being cancelled.	• Fraud	Natalie is 46, she has a mild intellectual ability but has severe mental health issues and a history of drug abuse.
4-35021929094	11/5/2021	Suzanne Hall	Dr George Adnrawis	Alleges that she received an invoice from her plan managed support coordinator (Suzanne believes it is Vida) from Forward Focused Group for $2905 for 29 hours of service despite the plan only starting on 15 March 2021. Alleges she received a visit from a 'recovery coach' (Simon Reid). Suzanne expressed she felt distressed after the meeting. Alleges that Simon tried to get her to do a meditative exercise, gave her whisky and sleeping tablets which she did not take. Advised that a debt collection agency has issued her with a notice of summons.	• Fraud • Conflict of interest	Suzanne is 58, has a diagnosis of bipolar, psychosis and border personality disorder with a history of sexual assault.
4-35234319303	7/6/2021	David Germon	Liana Diacicov	Concern was referred to the WA Complaints team via the NDIA Participant Critical Incidents team. Concerns relating to participant reportedly being homeless with wounds that require immediate medical attention. Alleged that Vida and planner (unknown)	• Neglect of PWD	David is 65, nature of disability unknown

			Dean Tingey	refused to refer David to emergency health services and that they are paying for David to stay in a hotel room.		
4-35488667601	6/8/2021	Andree Kemp		Alleges that support worker Wendy Jones, does not have the knowledge and experience to provide disability supports. Claimed that she was injured by Wendy as her wheelchair was 'rammed into a pot hole'.	• Safe and competent care	Andree is 60 years old, nature of disability unknown
4-35624028164	7/9/2021	Heran Tesfay	Ann Melbin	Alleges that FFG engaged in sharp practices to *"prey on desperate people"* with the promise of resolving housing issues. Alleged that documents were signed to change support coordinators and service providers without consent from Heran's mother.	• Honesty, integrity and transparency	Heran is 12 years old, nature of disability unknown
4-35719874533	29/9/2021	Barry McDonald		Alleges that he was overcharged and FFG has refused to release information to the new support coordinator until outstanding accounts are paid. Alleges that he was coerced into signing documents which inadvertently allowed FFG to *"share all his information – ongoing"*.	• Overcharging • Honesty, integrity and transparency	Barry is 63 years old, nature of disability unknown
4-35995462674	29/11/21	Mr Levi Kenyon	Ms Sukhi Tear (support coordinator)	Staff from Forward Focus Group (FFG), allegedly purchasing and supplying IP with alcohol and magic mushrooms. Additionally there was allegations that FFG was charging for services (support coordinator) when they were not registered to do so. Alleged that FFG are creating and approving their own invoices for payment by plan manager.	• Fraud • Abuse • No service agreement in place	Participant is a 17 year old male with autism, an intellectual disability, and comorbid anxiety disorder. He is able to communicate clearly but lacks decision-making capacity and due to his age, his mother Ms Tracey Kenyon is his guardian. Participant no longer engaged with FFG.
4-35746533524	6/10/2021	Amber Wilson	Paul Totten (PWD's spouse)	Alleges that Teri (support coordinator from FFG) is coercing Amber to sign documents Amber is not completely informed of. Teri alleges that Teri is copying Amber's signature to sign legal documents and sent back to the NDIS. Teri advises that he has an email from Teri, asking for Amber's permission to copy her signature over to documents.	• Coercion	Participant's age and nature of disability is unknown.
4-35782659574	14/10/2021	Levi Jetoh	Andeep Kaur (disability provider)	Alleges that FFG has been overcharging and providing inadequate supports and services. Alleges that FFG has been pressuring the plan manager to process invoices which are not in accordance with NDIS guidelines. Between 17/2/2021 to 31/3/2021, FFG allegedly charged Levi for 67.6 hours, $7270 on for support coordination. Due to the Levi's funding being exhausted, FFG had stopped claiming.	• Fraud	Participant's age and nature of disability is unknown.
4-35832912021	4/10/2021	Levi Jetoh	Sophie Grobler (practitioner completed the plan review)	Concern was referred by a PCI form from the NDIA. Multiple concerns regarding inappropriate decisions and actions undertaken by FFG, disputes involving support coordination, payment for services and terminating other service providers without approval from family.	• Potential financial abuse	Levi is 5 years old, nature of disability is unknown
4-35886177923 (CONFIDENTIAL)	26/10/2021	Levi Kenyon	Terri Roberts (former employee of FFG)	Alleges multiple incidents occurred regarding Levi, including: • Levi pulling a knife on Recovery Coach • Levi attempting to stab Troy (support worker) • Levi attacking his mum • Vida putting Levi in a hotel • Levi clogging toilets	• Fraud • Safe and competent care • Raise and act on concerns	Levi is 18 years old and was in jail at the time the complaint was raised.

				• Vida not agreeing to take Levi to an assessment Allegations include sharp practices, fraudulent behaviour and coercive behaviours. Alleges that she is working at another provider whom supports 4 ex-FFG participants who reported they have been contacted by FFG. Alleges that FFG tried to recruit Terri and her husband into the business arrangement in which Terri's husband would be the Director. Terri advised they declined due to conflict of interest.	• Honesty, integrity and transparency	
4-35898693315 (CONFIDENTIAL)	5/11/2021	Multiple unnamed participants	Sally Hansen (plan manager from Provider Choice)	Alleges that FFG is overcharging participants and possibly exploiting participants, fraudulent, aggressive and forceful conduct. Sally described that when staff from her plan management company had attempted to query the payments, FFG had responded aggressively. Alleges that participants has also been spoken to aggressively.	• Exploitation • Bullying	Sally cannot name all participants but advised there are 36 participants.
4-35930349418	11/11/2021	Georgios Taraganis	Liz Odi (participant's parent)	Alleges that participant's funding is being charged for services not provided by FFG (Vida). The plan managers (Prime Choice) received invoices from FFG charging 250 hours between September and October 2021 for cleaning services that were never provided. Alleges that she was also speaking to support coordinator Terri – Terri later informed Liz that Terri had left the company due to theft.	• Fraud	Georgios is 39 years old, nature of disability unknown
4-35941787479	12/11/2021	Levi Jetoh	Amandeep Kaur (Access Foundation plan manager)	Alleging multiple incidents involving overcharging, doubling of invoices and incorrect charges made on Levi's NDIS funding. Alleges that Vida has sent rude emails to Access Foundation, threatening and forcing them to pay the invoices that were not in accordance to NDIS guidelines.	• Fraud	Levi is 5 years old
4-35951735434	19/11/2021	Ella Galante	Eliane Galante (participant's mother)	Advised that the participant did not have any support coordination funding. However, FFG allegedly continued to send invoices for counselling and support coordination. When questioned about the invoices, FFG allegedly becomes defensive.	• Fraud	Unknown age and nature of disability
4-36000897784	30/11/2021		Tilly Walker (PlanCare)	FFG allegedly contacted PlanCare to advise that they will move all participants away from PlanCare, in retaliation of PlanCare highlighting that FFG overcharged by over $9000 on an invoice. Tilly advised that all calls are recorded and if required, she can provide recordings of calls from Vida.	• Overcharging • Independence, choice and control	Multiple unnamed participants
4-36075899570	10/12/2021	Matt Teague	Rhiannon Teague	Expressed dissatisfaction with Luke Hazelwood (from FFG). Rhiannon advised she had 2 meetings with Luke and later found out he was not registered and fire from FFG. Rhiannon allegedly received an invoice from FFG later for $3000. Allegedly received further invoices for services that have not been provided.	• Fraud	Matt is 13 years old, nature of disability unknown
4-36075899805	10/12/2021	Tyler White Kylan White	Kylie White (parent)	Alleges that FFG copied and pasted Kylie's signature onto a 3rd party consent form. Advised that Terri was the original support coordinator but no longer works for FFG. FFG supposedly notified Kylie of a breach but could not clarify what the breach was. Despite ceasing services, FFG keeps calling Kylie and left voicemail	• Overcharging	Tyler is 11, Kylan is 7, nature of disability unknown

				messages. Later, Kylie received an invoice for $48.50. FFG has since sent 6 reminders for Kylie to sign a new 3rd party consent form.		
4-36105464124	20/12/2021	Karina Taylor	Louise Hansen (disability provider)	Karina contacted Louise to discuss fees charged by FFG. Allegedly, FFG requires an upfront payment of $500 from Karina's support coordination funding to set up Recover Coach supports from FFG. Karina described that FFG was very convincing and that she felt like she was being "sucked in" and "scammed".	• Coercion	Karina is 43 years old, nature of disability unknown
4-36173019664	1/1/2022	Alana Campbell	Kerryn Wood (disability worker)	Kerryn advised that FFG advertised on Facebook, a boat cruise for participants at a cost of $7500 per person. Kerryn and Alana were able to reduce the price to $6500 This included an overnight stay at the Quest Hotel in Perth (including breakfast) in which they never received. Allegedly, people who attended the cruise included 10 participants, 10 support workers and the remainder were guests of Vida (family and friends). Alleged that the cruise was not accessible, did not follow COVID protocols and was falsely advertised. Alleged that Vida had been sending "lawyer's letter" to support workers and participants via Facebook regarding if they were to speak negatively of FFG. Videos, photo and screenshots have been provided as evidence.	• Fraud • Safe and competent care	Alana is 55 years old
4-36446689256	15/2/2022	Andrew Hahn		Matter was referred to the Commission through the NDIA PCI form. Alleged that Andrew has not found accommodation and there was no evidence supplied that the participant meets the requirements for STA. However, FFG had allegedly claimed $30,320.39 of the participant's funding.	• Financial abuse	Andrew is 39, nature of disability unknown
4-36622524794	11/3/2022	Gregory Clark	Rizzie Nel (COS)	Rizzie engaged FFG Recovery Coach early December 2021. Meeting was set with SC Blake Sadler and NDIS plan provided prior to meeting on 10/12 (where I referred to 100hrs of RC in plan) and again on 13/12 because Support Coordinator Blake Sadler lost the plan. Plan stated NDIA-managed across all budgets. Had meeting and Support Coordinator Blake S gave client a Service Agreement to sign – I stopped this and said he has an OPA (guardian) for this purpose and Service Agreement should be sent to OPA (all previously discussed prior to meeting as well and guardian details provided). Support Coordinator Rizzie prompted update on Recovery Coaching referral on 5 January. Advised by Blake S Recovery Coach Janine Hall will be in touch in coming days to commence services. Concerns are unclear. Appears to be in relation to payment integrity relating to invoices.	Unclear	Age and disability unknown.
4-37021633874	13/4/2022	Andrew Hanh	Joshua Davidson (advocate)	Alleges that FFG 'installed' a staff member in the SIL to pose as a resident to bully Andrew. Andrew allegedly received a threat of eviction from FFG. Andrew and advocate attended a meeting with Vida Reid and Rejaul Alam. Rejaul allegedly provoked Andrew, causing an 'autistic meltdown'. Vida allegedly escalating threats, intimidation and bullying of Andrew. Numerous invoices do not match services delivered.	• Harassment • False claims	Andrew is 39 years old, lives in a SIL home, ASD diagnosis

4-37155939596	19/4/2022	Andrew Hanh		Anonymous caller contacted NDSP Plan Managers Executive Manager who notified the Commission. Advised that both FFG and Hybrid Hive are being investigated by NDIA Fraud Taskforce. Caller advised they were previously a House Manager and Ops Manager for FFG. Alleged that Andrew does not have an existing service agreement with FFG and is being charged $6500 a week. Alleges that Vida Reid (Support Coordinator) and Director of FFG is trying to evict Andrew due to concerns that Andrew will report them. Alleging that Service Manager is making false claims in order to evict Andrew. Alleges a knife was provided to another participant in attempt to intimidate them into leaving the accommodation. Alleges that the lawyer is also involved, making 'fabricated claims' towards Andrew. Caller alleges that they overheard Vida telling someone over phone to 'take care' of Andrew.	• Fraud • Bullying and harassment	Andrew is 39 years old, lives in a SIL home, ASD diagnosis
4-37380907579	10/5/2022	Megan Goodwin		Alleged psychological abuse of Megan through multiple incidents. Suspicions that Vida installed a tracker on Megan's phone. Vida allegedly made multiple false claims regarding Megan's behaviour to the NDIS for more funding. Support workers allegedly telling Megan to double-dose on medication. Vida allegedly gifted Megan a knife and got another support worker to call the NDIS to advise that they were being threatened by Megan with a knife. When the complainant (anonymous) confronted the support worker, they advised that Vida had made them call the NDIS to claim more funding. Megan allegedly fearful for her safety.	• Fraud • Bullying and harassment	Megan is 32, diagnoses include ASD, ADHD and schizophrenia
4-37516351299 (CONFIDENTIAL)	12/5/2022	Meghan Goodwin	Donna Sampson (worker)	Alleges that Meghan was sexually harassed by a male support worker ('Ozzie') who opened Megan's bedroom door while Megan was naked. Alleges that Meghan was left with no food over Easter for 4 days. Alleges that Meghan was gifted a knife by Vida after Meghan threatened self-harm. States that incidents have led Meghan to sleeping in the streets. Believes nothing has been reported.	• Sexual harassment • Neglect	Megan is 32, diagnoses include ASD, ADHD and schizophrenia
4-37798459878	23/6/2022	Sarah-Jane Clulow	Ashlee Suckling (support worker)	Alleges that FFG is not providing appropriate PPE to staff when on shift with a COVID positive participant.	• Safe and competent care	Sarah-Jane is 35 years old, nature of disability unknown
4-37833786005	20/5/2022	Sarah-Jane Clulow	Tammy Mogg (next of kin)	Tammy advised that Sarah-Jane was COVID positive and staff were having to share PPE kits. A support worker raised the concern and was terminated by Vida (support coordinator), leaving Sarah-Jane without personal care. Described that Sarah-Jane is frightened to remove Vida since they are also linked to Hybrid Hive who provides Sarah-Jane with accommodation. Concerned that due to the connection between FFG and Hybrid Hive, Sarah-Jane may be left homeless. Alleges fraudulent claims submitted for services not provided. Advised that Sarah-Jane's place started 2-3 months ago but funding for support coordination has been depleted as FFG used $7500.	• Neglect • Fraud	Sarah-Jane is 35 years old, PTSD, depression, dystonia

4-37985025596	12/7/2022	Meghan Goodwin		Matter received through NDIA PCI form. Advised that Meghan lives alone in a house rented by FFG – this is not a SIL house and SIL is not part of Meghan's plan. Advised that in the last fortnight, Meghan has had support workers removed from her supports despite being charged for 6-8 hours a day for a support worker.	• Fraud • Neglect	Megan is 32, diagnoses include ASD, ADHD and schizophrenia
4-38279458621	10/8/2022	Meghan Goodwin	Eleanor Smith (plan nominee)	Matter received through NDIA PCI form. Allegations of sexual misconduct/abuse, Meghan feeling unsafe to be around her alleged abuser and accommodation. Further allegations of financial abuse of Meghan's funding – billing for therapy or financial counselling whilst Meghan is at TAFE. Alleges that there are no staff at the accommodation. Describes that Meghan is afraid to report the concerns to the Police until she is able to source alternative accommodation in fear of retaliation from provider if she reports.	• Sexual misconduct/abuse • Financial abuse/fraud • Neglect	Megan is 32, diagnoses include ASD, ADHD and schizophrenia
4-38456343454	4/9/2022	Unnamed		Allegations include changing line item codes after being told by plan managers that participant's funds are exhausted; sending invoices from 2021; providing NYE river cruises and charging for STA whilst telling participants all costs are covered by the NDIA; sending invoices for services that has not been provided. Advises that Vida Reid is the director of FFG, that she is *'untouchable and no one in the NDIA can do anything to her because she has MS'*. Advises that Simon Reid, Vida's husband, owns The Hive and *'does same things as FFG'*.	• Fraud	N/a
4-38468497640	5/9/2022	Dianne Andreeva		Complaint regarding FFG and Hybrid Hive (sister company). Alleges that provider had charged for services that were not provided between April-May 2022. Dianne states that the providers has not returned her attempts to contact. When Dianne was able to speak to the receptionist of FFG/Hybrid Hive, she was advised that when a plan expires, some of the services are invoiced and charged at a later date. Provider refused to provide case notes.	• Fraud	Dianne is 52 years old, mental health
4-38586369352	19/9/2022	Sarah-Jane Clulow		Matter was referred through NDIA PCI form. Sarah-Jane is in a legal dispute with FFG, namely Vida Reid. Alleges that she had been assaulted at her residence where WA Police was called – matter is now at court. Sarah-Jane had sent a letter to Hon. Bill Shorten, requesting assistance for legal representation in court against Vida. Sarah-Jane has expressed she was not happy with the Commission's outcome regarding her complaint.	• Abuse	Sarah-Jane is 35 years old, PTSD, depression, dystonia
4-38757947367	10/10/2022	Paul Gilbert		Alleged that FFG invoiced him $3k per week for supports (6 hours per day) that he did not receive. Advised that he signed a lease agreement for $220 per week but did not sign any service agreements for supports or services. Advised that it was Assist Plan Managers that had flagged these invoices, contacted Paul for authority to pay to which he declined. Expressed feelings of neglect and anxiety since FFG was not helping him find employment and upgrading his license (things FFG staff member Blake advised they could do). Alleged that the Director was calling him late at night to try to push respite and holidays onto him to use funding.	• Fraud	Paul is 30, ASD diagnosis

NDIS Quality and Safeguards Commission

Assessment of NDIA Statements

Witness	Date	Status	Description	Issues	Notes
Alexis Bott	12/10/2022	Participant	• NDIA number 431553491 – has bipolar disorder • Never signed a service agreement nor received services from FFG • Suspicious claims were made by FFG and she ordered her PMA to 'fire' FFG • Received emails and phone calls stating they were overwhelming • Spoke to Vida who said the claims were a clerical error and that it was due to another person having a similar name	• Fraud - FFG	
Bassam Haider	14/10/2022	Participant	• NDIA number 431524488 – has physical disorders associated with polio • Signed service agreement with FFG but his PMA received invoices from Hybrid Hive and FFG • Evidence of Honey Nguyen calling seeking authorisation of invoices. Discussions with Vida and Rejaul Alam who advised they will authorise on his behalf and issue to PMA • Refutes claims by FFG and Hybrid Hive for services not provided • Ceased his services in August 2022	• Fraud – FFG and Hybrid • CoI – FFG and Hybrid • Transparency and integrity – FFG and Hybrid	
Amber Wilson	12/10/2022	Participant	• NDIA number 430971573 – autism, physical and psychosocial disabilities • Nominee for her three children, James, Tobias and Yasmine • Executed service agreements with FFG for her children and received email requesting authority for FFG to copy and paste her signatures across service agreements which she did not respond to • Received support coordination from Terri Roberts • Evidence of claims from FFG for services not received, including positive behaviour support • Evidence of FFG harassment to participant in activities stating they are free and then charging • Cancelled services with FFG in November 2021 • Received email from Honey Nguyen thanking for attending Cruise on 13 February 2022 who then requested payment	• Fraud – FFG and Honey Nguyen • Transparency and integrity – FFG	• Need exhibits attached from NDIA
Amy Crane	13/10/2022	Participant	• NDIA number 430884288 – has psychosocial disability • Entered agreement with FFG • Vida Reid managed her plan through Manage Mode • Never received any supports from FFG other than a washing machine • Evidence of claims by Hybrid Hive yet she does not know if this entity	• Fraud – FFG, Hybrid and Vida Reid • CoI – Reid and FFG • Transparency and integrity – FFG, Hybrid and V Reid	• Mentions feelings of being suicidal as a result of fraud
Andrew Hahn	14/10/2022	Participant	• NDIA number 431173013 – autism, anxiety and depression • Entered service agreement with FFG in March 2021 • Vida Reid assisted a plan review which was successful • Blake Sadler managed her plan as SC • Evidence of FFG charging for respite to cover hotel accommodation • Vida Reid assisted her to move to SIL in Safety Bay • Evidence of fraud claims her services not delivered by Hybrid and FFG • Due to not receiving SIL funding, she was evicted from Safety Bay on 29 April 2022	• Fraud - FFG, Hybrid and Vida Reid • CoI – Reid and FFG	
Angela Cutler	18/10/2022	Participant	• NDIA number 431171334 – Has MS • Engaged FFG to provide SC • Evidence of charging for services not received	• Fraud - FFG	
Barry MacDonald	11/10/2022	Participant	• NDIA number 431516344 • Vida Reid provided him support coordination who appears to have managed his funds with PMA's • Vida Reid made application to Public trustee to assume guardianship which was dismissed • Ended services in September 2021 • Evidence of supports claimed but not delivered	• Fraud – FFG • Transparency and integrity – V Reid	

Witness	Date	Status	Description	Issues	Notes
Candice Yavarzadeh-Tehrani	12/10/2022	Guardian	• Mother of Ziah O'Reilly, NDIA number 431248901 who is L3 non-verbal • FFG referred her to a 'behaviour therapist' named Luke who Vida claimed was fired for not having relevant qualifications • Provides evidence of services claimed and not delivered • Provides evidence of charging for a phone call by Vida to see if they wanted to return to FFG	• Fraud – FFG and Vida Reid • Competency – FFG • Transparency and integrity – V Reid	
Danica Hall	14/10/2022	Staff	• Employed as Accounts Manager with no prior experience or training • Evidence of pattern by FFG of employing and firing quickly due to no qualifications or relevant experience • Evidence of charging $7,500 from NDIS plans for NYE cruise and being charged for support coordination to make calls to see if they wanted to attend the cruise • Evidence that Simon and Vida making $140,000 salaries in first year of operation • Evidence of charging for services not delivered and seeking new plans so expired plan funds can be exhausted • Evidence of Vida Reid's direct role in fraud • She was trained to send invoices not services not provided by Virginie who was Accounts Officer with FFG and then Hybrid Hive. • Evidence of Rejaul Alam engaging in fraudulent activities, including sending invoices known to be false	• Fraud – FFG, Hybrid, Vida Reid and Rejaul Alam • Transparency and integrity – V Reid • Benefiting from fraud – V and S Reid	
Gina Regali	11/10/2022	Guardian	• Mother of Angelus and Indiana Regali-Park, NDIS participant • Entered service agreement with FFG. Sought copy of service agreement but was never provided • Paid $6,000 out of their plans to attend NYE cruise for which support workers were promised. Advised 'adults were drunk' and there was no suitable food for her children. • Raised concerns with Blake Sadler concerning cruise that went unanswered • Provides evidence of claims made by Hybris Hive and The Hive for which she knows nothing of, nor re any services provided • Evidence of FFG/Rejaul Alam approving invoices on participants' behalf	• Fraud – FFG, The Hive, Hybrid Hive, Rejaul Alam • Complaints management – Blake Sadler, FFG • CoI – FFG • Transparency and integrity – B Sadler, FFG	
Hayden Trantham	13/10/2022	Participant	• NDIA number 431194185 – diagnosed with schizophrenia • Met with Blake and Vida and signed an agreement • Evidence of Honey Nguyen taking photos of him without consent • Evidence of inappropriate claiming and for services not delivered • Evidence of lunch at restaurant that was charged against his plan at which VIDA, Blake and Tanya were present. No mention was made at the lunch about his wellbeing, noting he had attempted suicide the week prior.	• Fraud – FFG • Privacy – Honey Nguyen	• Participant has attempted suicide
Hrimnir Benediktsson	12/10/2022	Participant	• NDIA number 431503216 – diagnosed with depression, anxiety, PTSD and insomnia • FFG engaged to provide recovery coaching and support coordination • Engaged with Simon and Vida Reid at FFG • Evidence that he knew nothing of Hybrid Hive yet invoices were paid against his plan	• Fraud – Hybrid Hive	
Janine Hall	15/10/2022	Staff	• Employed by FFG as support coordinator • Evidence of being instructed by Vida to manipulate participants to attend $7,500 NYE cruise • Evidence of being instructed to log hours and claim for support coordination, even when participant didn't answer calls • Evidence of specific fraudulent claims, including large STA invoices for services not delivered	• Fraud - FFG, Vida Reid	
Jerusha Jetoh	13/10/2022	Guardian	• Mother of Levi Jetoh who is an NDIS participant • Executed service agreement with FFG • Evidence of claims for services not provided as well as use of their signature with approval	• Fraud - FFG	
Jessica Smith	14/10/2022	Guardian	• Mother of Charlie Harrison, an NDIS participant • Executed service agreement with FFG • Raised concerns with Blake at FFG re claims by the Hive for which she had not heard of. Concerns were never actioned	• Fraud – FFG, Infinity Living • Complaints – B Sadler, FFG • CoI - FFG	

Witness	Date	Status	Description	Issues	Notes
			• Claims made against plan by Infinity Living Options for STA assistance respite. She states she has never heard of Infinity Living Options • Evidence of claims by FFG for services not provided or authorised		
Jonathan Shapeira	12/10/2022	Participant	• NDIA number 431201599 • Executed service agreements with FFG and Hybrid Hive • Dealt with Simon Reid at Hybrid Hive	• Control of Hybrid Hive – Simon Reid	
Joy Pickering	13/10/2022	Nominee	• Mother of Bejamin Davies, NDIS participant – acquired brain injury • Executed service agreement with FFG • Evidence of fraud by FFG	• Fraud - FFG	
Karen Marasigan	17/10/2022	Staff	• Head of Compliance for Zettai P/L • Evidence of alleged incompetence by FFG and Hybrid Hive in invoicing correctly • Evidence of claim activity for FFG and Hybrid	• Fraud – FFG and Hybrid • Competency – FFH and Hybrid	
Leah Norman	11/10/2022	Staff	• Support Coordinator for FFG • Evidence of coercion to overclaim for support coordination, claiming for services not delivered and claim funds from exhausted plans • Evidence if moving participants to PMA's that Vida 'didn't have an issue with'	• Fraud – FFG, Vida Reid • Choice and control – Vida Reid	
Lisa Mulock	17/10/2022	Nominee	• Mother of NDIS participant Bekki Mulock • Executed service agreement with FFG • Evidence of Honey Nguyen representing that an $800 valentines day cruise would come out of her plan • Evidence of services claimed but not delivered	• Fraud - FFG	
Liz Odi	11/10/2022	Participant / Guardian	• NDIA number 431064473, diagnosed with osteo arthritis • Guardian and nominee of Georgios Taraganis • Executed service agreement with FFG for Georgios • Moved into accommodation owned by Vida Reid • Evidence of claiming for services not provided/overcharging • Evidence of threats if invoices are not paid	• Fraud – FFG • Integrity – Vida Reid	
Marish Cimafranca	14/10/2022	Guardian	• Primary carer of daughter Miah Williams, an NDIS participant • Executed service agreement with FFG • Evidence of over claiming and for services not delivered • Evidence of complaints made and no response from FFG. When raised with Vida, explanation was that staff had left FFG	• Fraud – FFG • Complaints - FFG	
Marisha Lombard	20/10/2022	Participant	• NDIA number 431429651 – diagnosed with rheumatoid arthritis, major depression and general anxiety disorder • Evidence of Vida organising for her to manage her supports on her behalf • Signed agreement with FFG • She is unsure of who her support coordinator was meant to be • Evidence of being charged for NYE cruise she didn't attend due to COVID-19 • Representations made by Vida to change PMA as current were 'limiting choice and control' by not paying invoices • Evidence of claims made for services not provided • Ceased services from FFG in September 2022	• Independence and informed choice – Vida Reid • Fraud - FFG	
Meghan Goodwin	12/10/2022	Participant	• NDIA number 431576199 – diagnosed with ADHD and EUPD. • Executed service agreement with FFG • Evidence that a consent form is not signed by him • Lived in house owned by Hybrid or FFG at Safety Bay, house attached a Hybrid office • Evidence of environmental restrictive practice by removing knives in the house • Evidence of security guard naked in the house	• Fraud – FFG • Independence and informed choice – Vida Reid • Restrictive practices – FFG • Privacy - FFG	

Witness	Date	Status	Description	Issues	Notes
			• Evidence of photos of her on facebook alleging she was in cooking group which she has never heard of and without her permission. This led to her self-harming. • States she feels that Vida Reid was controlling her life and decisions. • Evidence of claims for services not provided		
Merina Craig	14/10/2022	Nominee	• Nominee of daughter, Janine Craig, an NDIS participant • FFG provided Support Coordination through 'Alex' • Vida Reid and Alex stated they would manage her invoices and supports. • States she has never heard of Hybrid which had claimed for over $70,000 • Evidence of claims for services not provided	• Fraud – FFG and Hybrid	
Monbo Jetoh	13/10/2022	Nominee	• Nominee for Levi Jetoh • Electronically signed service agreement with FFG • Evidence of his signature being placed on documents without his permission • Evidence of claims for services not delivered. When questioned, Vida Reid said it was due to a new girl and blamed Terri who was not present.	• Fraud – FFG	
Paul Gilbert	13/10/2022	Participant	• NDIS participant – diagnosed with autism • Evidence of claims for services not delivered • Evidence of complaints made with no response from FFG or Vida	• Complaints – FFG • Fraud – FFG, Hybrid	
Pieter Rousouw	11/10/2022	Staff	• Was director of Infinity Living Options and advised he wouldn't need to do anything		
Rhiannon Teague	11/10/2022	Nominee	• Mother of Max Teague, an NDIS participant, diagnosed with autism • Agreed for 'behaviour therapy'; through FFG • Evidence of claims for services that were not delivered • Engagement with Vida who instructed her to pay invoices and that she would assist in having Max's plan reviewed and funds increased (wouldn't happen until she paid invoices). • Felt bullied and that Vida explained that she was important and nothing could happen to her	• Fraud – FFG • Integrity/honesty – Vida Reid • Coercion – Vida Reid	
Sarah-Jane Clulow	11/10/2022	Participant	• NDIA number 430838840 • Received support coordination and psychology from FFG and Hybrid • Evidence of Vida questioning her capacity to review and approve invoices herself • Evidence of claims for services not provided • Evidence of Vida asking her to complete a fake COVID certificate to attend a cruise that was 'for people like her wgo had medical reasons for not being vaccinated yet' • Unvaccinated staff providing supports during COVID pandemic • Vida told her that Alex tried to kill himself because of her • Vida has threatened to for Simon to make her disappear and to go to Mark McGowan to have her funding removed and she would have to pay everything back	• Fraud – FFG, Hybrid	• Concerns of wellbeing
Sarah-Jane Hammond	18/10/2022	Participant	• Diagnosed with autism • Electronically signed service agreement with FFG • Evidence of being required to pay a 4000 cancellation fee to leave FFG that was reduced to $553 upon questioning it • Evidence of complaints raised with Alex Bowers that were not responded to • Evidence of claims for services not provided	• Fraud – FFG • Complaints – FFG • Integrity and honesty – Alex Bowers, FFG	
Terri Roberts	11/10/2022	Staff	• Support coordinator that was employed by FFG • Evidence of applying signatures for participants to new service agreements • Evidence of unsafe service delivery to Levi Kenyon by a recovery coach • Evidence of business practices to engage in fraud • Signing up participants to a PMA without their knowledge by Vida copying and pasting their signatures • Evidence of drug use by Simon and Vida Reid • Evidence of KPI's to charge plans for 15 hours per day	• Fraud – FFG, Vida Reid • Competency – Simon Reid • Independence and informed choice – FFG • Suitability – Simon Reid	

Witness	Date	Status	Description	Issues	Notes
Yvonne Harrison	18/10/2022	Participant	• NDIS number 431664181 – diagnosed with bipolar and major depression • Met with Simon Reid to discuss service needs but never heard from him again • Received recovery coaching from FFG • Provided evidence of receiving an invitation and a thank you for attending a cruise from Honey Nguyen for which she never attended • Evidence of claims for services never provided, including Hybrid	• Fraud – FFG, Hybrid	

IN THE MAGISTRATES COURT
HELD AT PERTH

B E T W E E N

Marek SVARC (PROSECUTOR)

and

Vida **REID** (ACCUSED)

STATEMENT OF MATERIAL FACTS
PURSUANT TO SECTION 35 OF THE CRIMINAL PROCEDURE ACT 2004

Prepared by:
National Disability Insurance Agency
111 Eagle Street
BRISBANE QLD 4000

DPP Telephone: 9264 7264
DPP Reference: 2022PR01618

OVERVIEW

1. On 19 October 2020, the National Disability Insurance Agency (**NDIA**) approved Forward Focused Group Pty Ltd, trading as Forward Focused (**FFG**), to provide services to National Disability Insurance Scheme (**NDIS**) participants in Western Australia. Mrs Vida REID (**V REID**) is the Director, shareholder and joint signatory to the company bank accounts. Mr Simon REID (**S REID**) is a shareholder, joint signatory to the company bank accounts and former Director.

2. Hybrid Hive Pty Ltd (**HYBRID**) is an unregistered provider of services to **NDIS** participants in Western Australia. The sole Director of **HYBRID** is **V REID**. The sole shareholder of **HYBRID** is The HIVE Pty Ltd (**HIVE**). The sole Director of **HIVE** is **S REID**. The shareholders of **HIVE** are **V REID** and **S REID**. The joint signatories for the **HYBRID** bank account are **V REID** and **S REID**.

3. It is alleged that, between 26 November 2021 and 22 June 2020, **V REID** and **S REID** caused 81 false 'payment requests' to be submitted against the funding of two disabled

persons participating in the **NDIS**, with the intention of dishonestly causing a loss to the Commonwealth.

4. As a result of these false claims, **V REID** and **S REID** received money reasonably suspected of being proceeds of crime to the sum of **$247,484.78.**

BACKGROUND

The NDIS, NDIS Participants and Participant Plans

5. The **NDIS** is a Commonwealth Government Insurance Scheme established to provide funding to Australians with disabilities. This scheme is administratively managed by the National Disability Insurance Agency (**NDIA**). Persons assessed as being eligible to participate in the scheme each are given an individual identification number. Participants may represent themselves, in the case of children, a nominee or guardian may be appointed and in some cases a primary carer will act as the nominee or spokesperson for an adult participant.

6. Participants of **NDIS** then negotiate with the **NDIA** to formulate a funding package to support the necessary and reasonable needs of the particular individual participant. This arrangement between the **NDIS** and the participant is documented and becomes the participant plan. Plans range in duration from three months to two years. In accordance with the wishes of the participant, the funds are either **NDIS** managed, plan managed by a nominated registered service provider or self-managed. Funds of self-managed plans are released directly to the individual and are out of the control of the Commonwealth. Monetary transactions on all other plans are managed through the Public Sector Collection and Disbursement System.

7. The **NDIA** maintains a Customer Relationship Management (**CRM**) database that records participant plan data.

Service providers

8. Participants are free to choose companies, businesses or individuals to provide the services they require. A facility is available through the **NDIS** for entities to become registered service providers. To achieve a certificate of registration, the applicant submits evidence to the Commission of their qualification /capabilities relevant to the services they wish to provide. A decision is then made whether or not to accept that entity as a registered provider of supports. Registered service providers are recorded on the **NDIS** webpage to assist **NDIS** participants to locate services and supports. Responsibility for the registration of service providers to operate in WA was held by the NDIA until 30

November 2020. On 1 December 2020, the provider registration process became the responsibility of the NDIS Quality and Safeguards Commission (**Commission**).

9. Participants are free to choose unregistered service providers if their funding is "plan managed". The provisions for "plan managed" funds are contained in Division 3 of the *National Disability Insurance Act 2013*. Unregistered providers must submit invoices to a registered provider who then submit claims directly to the **NDIA**. The **NDIA** pays funds to the registered provider who then forwards those funds to the unregistered provider.

Registration with NDIA

10. On 28 August 2020, Forward Focussed Group Pty Ltd was registered as a private company limited by shares. At the time of registration, the principal place of business was recorded as 96 Amethyst Crescent Mount Richin WA.

11. **V REID** has held the position of company Director from 28 August 2020 until now. **S REID** held the position of company Director from 28 August 2020 until 3 January 2021.

12. On 9 November 2020, a declaration of suitability, purportedly signed by **V REID**, was uploaded to the **NDIA** systems.

13. On 19 October 2020, Forward Focussed Group Pty Ltd was registered as a **NDIS** provider of supports for the provision of services in Western Australia.

14. On about 19 October 2020, in the course of establishing itself as an **NDIS** provider, Forward Focussed Group Pty Ltd nominated ANZ Bank account numbered 016002 640515184, bank account for the purposes of receiving payment from the **NDIA**. The sole signatory to this account is **V REID**.

15. On 21 February 2021, Forward Focussed Group Pty Ltd nominated ANZ Bank account numbered 016253 152003884 (**the FFG ANZ Account**), held in the name **S REID** and **V REID**, for the purposes of receiving payments from the **NDIA**.

Registration with PRODA

16. To submit claims for payment to the **NDIA**, registered service providers must gain access to the *myPlace* portal, which is a secure online system.

17. To gain access to the portal, each user must create a Provider Digital Access (**"PRODA"**) account in the name of an individual, similar to a *myGov* account. This system provides a secure electronic means of identity verification for persons to engage with the Department's Health Care system, including the **NDIS**.

PRODA Account in the name of MD Rejaul ALAM

18. On 31 May 2020, at about 12.57pm, an account in the name of MD Rejaul ALAM was created in **PRODA**, with username: '***alamreja'***. (**ALAM PRODA Account**). To authenticate the identity of the person creating the account, the details of the following three documents were provided.

    - Bank Card in the name of ALAM;
    - Western Australia Drivers Licence no 7429948 in the name of ALAM; and
    - Bangladesh Passport no BL0076718 in the name of ALAM.

19. On 30 May 2022, the user ***'alamreja'*** elected to receive **PRODA** verification codes via email 'rejaul@ffg.net.au'. The **PRODA** account cannot be accessed without these codes being entered. Each time a person logs on, a unique code is sent.

20. **NDIA** systems record that **ALAM** was nominated as an account manager for **FFG** between 27 October 2021 until 5 May 2022 and between 30 May 2022 until 4 October 2022.

Unregistered NDIS providers

21. On 17 June 2021, Hybrid Hive Pty Ltd was registered as a private company limited by shares.

22. **V REID** has held the position of sole company Director and sole Secretary from 1 December 2021 until now.

23. The sole shareholder of **HYBRID** is **HIVE**. The sole Director of **HIVE** is **S REID**. The shareholders of HIVE are **S REID** and **V REID**.

INVESTIGATION

24. Between 3 February 2021 and 18 April 2022, forty separate complaints were made to the NDIA in relation to the conduct and claiming patterns of **FFG** and **HYBRID**.

25. On 3 May 2022, the **NDIA** placed a "compliance lock" on **FFG**. This means that all further "direct" claims submitted by **FFG** would be manually processed.

26. Between 20 May 2022 and 1 September 2022, twenty nine separate complaints were made to the **NDIA** in relation to the conduct and claiming patterns of **FFG** and **HYBRID**.

27. On 1 September 2022 the **NDIA** commenced an investigation into the claims submitted by **FFG** and **HYBRID**.

28. To date, twenty-seven witness statements have been taken with investigations ongoing. Further witness statements are expected and further forensic accounting analysis is required.

Registered NDIS Provider Assist Plan Managers

29. ZETTAI Pty Ltd trading as Assist Plan Managers (**ASSIST**) is an NDIS registered provider that performs the services of a Plan Manager.

30. At various times, **ASSIST** has received invoices from **FFG** and **HYBRID** for services purportedly provided to various NDIS participants. **ASSIST** has then made claims to the **NDIA** for these services, recieving funds from the **NDIA**, and then forwarding these to **FFG** or **HYBRID**.

31. Karen MARASIGAN (**MARASIGAN**) is employed as the Head of Compliance at **ASSIST** and has provided a statement relating to invoices received from **FFG** and **HYBRID**, payment software utilised and remittance advices for payments. These remittance advices include the amounts of funds transferred to **FFG** and **HYBRID** and the account details.

32. **MARASIGAN** further states that she met with **V REID** in January 2022 to discuss with her recurring errors in invoices being submitted to **ASSIST**.

33. Michael PERIERA (**PERIERA**) is employed as the Senior Head of Service Delivery at **ASSIST** since 13 June 2022. **PERIERA** has provided a statement relating to his duties at **ASSIST** and his role overseeing the client care management team.

34. **PERIERA** further states that he is the only person who will submit fraud reports to the **NDIA**.

35. **NDIA** systems record that between 26 August 2022 and 21 September 2022, **PERIERA** submitted 11 separate reports of suspicious invoices submitted by **HYBRID** and **FFG**.

V REID Background

36. **V REID** was employed by the **NDIA** as a Local Area Coordinator between 19 March 2020 and 8 October 2020. As a former employee of the **NDIA**, **V REID** has knowledge of **NDIA** systems and processes. **V REID** is herself a participant.

FFG Employee Statement

37. Leah NORMAN (**NORMAN**) was employed by **FFG** from 14 December 2020 until October 2021. **NORMAN** also held shares in **HIVE** with **V REID** between 17 June 2021 and 19 December 2021.

38. **NORMAN** states that **V REID** encouraged her to inflate the amount of time she spent coordinating support services for participants.

39. **NORMAN** also states that **V REID** would "invoice bomb", meaning claiming for the residual funds left in a participants plan towards the end of the plan expiry. **NORMAN** states she fielded complaints from three separate plan managers about this type of claiming.

40. **FFG** and **HYBRID** are responsible for $1,485,527 in claims from expired plans. This represents 31% of total successful claims.

OFFENCES

Charge 1 – s135.1(3) General dishonesty – C*ausing a loss*

False claims for service to NDIS Participant Meghan GOODWIN

41. On 30 November 2021, the **NDIA** issued a new plan for Participant **GOODWIN** (**GOODWIN**). This occurred because of an administrative error in the plan issued on 15 October 2021.

42. On 30 November 2021, **CRM** records that at 14:57pm, **V REID** contacted the **NDIA** requesting a copy of the new plan for Participant **GOODWIN**. This plan was emailed to **V REID** by an **NDIA** employee.

43. On 30 November 2021, **CRM** records that at 15:24pm, three separate claims for payment were submitted using the **ALAM PRODA** Account, purportedly provided to **GOODWIN** by **FFG**. These claims were submitted against the plan expiring on 30 November 2021.

44. The claims submitted include 398 hours of house cleaning between 15 October 2021 and 30 November 2021. This equates to 8.46 hours of cleaning everyday for 47 days. The claims also include 225 hours of House and Yard Maintenance between 15 October 2021 and 30 November 2021. This equates to 4.8 hours of maintenance everyday for 47 days.

45. On 1 December 2021, the **NDIA** made a payment of **$43,004.60** into the **FFG** ANZ account. Bank records obtained from Australia and New Zealand Banking Corporation show that the joint signatories for the **FFG** ANZ Account are **V REID** and **S REID**.

46. Between 30 December 2021 and 20 April 2022, an unknown person using FFG software "Xero" submitted 14 separate invoices to **ASSIST** for services purportedly provided to **GOODWIN**.

47. Between 30 December 2021 and 20 April 2022, **ASSIST** submitted 14 separate claims to the **NDIA** for services purportedly provided by **FFG** to **GOODWIN**.

48. The claims resulted in the payment of $5,979.64 to **ASSIST**.

49. Between 31 December 2021 and 21 April 2022, **ASSIST** transferred **$5,979.64** into the **FFG** ANZ Account.

50. Between 25 January 2022 and 10 May 2022, an unknown person using **FFG** software "Xero" submitted 20 separate invoices to **ASSIST** for services purportedly provided to **GOODWIN** by **HYBRID**.

51. Between 25 January 2022 and between 10 May 2022, **ASSIST** submitted 20 separate claims to the **NDIA** for services purportedly provided by **HYBRID** to **GOODWIN**.

52. The claims resulted in the payment of $78,491.06 to **ASSIST**.

53. Between 27 January 2022 and 17 May 2022, **ASSIST** transferred **$78,491.06** into ANZ account 016253 154173449 (**the HYBRID ANZ Account**). Bank records obtained from Australia and New Zealand Banking Corporation show that the joint signatories for the **HYBRID** ANZ Account are **V REID** and **S REID**.

Claims for services not provided

54. **GOODWIN** has provided a witness statement that she did not receive the services purportedly provided in these claims.

55. An **NDIA** forensic accountant has examined the statement of **GOODWIN**, the statement of **MARASIGAN**, NDIA payment records, the **FFG** ANZ Account statements and the **HYBRID** ANZ Account statements. The **NDIA** forensic accountant has calculated that the value of claims submitted where no service was provided is **$127,475.30**.

Charge 2 - s400.9(1) – ***Dealing with property reasonably suspected of being proceeds of crime***

Proceeds deposited into the Account of V REID and S REID

56. As a result of these false claims for services, **V REID** and **S REID** received money reasonably suspected of being proceeds of crime to the sum of **$127,475.30**.

Charge 3 - s135.1(3) General dishonesty – C*ausing a loss*

False claims for service to NDIS Participant Sarah-Jane CLULOW

57. Between 24 November 2021 and 22 April 2022, an unknown person using **FFG** software submitted 30 separate invoices to **ASSIST** for services purportedly provided to **NDIS** participant Sarah-Jane CLULOW (**CLULOW**).

58. Between 24 November 2021 and 22 April 2022, **ASSIST** submitted 14 separate claims to the **NDIA** for services purportedly provided by **FFG** to **CLULOW**.

59. The claims resulted in the payment of $86,192.60 to **ASSIST**.

60. Between 15 December 2021 and 26 April 2022, **ASSIST** transferred **$86,192.60** into the **FFG** ANZ Account.

61. Between 25 May 2022 and 22 June 2022, an unknown person using **FFG** software submitted 14 separate invoices to **ASSIST** for services purportedly provided to **CLULOW**.

62. Between 25 May 2022 and 22 June 2022, **ASSIST** submitted 14 separate claims to the **NDIA** for services purportedly provided by **FFG** to **CLULOW**.

63. The claims resulted in the payment of $33,816.88 to **ASSIST**.

64. Between 26 May 2022 and 23 June 2022, **ASSIST** transferred **$33,816.88** into Westpac Account 036032 736973 (**the FFG WESTPAC Account**). Bank records obtained from Westpac Banking Corporation show that the joint signatories for the **FFG** Westpac Account are **V REID** and **S REID**.

Claims for services not provided

65. **CLULOW** has provided a witness statement that she did not receive the services purportedly provided in these claims.

66. An **NDIA** forensic accountant has examined the statement of **CLULOW**, the statement of **MARASIGAN**, NDIA payment records, the **FFG** ANZ Account statements and the **FFG** WESTPAC Account statements. The **NDIA** forensic accountant has calculated that the value of claims submitted where no service was provided is $120,009.48.

Charge 4 - s400.9(1) – *Dealing with property reasonably suspected of being proceeds of crime*

Proceeds deposited into the Account of V REID and S REID

67. As a result of these false claims for services, **V REID** and **S REID** received money reasonably suspected of being proceeds of crime to the sum of **$120,009.48**.

ARREST OF the ACCUSED

Search Warrant

68. On Wednesday 19 October 2022, members of the AFP, Services Australia and NDIA executed a search warrant at 96 Amethyst Crescent, Mount Richon.

69. At approximately 9:01am, V REID was arrested by Western Australian Police by virtue of a Warrant issued under the Criminal Procedure Act 2004 (*WA*) and advised of the caution and rights pursuant to Part 1C of the Crimes Act (*CTH*).

70. At around 09:41hrs, V REID was offered the opportunity to participate in an electronically recorded interview in relation to the alleged offences. V REID declined and stated that she does not wish to speak with NDIS investigators.

71. Shortly thereafter, Vida REID was transported to the Amadale Police Station.

72. A search of the premises is continuing.

Charging and Bail

73. V REID was charged and processed at the Amadale Police Station.

74. V REID appeared in Armidale Magistrates Court of WA on 19 October.

75. There is no tape or videotape recording of conversations between the accused and a person in authority in the possession of the prosecution.

DATED: 19 October 2022

NDIS Quality and Safeguards Commission

Our ref: EC22-002103

Mr Simon Reid
96 AMETHYST CRES
MOUNT RICHON, WA 6112

By email: cheechybrown@hotmail.com

Opportunity to make submissions about a proposed banning order under section 73ZN of the *National Disability Insurance Scheme Act 2013* (Cth)

I am a delegate of the Commissioner for the NDIS Quality and Safeguards Commission (the Commission).

Section 73ZN of the *National Disability Insurance Scheme Act 2013* (Cth) (the NDIS Act) gives me, as the Commissioner's delegate, the power to make an order known as a banning order. A banning order can prohibit or restrict a person from being involved in the provision of specified supports or specified services to people with disability.

Proposed banning order
I have formed the view that it may be appropriate in all the circumstances to make a banning order prohibiting you for a period of five (5) years from being involved in the provision of supports or services to people with disability.

The basis for this view is that I reasonably believe that you are not suitable to be involved in providing supports or services to people with disability. I am therefore empowered to make a banning order against you under section 73ZN(2)(a)(iii) of the NDIS Act.

The purpose of this letter is to inform you of relevant facts and the matters that are of concern to me and to give you the opportunity to make submissions about this before I make a final decision.

Relevant concerns
As a result of information provided to the Commission and the Commission's own enquiries, I understand the following:

1. You are the sole director and shareholder of Hybrid Hive Pty Ltd and have been a director since 17 February 2022.
2. On 19 October 2022, Ms Vida Reid (V REID), your wife and business partner, was arrested and charged with four offences, being:
    a. Between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, V REID dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).
    b. That between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, V REID dealt with money or other property, it being reasonable to suspect

that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).

c. That between 30 November 2021 and 08 April 2022 at Perth in the State of Western Australia, V REID caused payment requests to be submitted, which he knew to be false, to the National Disability Insurance Agency (NDIA), a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1 (3) of the Criminal Code (Cth).

d. That between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, V REID caused payment requests to be submitted, which he knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1 (3) of the Criminal Code (Cth).

3. The statement of material facts in support of these charges relevantly notes:

a. Between 26 November 2021 and 22 June 2022, V REID and S REID caused 81 false 'payment requests' to be submitted against the funding of two NDIS participants, with the intention of dishonestly causing a loss to the Commonwealth. As a result of these claims, V REID and S REID received money reasonably suspected of being proceeds of crime to the sum of $247,484.78.

b. Between 26 August 2022 and 21 September 2022, Zettai Pty Ltd trading as Assist Plan Managers submitted 11 separate reports of suspicious invoices submitted by Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd.

c. V REID encouraged an employee, Ms Leah Norman (Ms Norman) to inflate the amount of time she spent coordinating support services for participants. Ms Norman alleges V REID could claim for residual funds left in a participants plan towards the end of the plan expiry. Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd are responsible for $1,485,527 in claims from expired plans. This represents 31% of total successful claims.

d. Between 30 November 2021 and 10 May 2022, claims to a combined total of $127,475.30 were submitted by Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd against the NDIS plan of Ms Meghan Goodwin (Ms Goodwin). These amounts were paid into Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd accounts for which V REID and S REID are the joint signatories. Ms Goodwin has provided evidence that she did not receive the services purportedly provided in these claims.

e. Between 24 November 2021 and 22 June 2022, claims to a total combined value of $120,009.48 were submitted by Forward Focused Group Pty Ltd against the NDIS plan of Ms Sarah-Jane Clulow (Ms Clulow). These amounts were paid into Forward Focused Group Pty Ltd accounts for which the joint signatories are V REID and S REID. Ms Clulow has provided evidence that she did not receive the services purportedly provided in these claims.

4. V REID is subject to bail conditions, including a protective bail condition that V REID is not to communicate directly with any person who is considered to be a current or past recipient of services provided by Hybrid Hive Pty Ltd or Forward Focused Group Pty Ltd about the content of any evidence they may give, or be able to give, in the prosecution of these charges.

5. Staff of Forward Focused Group Pty Ltd undertook work on behalf of and represented Hybrid Hive Pty Ltd, including in respect of the delivery of supports and services and the submission and resolution of claims for purported supports and services against NDIS plans.

6. Information held by the Commission identifies that Hybrid Hive Pty Ltd, an entity for which you have responsibly and authority over its activities, has engaged in the following conduct, in contravention of the NDIS Code of Conduct and which presents a range of risks to NDIS participants, including through exploitation and undermining their independence, choice and control:

    a. Whilst NDIS participants in most instances executed service agreements with Forward Focused Group Pty Ltd, NDIS participants' plans were claimed against by Hybrid Hive Pty Ltd, without knowledge of any service delivery by both providers, nor with their consent. More specifically:

        i. The following NDIS participants entered into a service agreements with Forward Focused Group Pty Ltd. Claims were made by Hybrid Hive Pty Ltd against their NDIS plans, in circumstances in which the participants or their nominees had not executed a service agreement with Hybrid Hive Pty Ltd and where the claims had not been authorised by those NDIS participants or their nominees:

            - Mr Bassam Haidar (Mr Haidar);
            - Ms Amber Wilson (Ms Wilson), nominee for her children's NDIS plans;
            - Ms Gina Regali (Ms Regali), nominee for her children's NDIS plans;
            - Mr Hrimnir Benediktsson; and
            - Ms Jessica Harrison, nominee for child's NDIS plan.

        ii. Ms Regali further raised concerns with Mr Blake Sadler (Mr Sadler), a support coordinator employed by Forward Focused Group Pty Ltd, concerning invoices for services not delivered. Mr Sadler sent a text to Ms Regali stating Forward Focused Group Pty Ltd was 'changing the dates on the December Hive invoice'.

        iii. Ms Jessica Harrison further raised her concerns with Mr Sadler, who advised her that 'it was fine' and to tell her plan manger to pay the invoices. Mr Sadler also advised that he would find out why Hybrid Hive Pty Ltd was claiming against Charlie Harrison's plan, for which Mr Sadler did not provide any further information.

        iv. Claims were fraudulently submitted by and paid to Forward Focused Group Pty Ltd and/or Hybrid Hive Pty Ltd for services not delivered, including in respect of:

            1. The NDIS plans of Ms Wilson's children for capacity building and training in self-management and plan management and house cleaning and other household activities;
            2. The NDIS plan of Ms Sarah-Jane Clulow (Ms Clulow), specifically:
                - Invoice 1217 for $3,127.50 which was questioned by Ms Clulow. V REID advised there was an extra charge for tax, above the $2,470.00 amount Ms Clulow claims is the correct figure;
                - All claims for short term accommodation;

- All claims by Forward Focused Group Pty Ltd for community access, house cleaning, assistance with self-care activities and community participation;
- All claims for dates in which other providers had already claimed;
- All claims for self-management building capacity;
- All claims for psychology during March and April 2022, excluding one hour per week in March 2022;
- Invoice 1146-1; and
- Invoice 1375-1.

3. The NDIS plan of NDIS participant, Seyed Yunus Hashimi, for services allegedly delivered whilst he was overseas;
4. The NDIS plan of NDIS participant, Mr Andrew Hahn (Mr Hahn), for psychosocial counselling, assistance with self-care activities and capacity building and training in self-management and plan management; and
5. The NDIS plan of NDIS participant, Ms Angela Cutler, for assistance with self-care, capacity building and training in self-management, assessment recommendation – other therapy and community access.

Particulars of further information that the Commission holds in respect of falsified and inappropriate claims made by Focused Group Pty Ltd and/or Hybrid Hive Pty Ltd against the NDIS plans of other NDIS participants are as follows:

NDIS Participant	Description of fraudulent claims
Barry MacDonald	Household cleaning and other household activities claimed to have been delivered between 1 May 2021 and 17 July 2021
Bassam Haidar	Claims for house cleaning, provider travel, access to community social and recreational, counselling, self-managed capacity building, short term accommodation or respite, assistance with self-care, assistance with decision making and low-cost AT – personal care and safety.
Ziah O'Reilly	Claims for training in plan management and financial management, assessment recommendation – therapy and support coordination
Angelus Regali-Park	Claims for short term accommodation, self-management capacity building, support coordination and house cleaning and other household activities.
Indiana Regali-Park	
Hayden Trantham	Claims for assessment recommendation – therapy and/or training on 12 to 14 August 2022, counselling, psychosocial recovering coaching and provider travel.

NDIS Participant	Description of fraudulent claims
Hrimnir Benediktsson	Claims for assistance with self-care activities, access community, social and rec activities.
Levi Jetoh	Claims for counselling, delivery of health supports by a registered nurse – weekday daytime for 25 to 26 May 2021
Charlie Harrison	Claims for self-management capacity building, psychosocial recovery coaching, counselling, assistance with self-care activities, specialised behavioural intervention support, assessment recommendation therapy and/or Training, skills development training, innovative community participation and support coordination.
Ben Dines	11 hours of household cleaning
Bekki Mulock	62 hours of household cleaning totalling $1,556.20 and $1,528.30, support coordination
Georgios Taraganis **Liz Odi**	250.8 hours of house cleaning between 15 September 2021 and 26 October 2021 totalling $12,590.16, 178.88 hours of house cleaning between 20 and 31 August 2021, self-management capacity building including invoices 124-1 and 125-1, establishment fee for personal care/participation including invoices 519-1 and 545-1, counselling including invoices 313 and 277-1, assistance with self-care activities including invoices 277-1 and 273 and self-management capacity building under invoice 396.
Miah Cimafranca	Claims for provider travel, assessment recommendation therapy and/or training and counselling.
Marisha Lombard	Claims for short term accommodation, access community, social and rec activities, counselling, psychology services and house and/or yard maintenance.
Meghan Goodwin	Claims for self-managed building capacity, house and yard maintenance.
Janine Craig	Claims for capacity building and training in self-management and plan management, assistance with decision making daily planning and budgeting skills, development and training and assessment recommendation therapy or training – counsellor.
Paul Gilbert	Claims for skills development and training and support coordination.
Sarah-Jane Hammond	Claims for capacity building and training in self-management and plan management.
Yvonne Harrison	Claims for psychosocial recovery coaching, services claimed to have been delivered on weekends and public holidays, claims for all services prior to December 2021,

NDIS Participant	Description of fraudulent claims
	claims for cleaning services, short term accommodation, employment support and more than 4 hours of assistance with self-care activities in any given day or by more than one person.

b. Hybrid Hive Pty Ltd submitted falsified and inappropriate claims against the expiring or expired NDIS plan of NDIS participants, with the objective of exhausting funds in those NDIS plans. More specifically:

    i. Invoices were issued weekly against the expired NDIS plan of Ms Goodwin, for services not provided by Forward Focused Group Pty Ltd or Hybrid Hive Pty Ltd;

    ii. Invoices were issued by Hybrid Hive Pty Ltd against the expired NDIS plan of Ms Yvonne Harrison (Ms Harrison) for alleged services occurring in March 2021. Ms Harrison commenced services with Forward Focused Group Pty Ltd in November 2021 and with Hybrid Hive Pty Ltd in March 2022; and

    iii. 14 invoices were issued by Hybrid Hive Pty Ltd against the expired NDIS plan of Ms Janine Craig for alleged services delivered but for which there was no record held by Hybrid Hive Pty Ltd.

c. Hybrid Hive Pty Ltd, and Mr Rejaul Alam (Mr Alam) and V REID on behalf of Hybrid Hive Pty Ltd, authorised payments of invoices on behalf of participants, without their consent. This resulted in NDIS participants' management of their NDIS plans being undermined and funds being exhausted without their knowledge. More specifically:

    i. Ms Danica Hall (Ms D Hall), former employee of Forward Focused Group Pty Ltd, raised concerns with Mr Alam concerning the validity of invoices raised for which Mr Alam then took responsibility and issued;

    ii. Ms Regali was advised by her plan manager that invoices for dates in January 2022 were accompanied by an email from Mr Alam stating 'we have been advised by the participants have approved the invoice'. Ms Regali confirmed that she had not authorised the invoices; and

    iii. Jessica Harrison is the only person with permission to authorise payments against the NDIS plan of Charlie Harrison. Jessica Harrison has not authorised claims made and paid against Charlie Harrison's plan, including a claims by Infinity Living Options Pty Ltd, an entity for which she has no knowledge.

d. Further, Hybrid Hive Pty Ltd, Forward Focused Group Pty Ltd and representatives operating on behalf of Hybrid Hive Pty Ltd, engaged in aggressive claiming activities against the NDIS plans of NDIS participants, making inappropriate and falsified claims for supports and services not delivered. More specifically:

    i. Ms D Hall, was instructed and pressured by V REID to make phone calls to all participants concerning a river cruise for which $7,500 was to be charged against the NDIS plans of participants, including in circumstances in which participants had already declined. V REID instructed Ms D Hall and other support coordinators to charge 15 minutes of support coordination for each

phone call against NDIS plans of participants. Ms D Hall further considered this harassment of participants;

ii. Ms Janine Hall (Ms J Hall), a former employee of Forward Focused Group Pty Ltd, was also directed by V REID to call NDIS participants to harass for attendance at a New Year's Eve cruise. If participants declined, they were placed on the list of another employee to be called. Ms D Hall was instructed by V REID to 'bill' for these phone calls for support coordination, even if phone calls were unanswered;

iii. Ms D Hall states that she was trained to send invoices for services not provided, send invoices to claim funds from expired plans for services not provided and alter dates on invoices to claim from plans that had funding left in them;

iv. Ms Norman was directed by V REID to record more hours than the time actually required to provide support coordination, Ms Norman advises 'this was constant; she would call us dumb and tell us we're putting our jobs in jeopardy by not doing what we're told regarding the hours, and that we didn't understand how the NDIS worked'; and

v. Ms Terri Roberts (Ms Roberts), former employee of Forward Focused Group Pty Ltd, alleges V REID directed support coordinators to 'bill participants at least 15 hours per day' and that once this had been achieved, staff would receive 50% of the charge as a bonus.

Basis for making a banning order

Based on the matters listed above, my preliminary view is that the banning order should prohibit you from being involved in the provision of services and supports, both directly and indirectly, to people with disability for a period of five (5) years.

The conduct set out above, engaged in by you and Hybrid Hive Pty Ltd, an entity for which you have authority or responsibility for (or significant influence over) planning, directing or controlling its activities, strongly suggests that you are not suitable to provide supports or services to people with disability for the following reasons:

- Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:
    - supporting the independence and social and economic participation of people with disability;
    - enabling people with disability to exercise choice and control in the pursuit of their goals and the planning and delivery of their supports;
    - promoting the provision of high quality and innovative supports that enable people with disability to maximise independent lifestyles and full inclusion in the community; and
    - protecting and prevent people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the NDIS.
- In giving effect to the objects of the NDIS Act:

- section 3(3)(b) of the NDIS Act requires regard to be had to the need to ensure the financial sustainability of the NDIS. Similarly, as set out in section 4(17) of the NDIS Act, it is the intention of Parliament that the Commissioner, amongst others, have regard to the need to ensure the financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act;

- sections 4(4) and 4(6) of the NDIS Act, provide principles guiding actions under the NDIS Act including:

    - People with disability should be supported to exercise choice, including in relation to taking reasonable risks, in the pursuit of their goals and the planning and delivery of their supports; and

    - People with disability have the same right as other members of Australian society to respect for their worth and dignity and to live free from abuse, neglect and exploitation.

- It is my view based on the conduct set out above that you and Hybrid Hive Pty Ltd, an entity for which you have responsibility and authority, have acted in a manner that is contrary to these guiding principles, as well as the objects of the NDIS Act, and in circumstances have deliberately undermined those principles. More specifically:

    - Hybrid Hive Pty Ltd engaged in conduct which limited NDIS participants from exercising their choice and control over their own supports and services, and acted without their consent or authorisation to make decisions about the engagement of supports and services under their NDIS plans. This conduct is serious, and has had significant impacts on the health and wellbeing of participants, particularly where deliberate conduct has been engaged in to subvert the authority of NDIS participants and their nominees;

    - Hybrid Hive Pty Ltd has engaged in aggressive and dishonest conduct, including the submission of falsified claims for supports and services against NDIS plans, driving a culture of inflating claims and hours for services delivered, authorising payments without participant consent and entering into new service agreements without the knowledge or consent of NDIS participants and their nominees; and

    - The conduct set out above and the offences for which V REID has been charged and you involved, presents significant risks to the financial sustainability of the NDIS, as well as to NDIS participants, as victims of fraud. Such conduct takes funds from NDIS participant plans, stopping participants from being able to purchase the supports and service they genuinely need. Further, fraud makes it harder for participants to pursue their goals and outs additional pressures on carers, family, friends and support networks.

Therefore, I have formed the preliminary view that allowing you to continue to provide supports or services to people with disability poses a continuing risk to people with disability. My view is that is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure that they are kept safe, requires that in matters of this kind, a person who has engaged and been involved in the conduct set out above, must be prevented from delivering supports and services to people with disability. My preliminary view is that you are not currently suitable to provide supports or services to people with disability.

Opportunity to make submissions

I have not made a final decision in respect of this matter and I will not do so until you have had an opportunity to make submissions in writing to me. This gives you the opportunity to tell me anything you believe may be appropriate to bring to my attention, to dispute any of the facts of this matter or to comment on the seriousness of it.

Section 73ZN(7) of the NDIS Act provides that the Commissioner may only make a banning order against a person after giving the person an opportunity to make submissions to the Commissioner on the matter.

You will be notified in writing of any decision made in relation to the proposed banning order.

Should you wish to make a submission about the proposed banning order against you, please do so in writing and either:

- Deliver by hand or post to:

  NDIS Quality and Safeguards Commission
  Level 1, 200 St Georges Terrace, Perth WA 6000
  Marked for the attention of:
  Compliance Western Australia

  or

- email to wacompliance@ndiscommission.gov.au

In order to have any written submission considered in my decision-making please ensure that the submission is sent to the email address, delivered to the street address or arrives at the postal address as set above, **by no later than 5 pm (AWST) on 30 November 2022.**

If a submission is not received from you by this time, I will proceed to make my final decision. You may wish to seek legal or other professional advice before deciding whether to make a submission.

NDIS Provider Register

As set out in section 73ZS of the NDIS Act, the NDIS Provider Register must include certain information in relation to a person against whom a banning order is in force.

The information that must be included on the NDIS Provider Register is:

- The name of the person;
- The person's ABN (if any);
- Information about the banning order.

The Commissioner must not publish a part of the NDIS Provider Register if the Commissioner considers that its publication would be contrary to the public interest, or the interests of one or more persons with disability receiving supports or services.

Should I decide to make a banning order against you, information about the banning order will be included on the NDIS Provider Register and published on the NDIS Commission's website. You may wish to include submissions on this.

Yours sincerely



Philip Halton
Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission

17 November 2022

TOM & CO LEGAL

Family | Immigration | Commercial

Our ref: REIV6422
Your ref: 4-HOIWASG

31 October 2022

By Email Only: wacompliance@ndiscommission.gov.au

ATTENTION: Compliance Western Australia
NDIS Quality and Safeguards Commission
Level 1, 200 St Georges Terrace
PERTH WA 6000

Dear NDIS Quality and Safeguard Commission ('**Commission**')

Forward Focused Group Pty Ltd & Ms Vida Reid

We refer to the matter above and your letters dated 19 October 2022 in relation to the Notice of Suspension and invitation to make submissions regarding the revocation of the registration and banning order.

1. Notice of representation and address of service

We confirm that we act for Ms Vida Reid and Forward Focused Group Pty Ltd ('**Client**') in this matter.

The lawyer responsible is Tom Monks, and we request that any future correspondence and communication be directed to our office. Our office details are as follows:

Tom & Co Legal
45 Delawney Street
BALCATTA WA 6021
info@tomandcolegal.com.au
(08) 6255 5737

2. Disclosure of information

We seek full disclosure of information that the Commission holds in determining the suspension of our Client's registration.

The information that we seek includes, but not limited to, the following:

a. information relating to our client '*knowingly submitting false claims for payments*';

b. further information relating to:
   i. Ms Tiffany Rose; and
   ii. Mr Andre Hahn.

c. correspondence that the Commission holds and relied on in its decision to suspend our client;

d. information in relation to the '*30 complaints regarding the safety and quality of support provided by Forward Focused Group*'; and

e. any information that the Commission relied on that '*strongly suggests to [the Commission] that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act.*'

3. Extension of time

We note that the Commission relied on a number of materials and information in making its decision that is yet to be disclosed to our client.

Given the extent and seriousness of the allegation against our client, coupled with the lack of disclosure from the Commission, we seek a further 28 days extension from the date of disclosure.

4. Next steps

In order for us to provide a submission to respond to the Commission's allegations, we seek the following:

a. disclosure of all relevant information and materials, including but not limited to, as indicated in part 2 of this letter; and

b. a further 28 days extension of time from the date the Commission provides us with its disclosure.

Given that time is of the essence, we request a response to the above request within seven days of this letter.

Please do not hesitate to contact us if you have any queries.

Kind regards

Tom & Co Legal

Tom & Co Legal

NDIS Quality and Safeguards Commission

Compliance and Enforcement Policy

V3.0 – November 2022

NDIS Quality and Safeguards Commission

PO Box 210, Penrith NSW 2750

Copyright

© Commonwealth of Australia (NDIS Quality and Safeguards Commission) 2022

The NDIS Quality and Safeguards Commission encourages the dissemination and exchange of information provided in this policy. The material in this policy is licensed under a Creative Commons Attribution 4.0 International licence, with the exception of:

- the Commonwealth Coat of Arms
- the NDIS Quality and Safeguards Commission logo
- any third party material
- any material protected by a trademark
- any illustration, diagram, photograph or graphic over which the NDIS Quality and Safeguards Commission does not hold copyright, but which may be part of or contained within this policy.

More information on this CC BY licence is set out at the creative commons website: www.creativecommons.org. Enquiries about this licence and any use of this policy can be sent to: communications@ndiscommission.gov.au

Attribution

Use of all or part of these guidelines must include the following attribution:

© Commonwealth of Australia (NDIS Quality and Safeguards Commission) 2022.

Using the Commonwealth Coat of Arms

Terms of use for the Coat of Arms are available at this website: https://www.pmc.gov.au/government/commonwealth-coat-arms

Important notice

The information in this policy is for general guidance only. It does not constitute legal or other professional advice, and should not be relied on as a statement of a law in any jurisdiction. You should obtain professional advice if you have any specific concern.

The NDIS Quality and Safeguards Commission has made every reasonable effort to provide current and accurate information, but it does not make any guarantees regarding the accuracy, currency or completeness of that information.

Parties wishing to re-publish or otherwise use the information in this policy must check this information for currency and accuracy prior to publication. This should be done prior to each publication edition, as NDIS Quality and Safeguards Commission guidance and relevant legislation may change. Any queries should be addressed to communications@ndiscommission.gov.au

Table of contents

Compliance and Enforcement Policy 1
Compliance and enforcement 4
Regulatory framework 4
Human Rights 5
Procedural fairness 5
Compliance and enforcement strategy 5
The compliance pyramid 6
Educate and persuade 7
Investigations 8
Reviewable decisions 9
Appendix 10
Accessible version of the compliance pyramid: 10

Compliance and enforcement

Monitoring and compliance is important to the NDIS Quality and Safeguards Commission's work as a regulator. It is one of the ways that the NDIS Commission can encourage best practice among NDIS providers and manage risk to NDIS participants.

The NDIS Commission works with NDIS providers and their workers to help them comply with quality and safeguards requirements, including through education and training about their obligations.

The NDIS Commission monitors registered providers for compliance with the conditions of their registration. Most registered providers must undergo a periodic audit that assesses their performance against the NDIS Practice Standards.

By knowing more about what happens in the NDIS marketplace, the NDIS Commission can work to support ongoing improvement.

The NDIS Commission also investigates complaints and reports of non-compliance with the NDIS Practice Standards, NDIS Code of Conduct and other quality and safeguards requirements where they apply. This includes unregistered providers' compliance with the NDIS Code of Conduct.

The NDIS Commission has the power to investigate any matters relating to registered and unregistered providers and workers. It can impose penalties, including, in the most serious cases, banning workers, de-registering providers and seeking civil penalties.

In determining its response to non-compliance, the NDIS Commission and Commissioner considers a range of factors including:

- the impact of non-compliance on the person with disability, and the broader community;
- whether there is any immediate or ongoing risk to the well-being of the NDIS participant;
- the seriousness of any non-compliance and the actual or potential harm or consequences;
- how far below acceptable standards the conduct falls and the extent to which the person contributed to the risk, including whether it was intentional, reckless, negligent or a mistake; and
- potential to return the provider to full compliance, and as soon as possible.

Regulatory framework

The NDIS Commission's regulatory powers and functions are set out in the *National Disability Insurance Scheme Act 2013* (the Act) and associated Rules.

These functions are developmental, preventive and corrective, and target individuals, the workforce and providers to:

- strengthen and build capacity;
- prevent harm and improve the quality of services; and
- resolve problems and provide oversight.

Non-compliance may be handled using a mix of tools including education, capacity building and development for people with disability (and their NDIS providers and workers), complaints handling, compliance and enforcement functions and related powers.

The NDIS Commission will take a responsive and proportionate approach to regulation, applying the strongest actions to the most serious issues and breaches.

Human Rights

The NDIS Commission undertakes its regulatory functions in accordance with the Act and with due regard to the United Nations Convention on the Rights of Persons with Disabilities (the Convention).

The NDIS Commission aims to uphold the rights of people with disability, as part of Australia's commitment to the Convention, to prevent exploitation, violence and abuse of people with disability. The NDIS Commission achieves this through:

- balancing the need to provide appropriate protections, with the need to enable people with disability to exercise choice and control;
- focussing on building the capacity of people with disability, their families and carers to make informed decisions about NDIS providers and pursue concerns or complaints; and
- supporting a responsive and effective NDIS market for disability supports and services.

Procedural fairness

In exercising compliance, investigation and enforcement powers, the NDIS Commission adheres to the requirements of procedural fairness which means:

- the Commissioner and staff of the NDIS Commission will avoid actual and perceived conflicts of interest and act in an impartial and objective manner; and
- affording a person an opportunity to be heard before making a decision affecting their interests.

Compliance and enforcement strategy

The NDIS Commission aims to achieve a balance between supporting people with disability to make informed choices, while also promoting high quality supports and services with appropriate safeguards to support the development of a responsive and effective NDIS market.

To achieve these objectives, the NDIS Commission uses the following integrated strategies:

- encourage compliance with the law by educating and informing providers, participants and others about their rights and responsibilities under the Act;
- work with other agencies to implement these strategies, including through coordinated approaches and appropriate referrals;
- analyse emerging risks to identify potential market risks to inform compliance and enforcement measures, and identify priorities for regulation; and

- enforce the law, including through the use of administrative action and by initiating formal enforcement proceedings where that is necessary and appropriate.

If the NDIS Commission has concerns that an NDIS provider may not be complying with legislative requirements, or may become unable to comply, the initial focus of the NDIS Commission's approach, where appropriate, is to engage with the NDIS provider to support compliance.

Relevant considerations for the NDIS Commission in determining what, if any, further actions are to be taken will include: whether the provider has an understanding of the problem; whether the provider demonstrates a willingness to act to address the problem; whether the provider has a history of non-compliance; whether the non-compliance appears to be serious or systemic.

The compliance pyramid

A wide range of tools, methods and powers are available to the NDIS Commission. The actions to be taken will be determined on a case by case basis, including:

- the seriousness of the issue;
- the appropriateness of the person's response; and
- the likelihood of further harm.

The compliance and enforcement actions available to the NDIS Commission are:

- administrative (these actions include education, corrective action requests, warning letters, compliance notices, infringement notices, enforceable undertakings, varying, suspending or revoking registration, and bans); or
- court-based (these actions include injunctions, taking action to enforce an undertaking, and civil penalties).

Administrative measures may enable earlier resolution than court action, and may also lend themselves to achievement of appropriate and timely outcomes that are in a participant's and/or provider's interests, and/or the public interest.

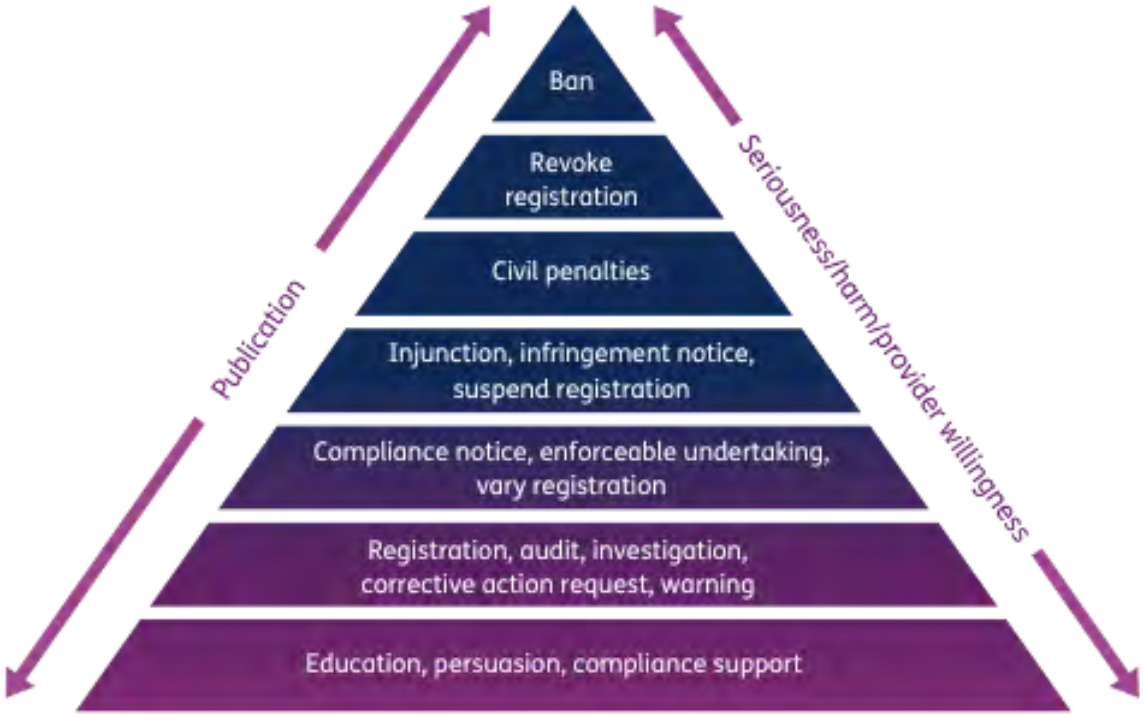
The NDIS Commission has published a suite of policies on our website that detail the nature of each compliance and enforcement action and the approach generally taken in respect of each type of action.

Information gathering, inquiry and monitoring powers are used to help prevent people with disability from experiencing harm arising from poor quality or unsafe supports or services.

A monitoring activity, such as a site visit or regular contact with people working in the NDIS market, may assess compliance with the Act generally or may target particular responsibilities or obligations. This helps the NDIS Commission to make decisions about any further regulatory actions or support that may be necessary.

The Ayres & Braithwaite regulatory pyramid[1] helps to illustrate how the NDIS Commission works to support participants' choice and control and to support a responsive and effective NDIS market.

Figure 1: Compliance Pyramid



The pyramid helps to show how the NDIS Commission takes a responsive and proportionate approach to regulation, applying the strongest actions to the most serious issues and breaches. It also demonstrates the ability to escalate actions if an initial response does not achieve the intended outcome.

Some actions or regulatory tools are alternatives, while others are used in combination. Using a range of tools from the base of the pyramid may often achieve compliance fairly quickly without needing to escalate to more serious enforcement action, if appropriate. However, it is also open to the NDIS Commission to proceed directly with the strongest actions in a particular case.

Educate and persuade

The primary approach to achieving ongoing compliance and building the capacity of the sector is to educate, advise and encourage NDIS providers and workers to identify and understand their obligations and improve their practice.

Measures may include practical advice to improve outcomes, targeted education and outreach activities, engaging with the regulated community at the earliest possible stage, and providing timely information and advice through the NDIS Commission website, social media, and information sessions.

[1] I. Ayres and J. Braithwaite (1992) Responsive Regulation: Transcending the Deregulation Debate. New York: Oxford University Press. http://johnbraithwaite.com/monographs/

Such measures help to:

- raise awareness of the benefits of compliance, and the various measures that will be taken to address non-compliance;
- remove barriers to compliance, such as lack of awareness about obligations, confusion with other regulators, or particular accessibility needs;
- promote the objects of the Act, NDIS Practice Standards and NDIS Code of Conduct;
- support a reduction in restrictive practices; and
- reduce the risk that people will inadvertently take action that constitutes a breach.

Having provided advice or guidance to achieve compliance and being satisfied a provider has taken timely and satisfactory steps to remedy a breach, the NDIS Commission may decide to take no further action.

If a provider is not making timely progress to rectify non-compliance the NDIS Commission will consider what additional action may be required to ensure the provider meets their responsibilities.

Investigations

The NDIS Commission will work with NDIS providers to support compliance with quality and safeguards requirements, including through education and training about their obligations.

The NDIS Commission may also investigate complaints and reports of non-compliance with the NDIS Practice Standards, NDIS Code of Conduct and other legislative requirements. The NDIS Commission can commence an own motion investigation into any matter relating to compliance by registered and unregistered providers and workers.

The NDIS Commission can exercise monitoring investigation powers (under Part 2 of the *Regulatory Powers (Standard Provisions) Act 2014* (Regulatory Powers Act) to check compliance with the Act or whether any information provided pursuant to the Act is correct. Broader investigation powers under Part 3 of the Regulatory Powers Act can be used where there is a suspicion that there has been non-compliance with any civil penalty or offence provision.

The NDIS Commission's information gathering powers under section 55A of the Act can be utilised regardless of whether or not there has been non-compliance in accordance with the functions of the NDIS Commission.

An investigation is the process of seeking information about alleged, apparent or potential non-compliance, and may support, precede or follow other action taken by the NDIS Commission.

NDIS Commission staff follow the Australian Government Investigations Standards and a range of other statutory requirements and policies, including:

- Regulatory Powers Act
- Legal Services Directions under the *Judiciary Act 1903*
- Australian Public Service (APS) values and APS Code of Conduct.

Reviewable decisions

A person can seek review of certain types of decisions if they are directly affected by the decision. When the NDIS Commission undertakes this review, it is known as an internal review.

An internal review must be undertaken by an officer of the NDIS Commission who was not involved in making the original decision.

A request for review may be made to the NDIS Commission by:

- sending or delivering a written request by mail or email; or
- making an oral request, in person or by phone, or other means to the Commissioner.

A person affected by a decision who is not satisfied with the outcome of an internal review may apply for the decision to be reviewed by the Administrative Appeals Tribunal (AAT).

The decision stays in place until and unless another decision is made. However, a person may request that the AAT make an order staying or otherwise affecting the implementation of the decision.

Table 1: Decisions subject to review

Decision	Section
A decision to refuse to register a person as a registered NDIS provider	s 73E
A decision to impose conditions to which a person's registration as a registered NDIS provider is subject	s 73G
A decision to vary, or refuse to vary, the registration of a registered NDIS provider	s 73L
A decision to suspend the registration of a registered NDIS provider	s 73N
A decision to revoke, or not to revoke, the registration of a person as a registered NDIS provider	s 73P
A decision to give a compliance notice to an NDIS provider	s 73ZM
A decision to make a banning order	s 73ZN
A decision to vary, or to refuse to vary or revoke, a banning order	s 73ZO

Appendix

Accessible version of the compliance pyramid:

A pyramid diagram, with a list of actions for the most serious breaches to less serious issues:

1. Ban
2. Revoke registration
3. Civil penalties
4. Injunction, infringement notice, suspend registration
5. Compliance notice, enforecable undertaking, vary registration
6. Registration, audit, investigation, corrective action request, warning
7. Education, persuasion, compliance support.

Our ref: 4-HOIWASG

Tom & Co Legal Pty Ltd
Att: Tom Monks, Principal Director
45 Delawney Street
Balcatta WA 6021

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022, advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid.

I note that you are seeking additional information and additional time to provide submissions on the proposed decisions of the NDIS Quality and Safeguards Commission (the Commission)~~'s proposed decisions~~.

The Commission ~~has~~ advised through the notices issued on 19 October 2022 that it intends to revoke the registration of the registered NDIS provider and make banning order~~/~~s. The notice of intention is a document that initiates the process of, possibly, making a decision. Regarding supplying additional information~~;~~, the Commission is satisfied ~~, at this time,~~ that you ~~already~~ currently hold sufficient information to respond to the notices.

~~In relation to the~~The suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) ~~this~~ commenced on 19 October 2022 (the date of the n~~N~~otice). At this time, the suspension is in effect until~~-~~ 19 November 2022. The Commission has received your client's application for internal review of the decision to suspend Forward Focused Group Pty Ltd, and they will be contacted in the near future about providing submissions for the internal review. ~~As the suspension is currently in effect, the Commission does not require your Client to make submissions on the suspension of their registration.~~

~~Secondly, the~~Your letter also seeks an "~~e~~extension of time" to provide submissions on revocation of registration and banning orders. I have considered your request ~~for additional time.~~and I have decided to grant your ~~C~~client/s an additional fourteen (14) days from the original due date of 5:00pm (AWST) on 16 November 2022. Submissions made by your c~~C~~lient on the proposed revocation of registration and banning orders are now due no later than **5:00pm (AWST) on 30 November 2022**.

Importantly, the decisions on revocation of registration and banning orders are not yet finalised. The Commission looks forward to receiving submissions to further inform its ~~decision making~~decision-making.

~~In relation to the suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) this commenced on 19 October 2022 (the date of the Notice). At this time the suspension is in effect until 19 November 2022. As the suspension is currently in effect, the Commission does not require your Client to make submissions on the suspension of their registration.~~

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Commented [SL1]: Noting the previous advice received from the AGS, and as discussed previously, we recommend providing the requested information. This approach limits the legal risk of procedural fairness being relied upon as grounds to challenge the decision. Please see our covering email for further explanation.

Should you decide to accept these risks, we recommend outlining to Philip, alongside this letter, the reasons you consider he may be satisfied that FFG/Ms Reid have sufficient information to make submissions.

Commented [SL2]: We note that LSB did not review the suspension aspect of the original briefing package.

Given that FFG have since applied for internal review of the decision to suspend, should you plan to impose a further suspension, we are happy to provide advice on how to address any procedural fairness issues.

Yours sincerely

Philip Halton
Branch Head Operations – North Central West Region
XX November 2022

NDIS Quality and Safeguards Commission

Forward Focused Group Pty Ltd
Unit 2 Number 210 Jull Street
Armadale WA 6112

Att: Tom Monks, Principal Director, Tom & Co Legal Pty Ltd

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022 advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid. I note that you are seeking additional information and additional time to provide submissions in reply to the Commission's notices of intention to (i) revoke the registration of, and then issue a banning order upon, Forward Focused Group PL; and (ii) issue a banning order upon Ms Vida Reid. Both notices were issued on 19 October 2022.

Turning to your first request, the Commission is satisfied that our notices of 19 October adequately disclosed the reasons and information that gave rise to our intentions.

Secondly, your letter seeks an "extension of time". I have considered your request for additional time. I have decided to grant your Clients an additional fourteen (14) days from the original due date of 5:00pm (AWST) on 16 November 2022. I will accept submissions made by your Clients on the proposed (i) revocation of registration of, and then issuance of a banning order upon, Forward Focused Group PL; and (ii) issuance of a banning order upon Ms Vida Reid, up until **5:00pm (AWST) on 30 November 2022**.

As advised in the notices of intention, no decisions have yet been finalised. The Commission will closely consider all submissions received prior to this new deadline but, consistent with our original notice, will progress to making final decisions even if submissions are not provided.

In relation to the suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) this commenced on 19 October 2022 (the date of the Notice). The current suspension is in effect until 19 November 2022. The provisions of the NDIS Act do not provide for submissions to be made upon a decision to suspend the registration of a provider but, rather, make provision for a review of such a decision under s.100 of that Act. I understand your client, Ms Reid, has lodged an application for such a review on Friday 11 November 2022.

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head, Operations – North Central West
15 November 2022

NDIS Quality and Safeguards Commission

Tom Monks
OBO, Ms Vida Reid
Unit 2 Number 210 Jull Street
Armadale WA 6112

Via: Tom Monks, Principal Director, Tom & Co Legal Pty Ltd

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022 advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid. I note that you are seeking additional information and additional time to provide submissions on the Commission's proposed decisions.

The Commission has advised through the notices issued on 19 October 2022 that it intends to revoke the registration of the registered NDIS provider and make banning order/s. The notice of intention is a document that initiates the process of, possibly, making a decision. Regarding supplying additional information; the Commission is satisfied, at this time, that you already hold sufficient information to respond to the notices.

Secondly, the letter seeks an "extension of time". I have considered your request for additional time. I have decided to grant your Client an additional twenty-eight (28) days from the original due date of 5:00pm (AWST) on 16 November 2022. Submissions made by your Client on the proposed revocation of registration and banning order are now due no later than **5:00pm (AWST) on 14 December 2022**.

Importantly, the decisions are not yet finalised. The Commission looks forward to receiving submissions to further inform its decision making.

In relation to the suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) this commenced on 19 October 2022 (the date of the Notice). At this time the suspension is in effect until 19 November 2022. As the suspension is currently in effect, the Commission does not require your Client to make submissions on the suspension of their registration.

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head Operations – North Central West Region
XX November 2022

NDIS Quality and Safeguards Commission

Forward Focused Group Pty Ltd
Unit 2 Number 210 Jull Street
Armadale WA 6112

Att: Tom Monks, Principal Director
Tom & Co Legal Pty Ltd

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022 advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid.

I note that you are seeking additional information and additional time to provide submissions on the Commission's proposed decisions.

The Commission has advised through the notices issued on 19 October 2022 that it intends to revoke the registration of the registered NDIS provider and make banning order/s. The notice of intention is a document that initiates the process of, possibly, making a decision.

Regarding supplying additional information; the Commission is considering your request and will provide a further update to you in fourteen (14) days from the date of this letter.

Whilst the Commission is considering your request I find it reasonable to extend the timeframe for submissions. I have decided to grant your Client an additional twenty-eight (28) days from the original due date of 5:00pm (AWST) on 16 November 2022. Submissions made by your Client on the proposed revocation of registration and banning order are now due no later than **5:00pm (AWST) on 14 December 2022**.

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head Operations – North Central West Region
XX November 2022

NDIS Quality and Safeguards Commission

Ms Vida Reid
Unit 2 Number 210 Jull Street
Armadale WA 6112

Att: Tom Monks, Principal Director
Tom & Co Legal Pty Ltd

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022 advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid.

I note that you are seeking additional information and additional time to provide submissions on the Commission's proposed decisions.

The Commission has advised through the notices issued on 19 October 2022 that it intends to revoke the registration of the registered NDIS provider and make banning order/s. The notice of intention is a document that initiates the process of, possibly, making a decision.

Regarding supplying additional information; the Commission is considering your request and will provide a further update to you in fourteen (14) days from the date of this letter.

Whilst the Commission is considering your request I find it reasonable to extend the timeframe for submissions. I have decided to grant your Client an additional twenty-eight (28) days from the original due date of 5:00pm (AWST) on 16 November 2022. Submissions made by your Client on the proposed revocation of registration and banning order are now due no later than **5:00pm (AWST) on 14 December 2022**.

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head Operations – North Central West Region
XX November 2022

NDIS Quality and Safeguards Commission

Forward Focused Group Pty Ltd
Unit 2 Number 210 Jull Street
Armadale WA 6112

Att: Tom Monks, Principal Director, Tom & Co Legal Pty Ltd

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022 advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid. I note that you are seeking additional information and additional time to provide submissions in reply to the Commission's notices of intention to (i) revoke the registration of, and then issue a banning order upon, Forward Focused Group PL; and (ii) issue a banning order upon Ms Vida Reid. Both notices were issued on 19 October 2022.

Turning to your first request, the Commission is satisfied that our notices of 19 October adequately disclosed the reasons and information that gave rise to our intentions.

Secondly, your letter seeks an "extension of time". I have considered your request for additional time. I have decided to grant your Clients an additional fourteen (14) days from the original due date of 5:00pm (AWST) on 16 November 2022. I will accept submissions made by your Clients on the proposed (i) revocation of registration of, and then issuance of a banning order upon, Forward Focused Group PL; and (ii) issuance of a banning order upon Ms Vida Reid, up until **5:00pm (AWST) on 30 November 2022**.

As advised in the notices of intention, no decisions have yet been finalised. The Commission will closely consider all submissions received prior to this new deadline but, consistent with our original notice, will progress to making final decisions even if submissions are not provided.

In relation to the suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) this commenced on 19 October 2022 (the date of the Notice). The current suspension is in effect until 19 November 2022. The provisions of the NDIS Act do not provide for submissions to be made upon a decision to suspend the registration of a provider but, rather, make provision for a review of such a decision under s.100 of that Act. I understand your client, Ms Reid, has lodged an application for such a review on Friday 11 November 2022.

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head, Operations – North Central West
15 November 2022

TOM & CO LEGAL

Family | Immigration | Commercial

Our ref: REIV6422
Your ref:

30 November 2022

Confidential

By Email Only: wacompliance@ndiscommission.gov.au

Attention: Mr Philip Halton
Branch Head, Operations – North Central West
C/- NDIS Quality and Safeguards Commission
Level 1, 200 St Georges Terrace
PERTH WA 6000

Dear Mr Halton

Allegations against Forward Focussed Group and Ms Vida Reid – Response Submission

We refer to the matter above and to the correspondence dated 19 October 2022 in relation to the proposed revocation of registration and banning order ('**Notice**').

We confirm that we act for Forward Focussed Group and Ms Vida Reid ('**Clients**') in this matter.

We welcome and thank the NDIS Quality and Safeguards Commission ('**Commission**') for the opportunity to provide a submission with respect to our Client having contravened, is contravening, or is proposing to contravene the *National Disability Insurance Scheme Act 2013* ('**NDIS ACT**').

Unfortunately, we sought an extension of time and additional information from the Commission to respond. To date, the Commission has neither granted nor refused these requests.

Given the seriousness and breadth of the allegations, the lack of a decision regarding our requests and the current deadline, our Clients have attempted to respond to each allegation in turn with the information they currently have.

RESPONSE TO ALLEGATIONS

Forward Focussed Group (**FFG**) is a registered NDIS provider, registration id 4-4GHG-1073 and is registered to provide the following:

- Item 8 – Assistance with travel/transport arrangements; and
- Item 20 – Household tasks.

1) **Allegation 3. It is alleged that Forward Focused Group is providing supports to participants that the provider is not registered to provide. The FFG website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offers SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focus Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.**

Our Clients deny this allegation.

Our clients have promoted SDA housing on their Facebook page and submitted this in the context of its partnership arrangement with Yaran Property Group and Ability Housing. Both these companies are SDA providers. For the avoidance of doubt, our Client does not provide SDA services and stated that they could assist participants to attain specialist disability accommodation. The arrangements were merely a business relationship between our client and the primary SDA providers.

Furthermore, our Clients have a shareholding in Infinity Living Options Pty Ltd and, as such, refer any inquiries regarding accommodation to this company. A review of any invoicing to participants for accommodation will show that our Clients are not involved in providing accommodation.

2) **Allegation 4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that Forward Focused Group does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from Forward Focused Group or the key personnel.**

Unfortunately, the Commission has not provided further details about these allegations. Our Clients do not know the allegations concern 30 individuals or a few persons who have made several complaints. Our Clients do not know what the complaints concern, when they were made and who made them, whether they are some against Ms Reid personally or only concern FFG.

Given the said lack of particulars, our Clients cannot respond to the first sentence of Allegation 4. Please provide more information so that our Clients will have a genuine opportunity respond to this allegation.

As to the second sentence of Allegation 4, the Commission has not provided the information it holds. In event our Clients emphatically denies the allegation that they do '*not support individuals to raise any complaints they may have directly with the provider*.' Our clients have consistently provided help and support to all their clients.

In particular, all FFG clients are provided with, and have access to, many supporting documents in relation to raising complaints. These include, but not limited to:

- Client information booklet;
- Client Money and Property Policy;
- Governance Policy;
- Feedback and Complaints Form (this has a specific clause advising clients how to make a complaint to the NDIS Commission);
- Feedback and Complaints Policy;
- Advocacy or Support Person Request Form; and
- Provision of Supports Policy.

FFG has a dedicated email for complaints and feedback (feedback@ffg.net.au).

FFG's website also contains links to the Feedback and Complaints Policy and other methods of making complaints, such as links to the Commission. Furthermore, staff are trained and comply with the following:

- Feedback and Complaints Criteria for Complaint Manager or Incident Manager;
- Feedback and Complaints Assessment, Investigations and Resolution Considerations;

- Feedback and Complaints Procedural Fairness Considerations; and
- Feedback and Complaints Criteria for Complaint Manager or Incident Manager.

Our Clients are willing to provide these supporting documents if required.

3) **Allegation 5. This information strongly indicates that Forward Focused Group does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.**

FFG denies this allegation.

As mentioned above, our Client has an extensive suite of internal policies and supporting documents that clearly articulate our client's complaint management processes.

FFG's Feedback and Complaints Management Policy sets out how feedback and complaints in connection with the provision of disability support services are encouraged and managed. The Policy is complemented by the Feedback and Complaints Form, criteria for determining a Complaint Manager, Procedural Fairness considerations and the organisation's approach to conducting investigations and resolving complaints (assessment, investigation and resolution considerations), and complaints register. The Policy sets out how FFG's clients can make complaints, the process for managing and resolving complaints, training of workers (in respect of complaints management), record keeping and continuous improvement regarding complaints management.

A copy of the Feedback and Complaints Management Policy and Feedback and Complaints Form is distributed by FFG to each participant by email, in person or another accessible form as requested by the relevant client.

Additionally, FFG provides a copy of the documents to family members and others that form part of the client's support network. It is further submitted that FFG takes the time to assist and support clients to understand how complaints can be made during their first meeting and continually upon request.

Please note, electronic records of the above are retained by FFG and can be verified by the Commission.

Moreover, FFG encourages feedback and complaints and assists participants in making complaints.

All complaints are managed fairly, efficiently and effectively, and a satisfactory resolution is provided within reasonable timeframes. It is our Clients' practice to proactively provide a safe environment for complainants to make a complaint or provide negative feedback without fear of adverse consequences, retribution or loss of service as a result of making the complaint.

4) **Allegation 6. The Commission holds information that Forward Focused Group does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section states that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does hold any records of contact information or worker screening conducted for Ms See.**

Our Clients deny this allegation.

We are instructed that all of FFG's employees and contractors hold relevant qualifications and experience and are trained to provide person-centred support to our clients.

We are further instructed that FFG retains its employment records and maintains the strict requirements of its Human Resources Management Policy, including 100 points of ID and relevant screening checks, namely criminal record, working with children checks, disability worker exclusion checks and visa before the commencement of work.

As to Ms Sally See, our Clients instruct us that she has the following qualifications: a Master in Sexology; a Master in Counselling Practice; and an Honours Degree in Psychology with Counselling. These qualifications demonstrate that Ms See does hold relevant qualifications.

We are instructed that Ms See does not hold current qualifications with either the Australian Counselling Association or with the Australian Health Practitioner Regulation Agency. Nevertheless, the 2018 NDIS Registration Guidelines advise that registration with ACA (or equivalent) is required to provide counselling services. Ms See is registered with the Psychotherapy and Counselling Federation of Australia (PCFA). Our Clients submit that the PCFA is an equivalent agency to the ACA.

We note that the Commission states: "*The Commission does hold any records of contact information or worker screening conducted for Ms See*". Can we please confirm the Commission does have copies of the relevant information?

5) **Allegation 7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,**

    a) **Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".**

Our Clients deny this allegation and note not the information that is the basis of the allegation has been provided.

It appears that the Commission is relying on the statement "*we will be terminating your services with us effective immediately*" to demonstrate a lack of respect for Alexsis Bott. However, it is important to note that this statement has been narrowly interpreted and taken out of context.

As background, there was a disagreement between the Plan Manager Marc from Manage Mode and FFG. In summary, FFG identified a conflict of interest. This was because Manage Mode were providing the same services to Ms Bott as FFG.

Ms Bott was advised of this conflict and that to remain with FFG, she would need to change her plan manager, which FFG offered to assist her with. However, Ms Bott refused to change her plan manager, and despite repeated requests with Marc from Manage Mode, the outstanding funds were never released. As such, our Client had no option but to terminate their services.

This email reproduced below, was sent on 10 June 2022 and demonstrated the respectful way in which this client was dealt with by FFG:

> *Hi Alexis,*
>
> *We are not able to work with this plan manager at all due to conflict of interest.*
>
> *As such we will be terminating your services with us effective immediately since you have chosen to stay with them.*
>
> *We are focused on assisting people and moving forward.*
>
> *You are our very last client remaining with manage mode [sic] as all others have now transferred due to conflict of interest.*
>
> *We respect your choice and control and wish you well.*

This email, and all correspondence in our possession, show that FFG complied with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and does not include any veiled or direct threats, bullying or harassment.

b) Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

We note that the date range provided in this allegation was 24 June to 19 June 2022. We assumed the Commission meant 24 June to 19 July 2022.

We have reviewed the emails in our Clients' possession and cannot find any language that would be deemed a veiled or direct threat, bullying or harassment.

We request the Commission to identify the email and statements relied upon in this allegation so that our Clients have a genuine opportunity to respond to this allegation.

c) On 1 July 2022, the Provider responds to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."

This statement needs to be considered in relation to all circumstances. We have reviewed emails in our Clients' possession and cannot find any language that would be deemed a veiled or direct threat, bullying or harassment.

We request the Commission provide the relevant documents or information so that our Clients' have a genuine opportunity to respond to this allegation.

d) Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by

yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices must be paid immediately or reported to the NDIS.

This allegation concerns Hybrid Hive, which is a separate legal entity from FFG,

In so far as this allegation concerns, Ms Reid, we have reviewed a series of email exchanges between 15 June 2022 and 19 June 2022. Copies of the emails in our possession do not indicate any request to meet. The emails advise that she wants to cease her support worker services with The Hive.

e) Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non compete and non disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

Our Clients presume this allegation concerns Ms Janeece Ferreira, employed by FFG as a support worker. The email in question concerned Ms Ferreira's breach of contract of employment with FFG by her privately providing support services to Ms Abraham.

It was disclosed in the email to Ms Abraham that:

> *"Janice[sic] has a non compete and non disclosure contract with us which prevents her from working with you even if you let us go. What is more concerning to me is tax payer money and government funds being used inappropriately. We rostered Janice on and paid her for the same hours she has then charged you again and in fact for more. This needs to be reported as it is fraudulent activity. … If yourself or Janice has come to us in good faith and asked us to have Janice privately I would have said okay".*

This email complies with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and does not include any veiled or direct threats, bullying or harassment as alleged. For the sake of clarity, non-compete and non-disclosure clauses are legal and, in fact, commonplace.

f) Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

We are instructed that this purported quote is incorrect. On 16 June 2022, Ms Abraham was advised by email from our Clients that:

> "*We require 4 weeks notice as per the contract you have signed or an exit fee of $4000 to be paid based and calculated on supports provided to you over-time. I hope we can work this out and I am available to have a chat if you wish to speak with me*".

Ms Abraham responded to this email on 17 June 2022 by email with the following:

> *"Just to let you know as well Vida, I have morals & values. It's very rude comparing my disabilities & illness to you & your family. YOUR ABLE & NOT DISABLED.. your able to look after your child, it's your child who is DISABLED sadly. Very sad how you've tried to make me out to be the person in the WRONG , when I'm not. And nor is Janeece. Your email has severely triggered my mental health & well-being especially on my BIRTHDAY TODAY…MAKES ME FEEL LIKE IM BETTER OFF FUKING DEAD BECAUSE OF YOUR EMAIL…"*

On 19 June 2022, our Clients responded by email to Ms Abraham with the following:

> *"Hi Corina, Due to the ongoing abusive manner of our staff by yourself and the break in trust we are sorry to advise we will no longer be providing services to you. I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".*

Our Clients have other evidence to support the claim that Ms Abraham was abusive and rude to its staff . Given the circumstances, we believe this statement by our client was appropriate. It is with respect to the Commission that it has misinterpreted and misconstrued the email exchange between Ms Abraham and our Client. It is submitted that the email was not delivered as a veiled or direct threat, nor was it bullying or harassing in nature.

Our Clients have workplace health and safety obligations to its employees and other persons. We submit in light of those obligations our Clients acted appropriately. Furthermore, it is reasonable to expect FFG staff to be treated with courtesy and respect by all persons including from FFG clients.

6) **Allegation 8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.**

   It is alleged that Forward Focused Group are knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme) with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided or were generated without the necessary Plans or Services Agreements in place.

   The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

   a) **Internal email dated 3 May 2022 from former employee to the Chief Financial officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.**

Our Clients emphatically deny these allegations.

These matters are currently the subject of criminal proceedings. It is submitted that it is inappropriate for NDIS to pursue these allegations until the criminal proceedings have been determined. Accordingly, and in the interests of procedural and substantive justice, we respectfully request that FFG's fitness to hold an NDIS registration not be determined until after the said proceedings are completed.

The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,

a) Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

Our Clients deny any allegations that they lack integrity and honesty.

It appears to our Clients that the Commission has not examined all the correspondence regarding Andrew Hahn and his living arrangements and is, instead, relying on one excerpt from one email dated 27 March 2022. Our Clients are able to provide detailed evidence to show that Mr Hahn was a difficult and violent individual that was regularly evicted from accommodation due to safety concerns to other residents. Furthermore, the Autism Association had written to our Clients about Mr Hahn carrying a knife to providers offices on multiple occasions, including the possession of two swords kept in the house.

The timeline of facts in this matter are as follows:

On 10 March 2022, our Client wrote to Joshua Davidson, Mr Hahns Support Coordinator, advising the following:

> *"The actions that I noted that people have agreed to are below with your specific questions also answered in attached document : - Andrew can continue living in our SIL house considering he also respects others, our staff and other residents He must not act in a way to intimate [sic] others living in the house as they have a right to feel safe in their environment being 2 women alone in the house. Today with Meghan trying to come in and then Andrew proceeding to act violently by hitting the table with a closed fist set the other resident off and she was traumatised. Please understand that as much as we want to accommodate Andrew if this behaviour continue [sic] we will have no choice but to ask Andy to leave the premises under our policy. ...We helped him by allowing him to temporarily stay in this house until I sort out his SIL plan which Andrew intervened and now it has stopped, my hands are tied now. We require Andrew to have a separate Support Coordinator within 14 days and we will do a handover. The option of keeping us as a company is no longer on the table as we cannot meet the expectations of Andrew in that area. I have listed 5 companies for him to choose from or choose other ones he prefers. During today's meeting I was also transparent and honest with you that we have been provided with a notice by the landlord and council that there have been complaints by the tenants and we may be asked to leave. If this occurs Andrew will need to find alternative accommodation as it is out of our control. I do believe it may occur and as such we need to start looking for alternative accommodation now just to be safe and not place Andrew at risk of not having somewhere to live."*

Following further behavioural concerns with Mr Hahn, DFG Legal sent a letter to Mr Hahn on 31 March 2022 which states in part:

> *... on entering in the agreement with our client and taking up residence at the property you informed Ms Vida Reid that you were not going to pay the fees, as you preferred to spend the funds received through the NDIS on "other things". On being informed by Ms Reid that your funding was, firstly, subject to being utilised for your care and living expenses, and secondly, that you had agreed to be bound by the terms of the agreement, you commenced acting in an antisocial manner engaging in such conduct as follows –*
>
> *1. verbally abusing people who attend the premises;*
> *2. verbally abusing your fellow lodgers;*
> *3. punching tables and other items within the premises; and*
> *4. falsely informing vulnerable residents that our client is acting contrary to their interests for your own means.*
>
> *On 30 March 2022, your actions resulted in emergency services being called to the premises, and a distressed resident requiring immediate assistance. A number of people were adversely affected as a*

result of your conduct, including our client's employee, who was in attendance with her 6-month-old child, and your fellow lodgers. Unfortunately, your actions amount to serious misconduct, and you have breached the terms of the agreement, and continue to breach the terms of the agreement by failing to pay the fortnightly lodging fee.

Our client is keen to support and assist participants, but regrettably, the situation has simply become untenable, and our client is left with no alternative other than to terminate your agreement. While our client is entitled to effect immediate termination, Ms Reid is agreeable to providing you with a reasonable amount of time to find a new residence and to vacate the property. Therefore, you are to vacate the property within thirty (30) days from the date of this correspondence, being, 30 April 2022. We put you on notice that if you fail to vacate the property, our client will commence to take the appropriate actions against you without any further notice. You have the right to seek independent legal advice regarding this correspondence and the termination of your agreement with our client.

Following this letter, another altercation involving Mr Hahn and a resident occurred. Ms Reid then sent the following email on 12 April 2022:

"Hi Andrew, I was called to attend the house today as you had touched meghans Personal belongings and she has an episode where she was not functioning well due to the events caused by yourself. When i entered the premises due to the emergency i had parked my car out the front as currently no one is able to park their vehivle in the 2 bay car park space due to your items taking up the space in photos below. You were aggressive towards me and kept telling me i am not allowed to park there. I managed to calm meghan down and she was trying to leave the premises when you kept blocking her way out and movement. Meghan was shaking and scared to the core from your actions today. This is not okay and this bullying and intimidation behaviour needs to stop".

Mr Joshua Davidson then responds the next day, 13 April 2022, with the following:

"Subsequent to our letter of 5th April 2022, your client Vida Reid has continued harassment of my client Andrew Hahn (Andy) - her own email (attached) provides the details: Allegations of "bullying and harassment" of the other occupant leading to "shaking and scared to the core" - the action in question is that Andy allegedly washed some of the other occupant's clothes in the communal washing machine (per an email from Alex, another staff member at FFG). When Andy was told by worker Alex to check on his washing, the Support Worker Parul informed Andy that she had taken his clothing out of the washing machine and into a basket ready to hang. Andy took his clothes, all of the items bar 3 that did not belong to him and which he had not put there. This can not possibly be construed as Andy bullying other residents. Andy had not seen or communicated with the other occupant in the last week, other than when he saw her leave the premises whilst he was in the roadway outside his home on the phone today, approximately 14:15 12 April 2022, and did not communicate with her. Vida parking in a location to block Andy's car leaving the premises and refusing to move when politely requested. The email includes a photo of Andy on the phone calling the police as he was being prevented from leaving his accommodation. The photo has been taken from a valid parking location that Vida's car could have occupied, or there is no reason why she (as a visitor) could not have parked elsewhere. We have attached a photo taken of Vida's car blocking Andy's car in, taken at 14:14 12 April 2022. There is no reason she needed to urgently attend the premises as she alleges, as there were two other staff members present. The photos show Andy's car tidily parked and a few items in the remaining unused space which he has moved on request. This is reasonable use of the premises and no cause to allege bullying and harassment. Please advise your client to cease her campaign of bullying and harassment immediately. Her actions in person and in writing are being considered for future legal action".

We are instructed that Mr Joshua Davidson was not present at any of the incidents and, instead, was responding to our client based on information provided to him by Mr Hahn. As such, any information provided by Mr Davidson is hearsay and does not provide any probative value.

We are also instructed that in an email Mr Davidson sent to our Client on 5 April, he states, "*When I spoke to Mr Hahn at 2.40 pm shortly after his return to the premises, he was calm, was unaware of any incidents that had occurred and had no knowledge of anything out of place at the premises*".

There were independent witnesses that can attest to the events that occurred on 12 April 2022. One witness, Meghan Goodwin, who shared the house with Mr Hahn, had been threatened by him with a samurai sword on two occasions. Ms Goodwin called our Client as she was in extreme distress and was banging her head on walls and shaking. Mr Hahn was also preventing her from leaving the property, and for this reason, our client urgently attended the premises.

It should be further noted that Mr Hahn assaulted Mr Simon Reid and was escorted off the property by police.

We respectfully suggest Mr Hahn's documented history of mental health concerns be examined further by the Commission and witnesses be spoken to before a determination is made on this particular allegation.

7) Allegation 9. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.

The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,

a) The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

Our Clients deny that FFG has not taken all reasonable steps to prevent and respond to the exploitation of people with disability.

In relation to Ms Goodwin, her consent was obtained quite some time ago. At the time, Meghan Goodwin was homeless and living on the streets. Our Client paid for her accommodation, and she requested our Client's assistance to obtain her Centrelink pension as she claimed: "*she had fallen through the cracks*" of the system. This is when the authority was voluntarily given to our Client to act as a third party. Meghan specifically requested our Client's employee Terri Roberts to act as her third-party representative.

FINAL SUBMISSIONS

It is noted that not all information relied upon by the Commission to support the allegation that our Clients '*has contravened, is contravening, or is proposing to contravene the NDIS Act*' has been provided. As such, and without the requested documents, it has been difficult to formulate a comprehensive response to satisfy the Commission that our Client should not be banned from holding an NDIS registration. It is also a denial of procedural fairness.

Notwithstanding the above, we have provided responses based on the limited information supplied. As such, we submit that:

1. our Client is supplying specialist disability accommodation to be further examined.

2. our Client does not support individuals raising complaints that are untrue and should be discontinued.

3. our Client does not have a complaints management, and the resolution system is factually incorrect and, as such, should be discontinued.

4. Ms See was employed and did not have the relevant qualification to be examined further. It is submitted that membership in the Psychotherapy and Counselling Federation of Australia may qualify as an equivalent qualification to ACA under the 2018 NDIS Registration Guidelines.

5. across May and June 2022, the Provider attempted to obtain control of participant funds and support for participant Alexsis Bott to be discontinued. The information we have provided demonstrates the statement relied on by the Commission has been narrowly interpreted and taken out of context and that our Client has acted appropriately in the circumstances.

6. a series of emails between 24 June 2022 to 19 June 2022 [sic] regarding participant Sarah-Jane Clulow advising a four-week notice for service termination be re-stated to include the statements relied upon by the Commission in support of the allegation so that our Client can provide an informed response.
7. the Provider's response to an account statement from a supplier stating that "*we will no longer pay any invoices for Sarah. She has terminated her contract with us*" must be read in context, and the assumption made by the Commission should be further examined.

8. related emails between 15 June 2022 to 19 June 2022 **r**egarding participant Corina Abraham be discontinued as the allegation relates to another entity and not our Client.

9. related to the email of 16 June 2022 regarding participant Corina Abraham being reconsidered, and the full circumstances are examined in closer detail.

10. claims by the Commission of false invoices be discontinued at this time until the outcome of the criminal matter is known. This would also be a procedurally fair outcome.

11. relates to the Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee" be discontinued based on the information we have provided to the Commission.

12. relates to the 'FM Consent Third Party in relation to participant Meghan Goodwin be reconsidered given the explanation provided.

Our Clients submit that the claims made by the Commission are narrowly viewed based on an illogical and irrational conclusion that was based on biased and, in some, factually incorrect information.

We reiterate that the criminal proceedings should be determined before the Commission invokes a revocation of registration and banning order against our Client, and as such, it is our view that the suspension of FFG's registration should be continued as it is just and reasonable to do so.

Kind regards

Tom & Co Legal

Tom & Co Legal

NDIS Quality and Safeguards Commission

EXECUTIVE BRIEF

Executive: Branch Head Operations, North Central West **PDR:** EC22-002581
Executive action: For decision
Critical date: By 21/12/2022, in order to meet legislative requirements.
PDMS cc: Ms Sutcliffe, Ms Walker, Ms Awwad, Mr Barr

NOTICES TO REVOKE REGISTRATION AND ISSUE BANNING ORDER TO FORWARD FOCUSED GROUP; NOTICE TO ISSUE BANNING ORDER TO VIDA REID

Recommendation/s	Executive Action
1. That you note the Brief about the revocation of registration and Banning Order for Forward Focused Group Pty Ltd and the Banning Order for Ms Vida Reid.	Noted
2. That you approve the revocation of registration and Banning Order for Forward Focused Group Pty Ltd.	Approved
3. That you approve the Banning Order for Ms Vida Reid.	Approved
4. A) That you sign and issue the notice to revoke the registration to the NDIS provider Forward Focused Group Pty Ltd. (Attachment 1) B) That you sign and issue the notice of a Banning Order to the NDIS provider Forward Focused Group Pty Ltd. (Attachment 2)	Signed x2
5. That you sign and issue the notice to issue a Banning Order to Vida Reid for a period of ten years. (Attachment 3)	Signed

20/12/2022

X Philip Halton

Signed by: PH0055

Philip Halton, Branch Head, Operations - North Central West Region

Comments:

Amended term of personal BO on Ms Reid to 5 years duration. PH 20 December 2022

Key Points

1. The Commission holds information to suggest that Forward Focused Group Pty Ltd (the Provider), REG ID 4-4GHG-1073, and the former Director Ms Vida Reid have contravened, are contravening or are proposing to contravene the *National Disability Insurance Scheme Act 2013* (the Act), by failing to comply with their obligations.

2. The Commission issued separately: Notices of Intention to issue a Revocation of Registration, and Banning Order to the Provider; and a Notice of Intention to issue a Banning Order to Ms Vida Reid.
3. The Provider and Ms Reid chose to engage legal representation, Tom & Co Legal Pty Ltd ("Tom & Co Legal").
4. The legal representation has issued a single, joined submission on behalf of Forward Focused Group and Ms Reid.
5. The analysis of the available information, including the submissions, has reached a view that you progress to issuing the Revocation of registration and Banning Order to the Provider, and the Banning Order to Ms Reid.
6. If you approve the decision the NDIA will be notified of the update to the status of the relevant parties.

Risks / Sensitivities

7. The individuals involved have participated in local (WA) meetings with Federal Ministers. If the Commission decides to proceed to the completion of the notices then the loss of income will be substantial. Historical interactions with the individual/s indicate that the Commission should be prepared for a retaliatory response.
8. On 11 November 2022, Ms Reid lodged a request for an internal review of the Commission's decision to suspend the registration of Forward Focused Group. The Commission sent an acknowledgement letter to Ms Reid dated 15 November 2022, inviting Ms Reid to make submissions in support of her request by 16 December 2022. The Commission is due to make a decision by 9 February 2023.
9. It is considered important to maintain a consistent message about the Provider's inability to offer safe and quality supports and services and ensure public trust in the NDIS is not jeopardised.

Background

10. The Commission holds information to suggest that Forward Focused Group Pty Ltd (REG ID 4-4GHG-1073) and the former Director Ms Vida Reid have contravened, are contravening or are proposing to contravene the *National Disability Insurance Scheme Act 2013* (the Act), by failing to comply with their obligations.
11. The information held by the Commission that indicate contraventions of the Act by Forward Focused Group and Ms Reid are held in PDMS record EC22-002000.
12. On 19 October 2022, you issued:
    - 12.1. Notice suspending the registration of the NDIS provider Forward Focused Group Pty Ltd (Forward Focused Group) for a period of thirty (30) days, with immediate effect
    - 12.2. Notice of Intention to revoke the registration and issue a Banning Order to Forward Focused Group
    - 12.3. Notice of Intention to issue a Banning Order to Vida Reid for a period of ten (10) years.
13. The Notices of Intention to revoke the registration and make Banning Orders against Forward Focused Group and Vida Reid provided 28 days for the Provider and Ms Reid to make submissions. The original due date as stated in the Notices was 16 November 2022.
14. On 19 October 2022, Ms Reid was charged at the Armadale Police Station and appeared in Armadale Magistrates Court of WA.
15. Ms Reid was charged with the following offences:
    - 15.1. Between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, Vida REID dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the

money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).

15.2. That between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, Vida REID dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).

15.3. That between 30 November 2021 and 8 April 2022 at Perth in the State of Western Australia, Vida REID caused payment requests to be submitted, which he knew to be false, to the National Disability Insurance Agency (NDIA), a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1 (3) of the Criminal Code (Cth).

15.4. That between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, Vida REID caused payment requests to be submitted, which he knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1 (3) of the Criminal Code (Cth).

16. On 31 October 2022, the Commission received a letter by Tom & Co Legal advising that they act for Forward Focused Group and Vida Reid. The lawyer responsible is Tom Monks ("Mr Monks"), Principal Director.

17. The letter sought "disclosure of all relevant information and materials" from the Commission and a 28-day extension on the due date of 16 November 2022 for submissions.

18. On 15 November 2022, you replied via letter to Mr Monks advising that the Commission is satisfied that the notices of 19 October 2022 adequately disclosed the reasons and information that gave rise to the notices of intention. The letter also provided Forward Focused Group and Ms Reid with a fourteen (14) day extension on the due date for submissions to 30 November 2022.

19. On 21 November 2022, you issued a Notice suspending the registration of Forward Focused Group for a further period of 30 days, with immediate effect. The current suspension of registration expires on 21 December 2022.

Compliance QLD Review of the Submission

20. On 30 November 2022, the Commission received a letter by Tom & Co Legal enclosing the submission to the notices of intention.

21. The submission provides a response to each of the relevant facts and information held by the Commission regarding the Provider and Ms Reid, as outlined in the notices.

22. Compliance QLD has undertaken a review of the submission. Compliance QLD's analysis and findings are provided in Attachments 4, 5 and 6 for your consideration.

23. For the reasons set out in the documents provided, Compliance QLD considers that the information supplied in the submission fails to demonstrate that Forward Focused Group or Ms Vida Reid have complied with their requirements under the Act.

24. Compliance QLD recommends you, as the delegate, review and consider the information contained in the documents in making your decision.

Delegation

25. The Delegations instrument, No. 2 of 2022 dated 21 June 2022, and effective 22 August 2022, provides the Branch Head, North Central West with delegation against NDIS Act s73N, s73P, and s73ZN.

Legislative Obligations

26. Section 73J of the NDIS Act provides that,

A person contravenes this section if the person:

(a) is a registered NDIS provider; and

(b) breaches a condition to which the registration of the person is subject.

Civil penalty: 250 penalty units.

27. The conditions include those provided at section 73F of the NDIS Act. Section 73F of the NDIS Act states that the registration of a person as a registered NDIS provider is subject to a number of conditions. These conditions include:

28. Section 73F(2)(b) - a condition that the person comply with all applicable requirements of the NDIS Code of Conduct;

29. Section 73F(2)(c) - a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;

30. Section 73T(1) of the NDIS Act states that the National Disability Insurance Scheme rules may make provision for or in relation to standards concerning the quality of supports or services to be provided by registered NDIS providers.

31. Further, the NDIS Act s73V provides that NDIS providers and members of the key personnel of NDIS providers must comply with the NDIS Code of Conduct, and

(3) A person contravenes this section if the person:

(a) is subject to a requirement under the NDIS Code of Conduct; and

(b) fails to comply with the requirement.

Civil penalty: 250 penalty units.

32. The NDIS Act s73N provides for the Suspension of registration on the Commission's initiative, for a specified period (not longer than 30 days) where

32.1. S73N *(1)(a) the Commissioner reasonably believes that the person has contravened, is contravening, or is proposing to contravene, this Act*; or…

32.2. S73N *(1)(e) the Commissioner is no longer satisfied that the key personnel of the person (if any) are suitable to be involved in the provision of supports or services to people with disability, having regard to any matters prescribed by the National Disability Insurance Scheme rules for the purposes of this paragraph.*

33. The NDIS Act s73P provides that registration can be revoked if the same circumstances as articulated at 14.1 are met.

34. Further, the NDIS Act s73ZN provides that Banning orders can be given if the same circumstances as articulated at 14.1 arise.

35. Both Revocation of registration and Banning orders require a process to be followed whereby a notice is issued to the relevant party affording them an opportunity to make submissions on the matter.

Financial Implications

36. Nil – activities form part of normal operations.

Regulatory Impact

37. Revocation of the registration and ban of a provider operating in a central, city location.

Consultation

38. Internally, WA State Office.

39. Internally, Legal Services Branch were consulted on the original submissions.

40. Internally, Registration team have provided advice about matters impacting registration and revocation of registration.

Kristen Walker / / 2022
Assistant Director, Integrated Compliance Operations
M: 0459 906 205

Prepared by:
Katja Zerafa
Senior Compliance Officer
T: 07 3237 6516
M: 0410 304 944

Attachments (remove heading if nil)

Attachment 1: Notice of Revocation of Registration – Forward Focused Group

Attachment 2: Notice of Banning Order – Forward Focused Group

Attachment 3: Notice of Banning Order – Vida Reid

Attachment 4: Review of Submission_Breach Requirement to be Registered for SDA

Attachment 5: Review of Submission_Breach Code of Conduct

Attachment 6: Review of Submission_Breach NDIS Practice Standards

NDIS Quality and Safeguards Commission

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
c/o Tom and Co Legal
Att: Director
Unit 2 Number 210 Jull Street
Armadale WA 6112

By email to: info@tomandcolegal.com.au; feedback@ffg.net.au;

Dear Director,

Notice of Revocation of your provider registration 4-4GHG-1073 under section 73P of the *National Disability Insurance Scheme Act 2013*.

I refer to my letter to you dated 19 October 2022 advising you of the proposed revocation of the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") and the relevant facts and matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act. I also gave you the opportunity to make submissions about this before I made my final decision.

I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to revoke the registration of the Provider.

I inform you that the contents of your submission have not changed the relevant facts and information held by the Commission in forming the preliminary view to revoke the registration of the Provider.

As detailed in the letter of 19 October 2022, the *National Disability Insurance Scheme Act 2013* (NDIS Act) gives me the power to revoke the registration of a person as a registered NDIS provider on the grounds listed in section 73P(1) of the NDIS Act.

The decision

I have made a decision to revoke the registration of Forward Focused Group Pty Ltd, **commencing from the date of this notice**. Reasons for my decision are outlined in Attachment A.

I have revoked the registration of the Provider because I reasonably believe that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act, as provided for by section 73P(1)(a) of the NDIS Act. Section 73ZN(8)(b) of the NDIS Act also gives me the power to make a Banning Order if I have revoked the registration as an NDIS provider. Please refer to the separate letter dated 20 December 2022 regarding the Banning Order.

The revocation means the registration of the Provider ceases to have effect from **5:00pm (AWST) on Tuesday 20 December 2022**.

Review under section 100 of the NDIS Act

You may request a review of my decision to revoke the registration of the Provider within 3 months from the date that the revocation takes effect.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on 1800 035 544 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

Non-compliance with the revocation

Please note that engaging in conduct that breaches the revocation of registration may be a contravention of section 73B of the NDIS Act, insofar as the NDIS rules may require that specified classes of supports provided under a participant's plans be provided only by NDIS providers who are registered to provide those classes of supports. A contravention of section 73B attract a civil penalty up to $55,500 for individuals.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which must include certain information for each person who is a registered NDIS provider. Relevant to this matter, section 73ZS(5)(e) permits the NDIS Provider Register to include information about a former NDIS provider, including information about the revocation of a person's registration.

As I have decided to revoke the registration of the Provider with immediate effect, information about the revocation will be included on the NDIS Provider Register, available on the Commission's website.

Yours sincerely

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc. Attachment A

Statement of reasons for revoking the registration of Forward Focused Group Pty Ltd as a registered NDIS provider under section 73P of the *National Disability Insurance Scheme Act 2013* (NDIS Act)

This is a statement of reasons for the revocation of registration for Forward Focused Group Pty Ltd, under section 73P(1) of the *National Disability Insurance Scheme Act 2013* (NDIS Act).

Procedural steps

I refer to my letter dated 19 October 2022 advising of the proposed revocation of the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") and the relevant facts and matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act.

I also gave the Provider the opportunity to make submissions about this due no later than 5.00pm (AWST) on 16 November 2022.

I received a request for an extension to that timeframe and granted additional time for submissions through to 30 November 2022 (the extended submission date).

I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to revoke the registration of the Provider.

The relevant facts and information held by the Commission in forming the view to revoke the registration and make a Banning Order against the Provider are set out below.

Relevant facts and information

1. Forward Focused Group Pty Ltd is a registered NDIS provider, registration 4-4GHG-1073.

2. Forward Focused Group Pty Ltd (the Provider) is registered to provide the following services:

   Item 8 – Assistance with travel/transport arrangements; and
   Item 20 – Household tasks.

3. It is alleged that the Provider is providing supports to participants that the provider is not registered to provide. The Forward Focused Group website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offered SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focused Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.

4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that the Provider does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from the Provider or the key personnel.

5. This information strongly indicates that the Provider does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.

6. The Commission holds information that the Provider does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section stated that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does not hold any records of contact information or worker screening conducted for Ms See.

7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sought to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,

    a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".

    b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

    c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."

    d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

    e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

    f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.

9. It is alleged that Forward Focused Group knowingly submitted false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

10. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

11. The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

    a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.

12. The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,

    a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to “serious misconduct” and “failing to pay the fortnightly lodging fee”. The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that “unsubstantiated threats of eviction” from the Provider cease.

13. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.

14. The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,

    a. The Commission holds a record of a Forward Focused Group document titled ‘FM Consent Third Party to Act’ which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

15. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

16. The NDIS Act s73J requires providers to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme*

(Provider Registration and Practice Standards) Rules 2018 (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA).

17. The Provider is clearly advertising the provision of supports that you are not registered to supply.

18. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.

19. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.

20. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

Submissions

21. The Commission received a submission on 30 November 2022 (the extended submission date).

22. Your submission notes that a request for further time and further information were not responded to however, the Commission did respond to this request. This is evidenced by the Commission's acceptance of the submission on 30 November 2022 (the extended submission date).

23. Your submission responds to a number of facts and information we raised in the notice of intention to the provider dated 19 October 2022.

24. Your submission confirms that the Provider held relevant information in relation to the issues identified.

25. Your submission denies all allegations.

26. I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.

27. As part of my considerations I am obliged to consider the NDIS Act. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:

    a. Supporting the independence and social and economic participation of people with disability.

    b. Enabling people with disability to exercise choice and control in the pursuit of their goals and the panning and delivery of their supports.

c. Protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the National Disability Insurance Scheme.

28. In giving effect to the objects of the NDIS Act, including those outlined above, section 3(3)(b) requires regard to be had to the need to ensure financial sustainability of the National Disability Insurance Scheme (NDIS). Similarly, as set out in NDIS Act section 4(17) it is the intention of the Parliament that the Commissioner, amongst others, have regard to the need to ensure financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act.

29. As a registered NDIS provider, Forward Focused Group Pty Ltd, elected to participate in a national scheme aimed at assisting those who have permanent and significant disability, and providing those participants with choice and control over their supports and services, and their selection of the providers of those supports and services.

30. My view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in continuing to provide supports or services to people with disability.

31. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.

32. The information before me in relation to the protracted length of time over which this conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.

33. I am also of the view that allowing the Provider to continue providing supports or services to people with disability would jeopardise public trust in the NDIS.

34. I consider the alleged conduct of the Provider is entirely relevant to my assessment of the Provider's suitability to be involved in the provision of supports or services to NDIS participants, in considering the objects and principles of the NDIS Act. This is particularly the case as the parties impacted by the Provider's actions are NDIS participants.

35. Having weighed all the evidence at hand I reasonably believe that the Provider, has contravened, is contravening, or is proposing to contravene, the Act.

36. I am therefore satisfied that the power to revoke the registration is available to me and that it is, in all of the circumstances, a risk responsive and proportionate response.

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
c/o Tom and Co Legal
Att: Director
Unit 2 Number 210 Jull Street
Armadale WA 6112

By email to: info@tomandcolegal.com.au; feedback@ffg.net.au;

Dear Director,

Notice of Banning Order under section 73ZN(1)(a) of the *National Disability Insurance Scheme Act 2013* with immediate effect.

I enclose a banning order made under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act). I have made the order on the basis that I have today revoked the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider"), in accordance with section 73ZN(1)(a) of the NDIS Act.

This banning order prohibits the Provider from being involved in the provision of supports or services to people with disability for a period of ten (10) years.

You should refer to the enclosed document, which clearly set out the banning order and reasons for my decision to make such an order.

Please note that the banning order takes effect on **5:30pm (AWST) on Tuesday 20 December 2022**.

Review under section 100 of the NDIS Act

You may request a review of my decision to make a banning order. You may do so within three months from the date the order is served on you.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on 1800 035 544 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

In addition to applying for a review of this decision under section 100 as outlined above, you may apply for a variation or revocation of the banning order under section 73ZO of the NDIS Act. The application must be in writing and explain why you believe the banning order should be revoked or varied. If you are requesting a variation, you should also provide details of the type of variation requested.

Any decision made pursuant to an application under section 73ZO is itself a reviewable decision under section 100.

Non-compliance with the banning order

Please note that engaging in conduct that breaches the banning order that has been made against you is a contravention of section 73ZN(10) of the NDIS Act, for which there is a civil penalty of up to $222,000 for an individual.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which includes certain information about NDIS providers and other persons. Relevant information about the banning order will be included on the NDIS Provider Register and published on the NDIS Commission's website.

Yours sincerely

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc. Attachment A – Banning Order
Attachment B – Statement of Reasons

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER

I, Philip Halton, give this Banning Order to Forward Focused Group Pty Ltd on the basis that, I have revoked the registration of the person as a registered NDIS provider. (NDIS Act s73ZN(1)(a)).

Pursuant to section 73ZN(1)(a) of the NDIS Act, I prohibit Forward Focused Group Pty Ltd from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of **ten (10) years** from the date that this order takes effect.

My reasons for making this order are set out in the enclosed statement of reasons.

This order takes effect on **Tuesday, 20 December 2022 at 5:30pm (AWST).**

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc. Attachment B

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN BANNING ORDER- STATEMENT OF REASONS

This is a statement of reasons for the making of a Banning Order on 20 December 2022 against Forward Focused Group Pty Ltd, under section 73ZN of the *National Disability Insurance Scheme Act 2013* (NDIS Act).

Procedural steps

I refer to my letter dated 19 October 2022 advising of the proposed revocation of the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") and the relevant facts and matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act.

I also gave the Provider the opportunity to make submissions about this due no later than 5.00pm (AWST) on 16 November 2022.

I received a request for an extension to that timeframe and granted additional time for submissions through to 30 November 2022 (the extended submission date).

I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to revoke the registration of the Provider.

As detailed in a letter of **20 December 2022**, I have made a decision to revoke the registration of the Provider, commencing from the date of the notice.

As I have revoked the registration of the Provider, I have made the decision to make a Banning Order against the Provider, as provided for by section 73ZN(1)(a) of the NDIS Act.

The relevant facts and information held by the Commission in forming the view to revoke the registration and make a Banning Order against the Provider are set out below.

Relevant facts and information

1. Forward Focused Group Pty Ltd is a registered NDIS provider, registration 4-4GHG-1073.
2. Forward Focused Group Pty Ltd (the Provider) is registered to provide the following services:

   Item 8 – Assistance with travel/transport arrangements; and

   Item 20 – Household tasks.

3. It is alleged that the Provider is providing supports to participants that the provider is not registered to provide. The Forward Focused Group website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offered SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focused Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.
4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that the Provider does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from the Provider or the key personnel.

5. This information strongly indicates that the Provider does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.
6. The Commission holds information that the Provider does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section stated that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does not hold any records of contact information or worker screening conducted for Ms See.
7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sought to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,
    a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".
    b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.
    c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."
    d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.
    e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."
    f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".
8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.
9. It is alleged that Forward Focused Group knowingly submitted false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.
10. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated

invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

11. The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,
    a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.
12. The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,
    a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.
13. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.
14. The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,
    a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.
15. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).
16. The NDIS Act s73J requires providers to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA).
17. The Provider is clearly advertising the provision of supports that you are not registered to supply.
18. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.
19. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.
20. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

Submissions

21. The Commission received a submission on 30 November 2022 (the extended submission date).
22. Your submission notes that a request for further time and further information were not responded to however, the Commission did respond to this request. This is evidenced by the Commission's acceptance of the submission on 30 November 2022 (the extended submission date).
23. Your submission responds to a number of facts and information we raised in the notice of intention to the provider dated 19 October 2022.
24. Your submission confirms that the Provider held relevant information in relation to the issues identified.
25. Your submission denies all allegations.
26. I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.
27. As part of my considerations I am obliged to consider the NDIS Act. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:
    a. Supporting the independence and social and economic participation of people with disability.
    b. Enabling people with disability to exercise choice and control in the pursuit of their goals and the panning and delivery of their supports.
    c. Protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the National Disability Insurance Scheme.
28. In giving effect to the objects of the NDIS Act, including those outlined above, section 3(3)(b) requires regard to be had to the need to ensure financial sustainability of the National Disability Insurance Scheme (NDIS). Similarly, as set out in NDIS Act section 4(17) it is the intention of the Parliament that the Commissioner, amongst others, have regard to the need to ensure financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act.

29. As a registered NDIS provider, Forward Focused Group Pty Ltd, elected to participate in a national scheme aimed at assisting those who have permanent and significant disability, and providing those participants with choice and control over their supports and services, and their selection of the providers of those supports and services.

30. My view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in continuing to provide supports or services to people with disability.

31. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.
32. The information before me in relation to the protracted length of time over which this conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.
33. I am also of the view that allowing the Provider to continue providing supports or services to people with disability would jeopardise public trust in the NDIS.

34. I consider the alleged conduct of the Provider is entirely relevant to my assessment of the Provider's suitability to be involved in the provision of supports or services to NDIS participants, in considering the objects and principles of the NDIS Act. This is particularly the case as the parties impacted by the Provider's actions are NDIS participants.
35. Having weighed all the evidence at hand I reasonably believe that the Provider, has contravened, is contravening, or is proposing to contravene, the Act.
36. I am therefore satisfied that the power to revoke the registration is available to me and that it is, in all of the circumstances, a risk responsive and proportionate response. I am therefore also satisfied that the power to issue a Banning Order is available to me.
37. For the avoidance of doubt, the Banning Order will prevent the Provider from having any involvement whether directly or indirectly in the delivery, coordination and management of NDIS-funded supports and services to people with disability.
38. I consider that a timeframe of **10 years** is appropriate and will provide a strong level of protection for people with disability.

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NDIS Quality and Safeguards Commission

Our ref: 4-HOJ09AX

Ms Vida Reid
C/O Tom & Co Legal Pty Ltd
PO Box 25567
Perth WA 6000

By email to: info@tomandcolegal.com.au; vida@ffg.net.au; feedback@ffg.net.au

Dear Ms Reid,

Notice of Banning Order under section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* with immediate effect.

I enclose a banning order made under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act). I have made the order on the basis that I reasonably believe that you have contravened, are contravening, or are likely to contravene the NDIS Act, in accordance with section 73ZN(2)(a)(i) of the NDIS Act.

This banning order prohibits you from being involved in the provision of supports or services to people with disability for a period of five (5) years.

This banning order will not apply in relation to any supports or services that you may seek for yourself or that you may provide to your son.

You should refer to the enclosed document, which clearly set out the banning order and reasons for my decision to make such an order.

Please note that the banning order takes effect on **Tuesday 20 December 2022 at 5:30pm (AWST)**.

Review under section 100 of the NDIS Act

You may request a review of my decision to make a banning order. You may do so within three months from the date the order is served on you.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on 1800 035 544 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

In addition to applying for a review of this decision under section 100 as outlined above, you may apply for a variation or revocation of the banning order under section 73ZO of the NDIS Act.

Any decision made pursuant to an application under section 73ZO is itself a reviewable decision under section 100. The application must be in writing and explain why you believe the banning order should be revoked or varied. If you are requesting a variation, you should also provide details of the type of variation requested.

Non-compliance with the banning order

Please note that engaging in conduct that breaches the banning order that has been made against you is a contravention of section 73ZN(10) of the NDIS Act, for which there is a civil penalty of up to $222,000 for an individual.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which includes certain information about NDIS providers and other persons. Relevant information about the banning order will be included on the NDIS Provider Register and published on the NDIS Commission's website.

Yours sincerely

Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc: Attachment A – Banning Order
Attachment B – Statement of Reasons

NDIS Quality and Safeguards Commission

ATTACHMENT A

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER

I, Philip Halton, give this Banning Order to Vida Reid as I reasonably believe that, the person has contravened, is contravening, or is likely to contravene this Act. (NDIS Act s73ZN(2)(a)(i)).

Pursuant to section 73ZN(2)(a)(i) of the NDIS Act, I prohibit Vida Reid from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of **five (5) years** from the date that this order takes effect.

However, does banning order will not apply in relation to any supports or services that Vida Reid may seek for herself or that she may provide to her son.

My reasons for making this order are set out in the enclosed statement of reasons.

This order takes effect on **Tuesday 20 December 2022 at 5:30pm (AWST)**.

Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER: STATEMENT OF REASONS

This is a statement of reasons for the making of a banning order on 20 December 2022 against Ms Vida Reid, under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act).

Reasons for my decision

1. At the relevant time Ms Reid was a Director, and key personnel of Forward Focused Group Pty Ltd (Forward Focused Group), Registration 4-4GHG-1073.

2. Ms Reid was a Director of Forward Focused Group until November 2022.

3. The Commission holds information that Ms Reid has contravened, is contravening, or is likely to contravene the NDIS Act.

4. On 19 October 2022, I issued you with a letter to inform you of the relevant facts and matters I have considered in reaching my preliminary view that it may be appropriate in all circumstances to make a Banning Order prohibiting you for a period of ten (10) years from being involved in the provision of supports or services to people with disability.

5. I also gave you the opportunity to make a submission before I made my final decision.

6. Submissions were due no later than 5.00pm (AWST) on 16 November 2022.

7. I received a request for an extension to that timeframe and granted additional time for submissions through to 30 November 2022 (the extended submission date).

8. I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to make a Banning Order against you.

9. I note that you are no longer the Director of Forward Focused Group. With the exception of this fact, all other relevant facts and information held by the Commission in forming the preliminary view to make a Banning Order against you have not changed.

10. According to information available to the Commission, you as Director of Forward Focused Group, assigned yourself with authority to make decisions on behalf of NDIS participants. This information suggests that you were not taking all reasonable steps to prevent and respond to all forms of exploitation of people with disability. By way of example,
    a) The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

11. The Commission has received information and allegations that strongly suggest that you as Director of Forward Focused Group frequently engaged in bullying, harassment and intimidation behaviours directed at NDIS participants and Forward Focused Group staff. Your alleged conduct towards participants and staff has created an environment whereby participants and staff did not feel supported or safe to raise any concerns they have about the quality and safety of supports provided by Forward Focused Group.

12. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission holds information that suggests that you, as a representative of the Provider, did not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from you. This information strongly indicates that you, in your capacity as Director and key personnel, did not ensure that complaints were welcomed, acknowledged, respected and well-managed.

13. The Commission also holds information that you as Director of Forward Focused Group were not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements with Forward Focused Group. Your email correspondence indicated non-compliance with the *National Disability Insurance Scheme (Code of Conduct) Rules 2018* and included both veiled and direct threats, bullying and harassment. By way of example,
    a) Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager, you wrote "we will be terminating your services with us effective immediately".
    b) Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.
    c) On 1 July 2022, you responded to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."
    d) Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, you purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.
    e) Email 16 June 2022 sent by you to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."
    f) Email 16 June 2022 sent by you to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

14. The Commission holds additional information that indicates that you played a central role in the alleged fraudulent activities engaged in by Forward Focused Group, in particular the submission of false claims for payments to the National Disability Insurance Scheme (Scheme). I am of the view that this demonstrates a failure by you to act with integrity, honesty and transparency.

15. It is alleged that Forward Focused Group were knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

16. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

17. The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that you were withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,
    a) Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided. In your response dated 9 May 2022, you replied "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity … I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures."

18. The Commission holds records of correspondence between you and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for you to immediately terminate engagements with participants. By way of example,

    a) Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

19. The information available to the Commission indicates that you engage in dishonest and intimidating conduct that falls below the standard expected from key personnel of a registered NDIS provider and the director of a company that provides disability supports and services.

Submissions

20. The Commission received a submission on 30 November 2022 (the extended submission date).

21. Your submission notes that a request for further time and further information were not responded to however, the Commission did respond to this request. This is evidenced by the Commission's acceptance of the submission on 30 November 2022 (the extended submission date).

22. Your submission responds to a number of facts and information we raised in the notice of intention to the provider dated 19 October 2022.

23. Your submission confirms that you held relevant information in relation to the issues identified.

24. Your submission denies all allegations.

25. I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.

26. Having weighed all the evidence at hand I have formed the reasonable belief that you have contravened, are contravening, or are likely to contravene the NDIS Act, as per section 73ZN(2)(a)(i) of the NDIS Act.

27. As part of my considerations I am obliged to consider the NDIS Act. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:

    a. Supporting the independence and social and economic participation of people with disability.

    b. Enabling people with disability to exercise choice and control in the pursuit of their goals and the panning and delivery of their supports.

    c. Protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the National Disability Insurance Scheme.

28. In giving effect to the objects of the NDIS Act, including those outlined above, section 3(3)(b) requires regard to be had to the need to ensure financial sustainability of the National Disability Insurance Scheme (NDIS). Similarly, as set out in NDIS Act section 4(17) it is the intention of the Parliament that the Commissioner, amongst others, have regard to the need to ensure financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act.

29. The need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs your interest in continuing to be involved in the provision of supports or services to people with a disability.

30. In determining whether to make a Banning Order for you, I weighed the following competing interests and concerns:
    a. The nature of your alleged breaches of the NDIS Act are serious, as they involve instances of verbal and emotional abuse involving threats towards vulnerable persons with disability to whom you were providing services and supports on a regular basis. The Commission holds information that suggested that you exerted undue influence over a number of participants that limited them from exercising their choice and control over their own supports and services.
    b. The Commission holds information that suggests that you have been using your position to exploit participants who are in vulnerable situations despite your knowledge of your obligations under the NDIS Act. For these reasons, I am concerned your breaches will continue to occur in future.

31. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from key personnel of NDIS providers when providing supports or services to people with disability. The information before me in relation to the protracted length of time over which the alleged conduct took place suggests that your conduct was systemic in nature. Allowing you to continue providing supports or services to people with disability poses a continuing risk to people with disability.

32. I am of the view that making a Banning Order against you would provide a strong level of protection for people with disability and maintain community confidence in the Scheme.

33. For the avoidance of doubt, the Banning Order will prevent you from having any involvement whether directly or indirectly in the delivery, coordination and management of NDIS-funded supports and services to people with disability.

34. The ban will therefore preclude you from having any involvement in any other entity that provides supports and services to NDIS participants.

35. I accept that the making of a banning order for you will impact your ability to earn an income in the disability services sector, and I have taken this into account in my consideration to issue the banning order.

36. I consider your alleged conduct is entirely relevant to my assessment of your suitability to be involved in the provision of supports or services to NDIS participants, in considering the objects and principles of the NDIS Act. This is particularly the case as the parties impacted by your actions are NDIS participants.

37. I consider that a timeframe of five (5) years is appropriate and will provide a strong level of protection for people with disability.



Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NDIS Quality and Safeguards Commission

Review of submission
Breach of NDIS Act s73B
Forward Focused Group Pty Ltd

Information/Evidence/Other	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 **7 Classes of supports for which NDIS providers must be registered** (1) A person must be registered under section 73E of the Act to provide specialist disability accommodation under a participant's plan.	National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 (legislation.gov.au)	D22/222033 – Confirms that Forward Focused Group Pty Ltd (4-4GHG-1073) is a registered NDIS provider and the registration groups.	Parties agree.
Forward Focused Group Pty Ltd. Internal and external facing information about registration status. Including registration groups: • Household tasks • Assist – travel/transport	Att 6A (D22/184618) – Statement of Reasons Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile	D22/222033 – Confirms that Forward Focused Group Pty Ltd (4-4GHG-1073) is a registered NDIS provider and the registration groups.	Parties agree.
It is alleged that Forward Focused Group is providing supports to participants that the provider is not registered to provide. The FFG website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offers SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focus Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering. • The Forward Focused Group website indicates that they are a registered NDIS provider (Att 28). The website also indicates that they can offer SDA (Att 26) at three different locations: Safety Bay, Northbridge and Stirling (Att 27 and 28). • The Forward Focus Group website links to a facebook page (Att 33).	Att 26 (D22/184649) – Service Offerings FFG Website Att 27 (D22/184650) – SDA Properties Screenshot Att 28 (D22/184651) – SDA Properties and Registered Provider Statement Screenshot Att 29 (D22/184662) – Hybrid Hive website screenshot Att 31 (D22/184665) – Hybrid Hive Service Offering screenshot Att 33 (D22/184702) – FFG Facebook Screenshot Offering SDA Att 35 (D22/184706) – Hybrid Hive Facebook Screenshot Offering SDA	D22/222033. Agree that SDA has been promoted on their Facebook page. State that it is in the context of a partnership agreement with Yaran Property Group and Ability Housing – SDA providers. State they do not provide SDA and could assist participants to attain SDA. Business relationship between parties. State a review of invoicing will show that FFG Pty Ltd/V. Reid are not involved in providing accommodation.	Language on the website and facebook conveys the meaning that FFG Pty Ltd is the provider. "FFG currently has 4 (four) SDA vacancies across Stirling and Safety Bay. To learn more about SDA and our current vacancies, get in touch with our team below!" includes email address admin@ffg.net.au. The submission does not provide evidence of the Provider's arrangements with Yaran Property Group or Ability Housing. Commission records show that Yaran Property Group Pty Ltd registration expired on 1 December 2021 (Reg ID: 4-4GHG-653).

Information/Evidence/Other	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
• Facebook post of 28 September 2022 at 12:43 states FFG has four SDA vacancies and provides contact details for people seeking further information. • Facebook post 18 July 2022 (Att 39) is promoting their ability to offer a wide range of accommodation including SDA. • The Hive website (Att 29) includes information about home and living support services provided (Att31). • The website states the locations as Safety Bay, Northbridge and Cottesloe. • The Hive website (Att 29) links to a facebook page (Att 35). • Facebook post five days prior to 14 October 2022 (Att 35) the business is promoting their ability to offer a wide range of accommodation including SDA. • Facebook post 5 September 2022 (Att 36) the business is promoting their ability to offer a wide range of accommodation including SDA. Accommodation at Safety Bay, Cottesloe and Northbridge	Att 36 (D22/184707) – Hybrid Hive Facebook Screenshot Offering SDA Att 39 (D22/184915) – FFG Facebook Screenshot Offering SDA	Note shareholding in Infinity Living Options Pty Ltd.	Email from Ms Reid dated 1 July 2022 (D22/184944) states “Yaran Property have stated they need to get paid as per [participant]’s housing arrangements with them.” The information supplied fails to demonstrate the Provider has complied with s73B of the NDIS Act.

NDIS Quality and Safeguards Commission

Review of submission

Breach of NDIS Act s73V

Forward Focused Group Pty Ltd, Vida Reid

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
Subject to a requirement under the Code of Conduct.	Forward Focus Group are the over-arching name for Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd directed and run by Vida Reid and Simon Reid. Code-covered person – NDIS Provider and persons employed or otherwise engaged by an NDIS provider. Forward Focused Group Pty Ltd, Vida Reid are 'code-covered person'.	Att 6A (D22/184618) – Statement of Reasons	-	-
Failed to comply with a requirement.	**6(a) - Act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions** 1. In relation to participant, Alexsis Bott, FFG sought to obtain access to and control of participant funds. The email trail is initiated by an FFG employee to a plan manager seeking release of funds. The participant confirms that they, "won't be withdrawing funds from Marc at Manage Mode. I	Att 6 (D22/165201) – Key Issue Identification Template Att 6A (D22/184618) – Statement of Reasons Att 45 (D22/184969) – Alexsis Bott	1. Submission provides background on a disagreement between Manage Mode and FFG. FFG identified a conflict of interest. "This was because Manage Mode were providing the same services to Ms Bott as FFG." Submission states that "to remain with FFG, [Ms Bott] would need to change her	1. The Provider appears to lack an understanding of the meaning of "conflict of interest". The submission confirms the removal of choice for the participant in relation to their Plan Manager if seeking to also retain the services of FFG Pty Ltd as a provider. The submission confirms that transition of services

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	actually never said I would do this but was advised by Vida I should." Ms Reid, as FFG Founding Executive Director, then states conflict of interest and states "we will be terminating your services with us effective immediately". (Att 45).	Changing Plan Manager Att 43 (D22/184942) – Service Termination Sarah-Jane Clulow	plan manager" Submission includes reproduction of an email issued 10 June 2022.	and continuity of services was not supplied to the participant. The information supplied fails to demonstrate the Provider or Vida Reid have complied with the requirement under the Code of Conduct.
	2. Series of emails 24 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Sarah-Jane Clulow advising a four week notice for service termination. (Att 43) - Ms Clulow provides notices and requests that further correspondence be directed to a different person, Tammy Mogg. - In a subsequent internal email to Rejaul Alam, Vida Reid and Simon Reid it is disclosed that Ms Clulow was contacted via phone call about her email. - It also comments that the participant is seeking review of 'another invoice' for services not received.		2. Regarding emails 24 June to 19 July [correction], submission states "We have reviewed the emails in our Clients' possession and cannot find any language that would be deemed a veiled or direct threat, bullying or harassment."	2. The submission does not explain the email response from the Provider / Ms Reid regarding the participant's request for review of an invoice for services not received, or any other correspondence between the Provider / Ms Reid and the participant. The information supplied fails to demonstrate the Provider or Vida Reid have complied with the requirement under the Code of Conduct.
	3. On 1 July, FFG responds to an account	Att 44 (D22/184944) –	3. Regarding email on July 2022, submission states	3. The submission does not explain the email response

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us." [Note within four week period of ongoing service provision. Release personal client information to an external party]. (Att 44) Complaint 430838840 – July 2022. The participant advises the Commission that FFG have claimed all of their Support Coordination funds and are acting fraudulently. The NDIA confirms overutilization of the plan. Also that FFG/Vida Reid are threatening eviction if invoices to The Hive are not paid. And on 14 July the participant advised she has received an eviction notice and has 60 days to find new accommodation. (Att 12)	Service Termination Sarah-Jane Clulow Att 12 (D22/169604) – Sarah-Jane Clulow Complaint_06.07.22	"We have reviewed the emails in our Clients' possession and cannot find any language that would be deemed a veiled or direct threat, bullying or harassment."	from the Provider regarding the termination of the contract. The information supplied fails to demonstrate the Provider, or Ms Reid, have complied with requirement under the Code of Conduct
	4. Series of emails 15 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Corina Abraham ceasing some services with Hybrid Hive. (Att 42) - The participant seeks to meet to discuss their concerns. - Although not included in the original email a response is forthcoming from FFG, Vida Reid. - By email 19 June FFG through Ms Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing	Att 42 (D22/184938) – Service Termination Corina Abraham	4. Regarding emails 15 June to 19 June 2022, submission states "This allegation concerns Hybrid Hive, which is a separate legal entity from FFG, In so far as this allegation concerns, Ms Reid, we have reviewed a series of email exchanges between 15 June 2022 and 19 June 2022. Copies of the emails in our possession do not indicate any request to meet. The	4. Records show that the participant requested to meet with FFG in email dated 15 June 2022 (D22/184938). The submission does not explain the email response from Ms Reid regarding the termination of the contract or the perceived threat. The information supplied fails to demonstrate that Ms Reid has complied with requirement under the Code

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	abusive manner of our staff by yourself and the break in trust" as the grounds. - The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS. 5. Email 16 June 2022 sent by Ms Reid to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."	Att 42 (D22/184938) – Service Termination Corina Abraham	emails advise that she wants to cease her support worker services with The Hive." 5. Regarding email 16 June 2022, submission states "Our Clients presume this allegation concerns Ms Janeece Ferreira, employed by FFG as a support worker. The email in question concerned Ms Ferreira's breach of contract of employment with FFG by her privately providing support services to Ms Abraham. It was disclosed in the email to Ms Abraham that: "Janice[sic] has a non compete and non disclosure contract with us which prevents her from working with you even if you let us go. What is more concerning to me is tax payer money and government funds being	of Conduct 5. Email from Ms Reid to participant Ms Abraham dated 16 June 2022 also states "I would have hoped someone like yourself would have educated Janice to go about things the right way…. "We require 4 weeks notice as per the contract you have signed or an exit fee of $4000 to be paid based and calculated on supports provided to you over-time." Email response from Ms Abraham alleges that the Provider did not provide over-time supports. The information supplied fails to demonstrate that Ms Reid has complied with requirement under the Code of Conduct

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
			used inappropriately. We rostered Janice on and paid her for the same hours she has then charged you again and in fact for more. This needs to be reported as it is fraudulent activity. … If yourself or Janice has come to us in good faith and asked us to have Janice privately I would have said okay". This email complies with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and does not include any veiled or direct threats, bullying or harassment as alleged. For the sake of clarity, non-compete and non-disclosure clauses are legal and, in fact, commonplace.	
	6. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".	Att 42 (D22/184938) – Service Termination Corina Abraham	6. Submission provides email exchange between Ms Reid and participant Ms Abraham and states "Our Clients have other evidence to support the	6. The submission does not explain the conduct of Ms Reid in the emails to participant Ms Abraham dated 16 June to 19 June 2022.

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
			claim that Ms Abraham was abusive and rude to its staff. Given the circumstances, we believe this statement by our client was appropriate. It is with respect to the Commission that it has misinterpreted and misconstrued the email exchange between Ms Abraham and our Client. It is submitted that the email was not delivered as a veiled or direct threat, nor was it bullying or harassing in nature. Our Clients have workplace health and safety obligations to its employees and other persons. We submit in light of those obligations our Clients acted appropriately. Furthermore, it is reasonable to expect FFG staff to be treated with courtesy and respect by all persons including from FFG clients."	The information supplied fails to demonstrate that Ms Reid has complied with requirement under the Code of Conduct
	6(d) - Act with integrity, honesty and transparency 7. Information about participants Tiffany Rose and Andrew Hahn on dates known between 26	Att 46 (D22/186568) - Tiffany Rose	7. Submission states	7. The criminal proceedings do not preclude the Provider

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	November 2021 and 14 June 2022, which show that FFG generated invoices that did not match the services provided, or were generated without the necessary Plans / Services Agreements in place. (Att 46 and 47) Emails dated 3 May and 9 May 2022, which show that Vida Reid is withholding information from other FFG staff on potentially fraudulent invoices. (Att 48 and 49) <u>Example 1</u>: Email from Janine Hall, FFG Support Coordinator to Rejaul Alam, CFO dated 3 May 2022. Janine Hall's email raised a question regarding an invoice for Support Coordination services for a participant that she did not provide. The email states "My understanding is that there is $3097.71 in Support Coordination to cover this period, however I just received the end of month statement from Assist Plan Managers and I noticed that the balance remaining is only $393.87. I then noticed that a single invoice had been paid to FFG for $2027.84 for Support Coordination. This is not for any work that I have provided for Marisha or anyone else from FFG". (Att 48) <u>Example 2</u>: Email from Vida to employee dated 9 May 2022, "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or	Invoices Att 47 (D22/186569) – Andrew Hahn Invoices Att 48 (D22/186578) – Marisha Lombard Invoices Att 49 (D22/186580) – Marisha Lombard Invoices	"Our Clients emphatically deny these allegations. These matters are currently the subject of criminal proceedings. It is submitted that it is inappropriate for NDIS to pursue these allegations until the criminal proceedings have been determined. Accordingly, and in the interests of procedural and substantive justice, we respectfully request that FFG's fitness to hold an NDIS registration not be determined until after the said proceedings are completed.	from providing information to support the submission or provide any details on how the Provider processes invoices in a transparent manner. The information supplied fails to demonstrate that the Provider or Vida Reid have complied with requirement under the Code of Conduct

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity."…."I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures."			
	8. Correspondence between FFG and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for FFG to immediately terminate engagements with participants. <u>Example 1:</u> Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a FFG-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". (Att 50) Email from advocate of participant Andrew Hahn dated 27 March 2022 requesting that threats of eviction from FFG cease. Email states "I have also reviewed Andy's Lodging Agreement with Forward Focused Group dated 21 January 2022. Rent payments per this agreement are paid up to date and Andy has not breached any terms of the Lodging Agreement. Please immediately discontinue		8. Submission states "It appears to our Clients that the Commission has not examined all the correspondence regarding Andrew Hahn and his living arrangements and is, instead, relying on one excerpt from one email dated 27 March 2022. Our Clients are able to provide detailed evidence to show that Mr Hahn was a difficult and violent individual that was regularly evicted from accommodation due to safety concerns to other residents. Furthermore, the Autism Association had written to our Clients about Mr Hahn carrying a knife to providers offices on multiple occasions, including the	8. The submission provides excerpts of email exchanges between FFG, the participant Mr Hahn and the participant's Support Coordinator and a letter from DFG Legal WA to the participant. The emails from FFG and the DFG Legal letter contain a number of allegations of violent behavior by the participant. The submission does not provide any evidence of, or information that strongly supports the allegations. The information supplied fails to demonstrate that the Provider or Vida Reid have complied with requirement

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	unsubstantiated threats of eviction. Threats of eviction can be distressing to anybody and are particularly unwarranted in a disability housing provision context." (Att 51) Example 2 Participant Corina Abraham sought to amend her service agreement with FFG. On 19 June 2022, FFG through Ms Reid purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. (Att 42) **6(f) – Take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability** 9. Seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support/funding decisions. Example 1: FFG Document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward	Att 50 (D22/186592) – Andrew Hahn Termination Notice Att 51 (D22/186590) – Andrew Hahn Threats of Eviction Att 52 (D22/186597) – FFG Reid Consent to Act	possession of two swords kept in the house." 9. Submission states "In relation to Ms Goodwin, her consent was obtained quite some time ago. At the time, Meghan Goodwin was homeless and living on the streets. Our Client paid for her accommodation, and she	under the Code of Conduct. 9. The submission does not provide evidence of the participant Ms Goodwin's request that the FFG employee act as her third-party representative. The information supplied fails to demonstrate that the

NDIS Quality and Safeguards Commission

Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co Legal	Comments
	Focused staff member (contact Vida Reid), including consent to request review of NDIA decision, manage a complaint made by participant Meghan Goodwin (Att 52) <u>Example 2:</u> Letter from DFG Legal WA stating: "Ms Vida Reid holds the current appointment as Meghan's legal plan nominee and next of kin, and we enclose the relevant documentation for your review." (Att 52)		requested our Client's assistance to obtain her Centrelink pension as she claimed: "*she had fallen through the cracks*" of the system. This is when the authority was voluntarily given to our Client to act as a third party. Meghan specifically requested our Client's employee Terri Roberts to act as her third-party representative."	Provider or Vida Reid have complied with the requirement under the Code of Conduct.

NDIS Quality and Safeguards Commission

Review of submission

Breach of NDIA Act s73J
S73F(2)(c) > 73T(1) > Rules > NDIS Practice Standards > Schedule 8
Forward Focused Group Pty Ltd, Vida Reid

Element	Information/evidence/source	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co legal	Comments
Registered NDIS Provider	NDIS Commission provider register displayed on the website. COS provider profile. Printout and Screenshots included.	Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile	D22/222033 – Confirms that Forward Focused Group Pty Ltd (4-4GHG-1073) is a registered NDIS provider.	Parties agree.
Breaches a condition – Complaints management and resolution	Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022. The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14). The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicate that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed. Example: Complaint #4-38279458621 PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues. Complaint #4-35886177923	Att 14 (D22/169610) – Summary of Complaints	Submission states that FFG clients are provided with: -client information booklet -client money and property policy -governance policy -feedback and complaints form (this has a specific clause advising clients how to make a complaint to the NDIS Commission) -feedback and complaints policy -advocacy or support person request form; and -provision of supports policy - dedicated email for complaints and feedback. Submission states that website contains links to Complaints policy and the Commission.	The response contains many statements about documents available and commitments to practice. The submission does not provide records or any supporting information that demonstrate how the Provider or Vida Reid have managed and resolved complaints or ensured that complaints are welcomed and respected. Access to the website is restricted (D22/222456). The information supplied fails to demonstrate the Provider or Vida Reid have achieved the outcome required to meet the Practice Standard.

Element	Information/evidence/source	Reference Location	Summary of information received from submission from Provider and Ms Reid c/o Tom & Co legal	Comments
	"I would like to remain anonymous due to security reasons as I'm scared for my family at this moment in time with most recent events."		Submission states that staff are trained and comply with a list of activities. Comment that these documents can be supplied, if required. Submission states that the Provider has a complaints register. A copy of the Feedback and Complaints Management policy and Feedback and Complaints form is distributed by FFG to each participant. Submission states that electronic records retained by FFG can be verified by the Commission.	
Breaches a condition – Human Resource Management	Therapy team, Sally See (Masters in Sexology and specialises in couples-therapy) Janine Hall, former Support Coordinator FFG has alleged that a Ms Sally See was employed by FFG as a counsellor until 5 April 2022 (Att 9). This is supported by a search conducted on the FFG website (Att 25). According to searches conducted on 13 October 2022, Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). (Att 32). As at 14 October 2022 there is no record of a "Sally See" in the worker screening or contact information held by the Commission.	Att 6A (D22/184618) – Statement of Reasons Att 9 (D22/186518) – Sally See FFG Counsellor Att 25 (D22/184648) – FFG Website Screenshot Att 32 (D22/184671) – Searches for Counsellor Qualifications	Submission states that Ms See holds a Master in Sexology; a Master in Counselling Practice; and an Honours Degree in Psychology with Counselling. Submission confirms that Ms See does not hold ACA or AHPRA qualification. Submission states that Ms See is registered with the Psychotherapy and Counselling Federation of Australia (PCFA).	A copy of any qualifications has not been provided. No details about Worker Screening clearance have been provided. A search of the PCFA databases (D22/222411) does not locate Sally See as registered with them. The information supplied fails to demonstrate the Provider has achieved the outcome required to meet the Practice Standard.

NDIS Quality and Safeguards Commission

Our ref: 4-HOJ09AX

Ms Vida Reid
C/O Tom & Co Legal Pty Ltd
PO Box 25567
Perth WA 6000

By email to: info@tomandcolegal.com.au; vida@ffg.net.au; feedback@ffg.net.au

Dear Ms Reid,

Notice of Banning Order under section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* with immediate effect.

I enclose a banning order made under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act). I have made the order on the basis that I reasonably believe that you have contravened, are contravening, or are likely to contravene the NDIS Act, in accordance with section 73ZN(2)(a)(i) of the NDIS Act.

This banning order prohibits you from being involved in the provision of supports or services to people with disability for a period of five (5) years.

This banning order will not apply in relation to any supports or services that you may seek for yourself or that you may provide to your son.

You should refer to the enclosed document, which clearly set out the banning order and reasons for my decision to make such an order.

Please note that the banning order takes effect on **Tuesday 20 December 2022 at 5:30pm (AWST)**.

Review under section 100 of the NDIS Act

You may request a review of my decision to make a banning order. You may do so within three months from the date the order is served on you.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on 1800 035 544 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

In addition to applying for a review of this decision under section 100 as outlined above, you may apply for a variation or revocation of the banning order under section 73ZO of the NDIS Act.

Any decision made pursuant to an application under section 73ZO is itself a reviewable decision under section 100. The application must be in writing and explain why you believe the banning order should be revoked or varied. If you are requesting a variation, you should also provide details of the type of variation requested.

Non-compliance with the banning order

Please note that engaging in conduct that breaches the banning order that has been made against you is a contravention of section 73ZN(10) of the NDIS Act, for which there is a civil penalty of up to $222,000 for an individual.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which includes certain information about NDIS providers and other persons. Relevant information about the banning order will be included on the NDIS Provider Register and published on the NDIS Commission's website.

Yours sincerely



Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc: Attachment A – Banning Order
Attachment B – Statement of Reasons

NDIS Quality and Safeguards Commission

ATTACHMENT A

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER

I, Philip Halton, give this Banning Order to Vida Reid as I reasonably believe that, the person has contravened, is contravening, or is likely to contravene this Act. (NDIS Act s73ZN(2)(a)(i)).

Pursuant to section 73ZN(2)(a)(i) of the NDIS Act, I prohibit Vida Reid from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of **five (5) years** from the date that this order takes effect.

However, does banning order will not apply in relation to any supports or services that Vida Reid may seek for herself or that she may provide to her son.

My reasons for making this order are set out in the enclosed statement of reasons.

This order takes effect on **Tuesday 20 December 2022 at 5:30pm (AWST)**.

Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER: STATEMENT OF REASONS

This is a statement of reasons for the making of a banning order on 20 December 2022 against Ms Vida Reid, under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act).

Reasons for my decision

1. At the relevant time Ms Reid was a Director, and key personnel of Forward Focused Group Pty Ltd (Forward Focused Group), Registration 4-4GHG-1073.

2. Ms Reid was a Director of Forward Focused Group until November 2022.

3. The Commission holds information that Ms Reid has contravened, is contravening, or is likely to contravene the NDIS Act.

4. On 19 October 2022, I issued you with a letter to inform you of the relevant facts and matters I have considered in reaching my preliminary view that it may be appropriate in all circumstances to make a Banning Order prohibiting you for a period of ten (10) years from being involved in the provision of supports or services to people with disability.

5. I also gave you the opportunity to make a submission before I made my final decision.

6. Submissions were due no later than 5.00pm (AWST) on 16 November 2022.

7. I received a request for an extension to that timeframe and granted additional time for submissions through to 30 November 2022 (the extended submission date).

8. I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to make a Banning Order against you.

9. I note that you are no longer the Director of Forward Focused Group. With the exception of this fact, all other relevant facts and information held by the Commission in forming the preliminary view to make a Banning Order against you have not changed.

10. According to information available to the Commission, you as Director of Forward Focused Group, assigned yourself with authority to make decisions on behalf of NDIS participants. This information suggests that you were not taking all reasonable steps to prevent and respond to all forms of exploitation of people with disability. By way of example,
    a) The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

11. The Commission has received information and allegations that strongly suggest that you as Director of Forward Focused Group frequently engaged in bullying, harassment and intimidation behaviours directed at NDIS participants and Forward Focused Group staff. Your alleged conduct towards participants and staff has created an environment whereby participants and staff did not feel supported or safe to raise any concerns they have about the quality and safety of supports provided by Forward Focused Group.

12. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission holds information that suggests that you, as a representative of the Provider, did not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from you. This information strongly indicates that you, in your capacity as Director and key personnel, did not ensure that complaints were welcomed, acknowledged, respected and well-managed.

13. The Commission also holds information that you as Director of Forward Focused Group were not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements with Forward Focused Group. Your email correspondence indicated non-compliance with the *National Disability Insurance Scheme (Code of Conduct) Rules 2018* and included both veiled and direct threats, bullying and harassment. By way of example,
    a) Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager, you wrote "we will be terminating your services with us effective immediately".
    b) Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.
    c) On 1 July 2022, you responded to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."
    d) Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, you purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.
    e) Email 16 June 2022 sent by you to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."
    f) Email 16 June 2022 sent by you to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

14. The Commission holds additional information that indicates that you played a central role in the alleged fraudulent activities engaged in by Forward Focused Group, in particular the submission of false claims for payments to the National Disability Insurance Scheme (Scheme). I am of the view that this demonstrates a failure by you to act with integrity, honesty and transparency.

15. It is alleged that Forward Focused Group were knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

16. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

17. The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that you were withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,
    a) Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided. In your response dated 9 May 2022, you replied "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity … I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures."

18. The Commission holds records of correspondence between you and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for you to immediately terminate engagements with participants. By way of example,

    a) Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

19. The information available to the Commission indicates that you engage in dishonest and intimidating conduct that falls below the standard expected from key personnel of a registered NDIS provider and the director of a company that provides disability supports and services.

Submissions

20. The Commission received a submission on 30 November 2022 (the extended submission date).

21. Your submission notes that a request for further time and further information were not responded to however, the Commission did respond to this request. This is evidenced by the Commission's acceptance of the submission on 30 November 2022 (the extended submission date).

22. Your submission responds to a number of facts and information we raised in the notice of intention to the provider dated 19 October 2022.

23. Your submission confirms that you held relevant information in relation to the issues identified.

24. Your submission denies all allegations.

25. I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.

26. Having weighed all the evidence at hand I have formed the reasonable belief that you have contravened, are contravening, or are likely to contravene the NDIS Act, as per section 73ZN(2)(a)(i) of the NDIS Act.

27. As part of my considerations I am obliged to consider the NDIS Act. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:

    a. Supporting the independence and social and economic participation of people with disability.

    b. Enabling people with disability to exercise choice and control in the pursuit of their goals and the panning and delivery of their supports.

    c. Protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the National Disability Insurance Scheme.

28. In giving effect to the objects of the NDIS Act, including those outlined above, section 3(3)(b) requires regard to be had to the need to ensure financial sustainability of the National Disability Insurance Scheme (NDIS). Similarly, as set out in NDIS Act section 4(17) it is the intention of the Parliament that the Commissioner, amongst others, have regard to the need to ensure financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act.

29. The need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs your interest in continuing to be involved in the provision of supports or services to people with a disability.

30. In determining whether to make a Banning Order for you, I weighed the following competing interests and concerns:
    a. The nature of your alleged breaches of the NDIS Act are serious, as they involve instances of verbal and emotional abuse involving threats towards vulnerable persons with disability to whom you were providing services and supports on a regular basis. The Commission holds information that suggested that you exerted undue influence over a number of participants that limited them from exercising their choice and control over their own supports and services.
    b. The Commission holds information that suggests that you have been using your position to exploit participants who are in vulnerable situations despite your knowledge of your obligations under the NDIS Act. For these reasons, I am concerned your breaches will continue to occur in future.

31. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from key personnel of NDIS providers when providing supports or services to people with disability. The information before me in relation to the protracted length of time over which the alleged conduct took place suggests that your conduct was systemic in nature. Allowing you to continue providing supports or services to people with disability poses a continuing risk to people with disability.

32. I am of the view that making a Banning Order against you would provide a strong level of protection for people with disability and maintain community confidence in the Scheme.

33. For the avoidance of doubt, the Banning Order will prevent you from having any involvement whether directly or indirectly in the delivery, coordination and management of NDIS-funded supports and services to people with disability.

34. The ban will therefore preclude you from having any involvement in any other entity that provides supports and services to NDIS participants.

35. I accept that the making of a banning order for you will impact your ability to earn an income in the disability services sector, and I have taken this into account in my consideration to issue the banning order.

36. I consider your alleged conduct is entirely relevant to my assessment of your suitability to be involved in the provision of supports or services to NDIS participants, in considering the objects and principles of the NDIS Act. This is particularly the case as the parties impacted by your actions are NDIS participants.

37. I consider that a timeframe of five (5) years is appropriate and will provide a strong level of protection for people with disability.



Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NDIS Quality and Safeguards Commission

Our Ref: EC23-000XXX

Dream Big Employment Pty Ltd
93 663 473 694
Unit 2, 210 Jull St
Armadale, WA 6112

By email to: DB0004@dream-big.com.au; vitality.wa@yahoo.com

Dear Ms Virginie Fanny-Dulloo

Notice under section 56 of the *National Disability Insurance Scheme Act 2013*
Accompanying this letter is a notice of a requirement (notice) under section 56 of the *National Disability Insurance Scheme Act 2013* (Cth) (NDIS Act), dated 20 January 2023, directed to Dream Big Employment Pty Ltd.

You will see that it requires that the information be given and documents produced to the Commissioner by no later than 5:00 pm on Monday 6 February 2023.

Section 57 of the NDIS Act makes it an offence to refuse or fail, without reasonable excuse, to provide information or documents if required to do so by a notice under section 56. The offence is punishable on conviction by a fine of not more than $41,250 for a body corporate.

Further information and assistance
If you require further information in relation to this matter, please contact Assistant Director, Mr Matt Read on 0476 642 561 or by email at matt.read@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head, North Central West
NDIS Quality and Safeguards Commission

20 January 2023

NDIS Quality and Safeguards Commission

To: Dream Big Employment Pty Ltd
93 663 473 694
Unit 2, 210 Jull St
Armadale, WA 6112

NOTICE OF REQUIREMENT TO GIVE INFORMATION & PRODUCE DOCUMENTS
SECTION 56 OF THE *NATIONAL DISABILITY INSURANCE SCHEME ACT 2013* (NDIS Act)

Pursuant to section 55A(1) of the NDIS Act I, Philip Halton, delegate of the Commissioner of the NDIS Quality and Safeguards Commission (the Commission), require you to:

- give the information contained in Schedule 1 of this notice in writing; and
- produce the documents described in Schedule 2 of this notice

to the Commissioner by no later than **5:00pm** on **Monday 6 February 2023**.

Basis for this notice
I give this notice in accordance with section 56 of the NDIS Act. I require you to **g**ive information and produce documents that I reasonably believe you have, or have custody or control of, that may be relevant to one or more of the matters listed in section 55A(2) of the NDIS Act. In respect of this notice, the matters are:

- whether Ms Vida Reid (Ms Reid), a person subject of a banning order made under section 73ZN of the NDIS Act, is providing or has provided supports or services in contravention of the order (section 55A(2)(e));
- whether Mr Simon Reid (Mr Reid), a person subject of a banning order made under section 73ZN of the NDIS Act, is providing or has provided supports or services in contravention of the order (section 55A(2)(e));
- whether Dream Big Employment Pty Ltd (Dream Big), as an NDIS provider, is complying or has complied with the requirements of the NDIS Code of Conduct, particularly sections 6(a)[1] and 6(d)[2], in the provision of supports and services to Ms Annette Ogden (Ms Ogden) and other NDIS participants, as required by section 73V of the NDIS Act (section 55A(2)(d));
- whether Ms Tori Fitton (Ms Fitton), as a person employed by a NDIS provider (Dream Big), complied with the requirements of the NDIS Code of Conduct, particularly sections 6(a) and 6(d), in the provision of supports and services to Ms Ogden, as required by section 73V of the NDIS Act (section 55A(2)(d)); and
- the functions of the Commissioner with respect to monitoring, compliance and enforcement of Dream Big's, Ms Reid's, Mr Reid's and Ms Fitton's obligations under the NDIS Act (section 55A(2)(f)).

A copy of the relevant legislative provisions is contained in **Schedule 3** to this notice.

[1] National Disability Insurance Scheme (Code of Conduct) Rules 2018.

[2] Ibid.

How to give the information and produce the documents
To comply with this notice, the information listed in Schedule 1 must be provided in writing, and the documents in Schedule 2 may be provided in hard copy or electronically, and may be:

1. delivered to the NDIS Quality and Safeguards Commission's offices at Level 1, 200 St Georges Terrace, Perth WA 6000 attention Matt Read, Assistant Director between 8.30 am and 5.00 pm on any business day; or
2. sent by ordinary post addressed to the attention of Matt Read, Assistant Director, NDIS Quality and Safeguards Commission, Level 1, 200 St Georges Terrace, Perth WA 6000; or
3. sent by email to wacompliance@ndiscommission.gov.au attention of Matt Read, Assistant Director

to arrive by no later than the time stated above.

Non-compliance with this notice
Refusal or failure, without reasonable excuse, to comply with this notice is an offence under section 57(1) of the NDIS Act punishable on conviction by a penalty not exceeding $41,250 for a body corporate.

Further information
If you need assistance in understanding or complying with this notice, require more time or wish to discuss, please contact Matt Read, Assistant Director, NDIS Quality and Safeguards Commission, Perth on 0476 642 561 or by email matt.read@ndiscommission.gov.au.

Finally, you should keep a copy of all information you send to the Commission for your own records, as we may need to contact you again in relation to this matter.

Philip Halton
Branch Head, North Central West
NDIS Quality and Safeguards Commission

20 January 2023

Schedule 1

This is **Schedule 1** to the Notice dated <date>.

The information that you are required to give by **5:00 pm** on **Monday 6 February 2023** is as follows:

1. Names, position title and responsibilities of each person employed, or otherwise engaged, by Dream Big to provide NDIS supports or services;
2. Details of the involvement and role of Ms Veronica Reid in the establishment and ongoing operations of Dream Big;
3. Details of the involvement and role of Ms Reid and Mr Reid in the establishment and ongoing operations of Dream Big and the delivery of supports and services to Ms Ogden;
4. Details of the financial arrangements of Dream Big, including details of its bank accounts and signatories to those bank accounts;
5. Details of contracts or agreements entered into by Dream Big with other entities and/or individuals, including Ms Reid and Access Disability Services WA Pty Ltd;
6. Details of the arrangements for the delivery of supports and services at 3 MacArthur St, Cottesloe WA 6011 and any other property owned by Mr and/or Ms Reid;
7. Details of how Dream Big has built its NDIS participant client-base, including details of any information about NDIS participants sourced from or provided by Forward Focussed Group Pty Ltd and/or Hybrid Hive Pty Ltd and/or Ms Reid;
8. Details of how Dream Big came to commence delivering supports and services to Ms Ogden in or about December 2022, including details of the dates in which Dream Big commenced the delivery of supports and services and any service agreements executed and/or varied; and
9. Details concerning the cessation of supports and services by Dream Big to Ms Ogden in December 2022.

Schedule 2

This is **Schedule 2** to the Notice dated <date>.

These are the documents that you are required to produce, electronically or in hard copy, by 5:00 pm on Monday 6 February 2023:

1. Copies of any contracts or other agreements (for example, profit share agreement) proposed and/or executed between Dream Big and any individual or entity, concerning the delivery of NDIS supports and services;
2. Copies of all draft, varied and executed service agreements between NDIS participants and Dream Big;
3. Copies of all documents recording or relating to the delivery of NDIS supports or services by Dream Big to Ms Ogden;
4. Copies of all documents concerning claims for payment by Dream Big against the NDIS plan of Ms Ogden;
5. Copies of all personal information about NDIS participants sourced from or provided by Forward Focussed Group Pty Ltd and/or Hybrid Hive Pty Ltd and/or Ms Reid;
6. Copies of all correspondence between Dream Big or any of its representatives and Ms Ogden and/or Mr Ogden concerning the provision of NDIS supports or services, including claims for payment against Ms Ogden's NDIS plan; and
7. Copies of all correspondence between Dream Big or any of its representatives and Access Disability Services WA Pty Ltd and/or Mr Paul Ugwunali concerning the delivery of NDIS supports and services to Ms Ogden.

Schedule 3

Section 55A Power of Commissioner to obtain information from other persons to ensure the integrity of the National Disability Insurance Scheme etc.

(1) If the Commissioner reasonably believes that a person, other than a prospective participant or a person receiving supports or services from an NDIS provider, has information, or has custody or control of a document, that may be relevant to one or more of the matters mentioned in subsection (2), the Commissioner may require the person to give the information, or produce the document, to the Commissioner.

(2) The matters are as follows:

(a) whether an NDIS provider is contravening subsection 73B(2) (requirement to be a registered NDIS provider);

(b) whether a person applying for registration under subsection 73E(1) satisfies the requirements mentioned in that subsection;

(c) whether a registered NDIS provider is meeting the conditions of registration mentioned in subsection 73F(1);

(d) whether an NDIS provider, or a person employed or otherwise engaged by an NDIS provider, is complying with the requirements of the NDIS Code of Conduct;

(e) if an NDIS provider, or a person employed or otherwise engaged by an NDIS provider, is subject to a banning order—whether the person is providing supports or services in contravention of the order;

(f) the functions of the Commissioner.

Section 56 Written notice of requirement

(1) A requirement under section 55 or 55A must be made by written notice given to the person of whom the requirement is made.

(2) The notice must specify:

(a) the nature of the information or document that is required to be given or produced; and

(b) how the person is to give the information or produce the document; and

(c) the period within which the person is to give the information or produce the document to the Agency or Commissioner; and

(d) if the notice is given by the CEO—the Agency officer to whom the information is to be given or the document is to be produced; and

(da) if the notice is given by the Commissioner—the Commission officer to whom the information is to be given or the document is to be produced

(e) that the notice is given under this section.

(3) The period specified under paragraph (2)(c) must be at least 14 days beginning on the day on which the notice is given.

(4) If the notice is given by the CEO:

(a) the notice may require the person to give the information by appearing before a specified Agency officer to answer questions; and

(b) if paragraph (a) applies—the notice must specify a time and place at which the person is to appear, which must be at least 14 days after the notice is given.

(5) If the notice is given by the Commissioner:

(a) the notice may require the person to give the information by appearing before a specified Commission officer to answer questions; and

(b) if paragraph (a) applies—the notice must specify a time and place at which the person is to appear, which must be at least 14 days after the notice is given.

Section 57 Offence - refusal or failure to comply with requirement

(1) A person must not refuse or fail to comply with a requirement under section 55 or 55A to give information or produce a document.

Penalty: 30 penalty units.

Note: If a body corporate is convicted of an offence against this subsection, subsection 4B(3) of the *Crimes Act 1914* allows a court to impose a fine of up to 5 times the penalty stated above.

(2) Subsection (1) does not apply if the person has a reasonable excuse.

Note: A defendant bears an evidential burden in relation to the matter in this subsection: see subsection 13.3(3) of the *Criminal Code*.

(3) It is a reasonable excuse for an individual to refuse or fail to give information or produce a document on the ground that to do so might tend to incriminate the individual or expose the individual to a penalty.

Division 137 – Criminal Code Act 1995

137.1 False or misleading information

(1) A person commits an offence if:

(a) the person gives information to another person; and

(b) the person does so knowing that the information:

(i) is false or misleading; or

(ii) omits any matter or thing without which the information is misleading; and

(c) any of the following subparagraphs applies:

(i) the information is given to a Commonwealth entity;

(ii) the information is given to a person who is exercising powers or performing functions under, or in connection with, a law of the Commonwealth;

(iii) the information is given in compliance or purported compliance with a law of the Commonwealth.

Penalty: Imprisonment for 12 months.

(1A) Absolute liability applies to each of the subparagraph (1)(c)(i), (ii) and (iii) elements of the offence.

(2) Subsection (1) does not apply as a result of subparagraph (1)(b)(i) if the information is not false or misleading in a material particular.

Note: A defendant bears an evidential burden in relation to the matter in subsection (2). See subsection 13.3(3).

(3) Subsection (1) does not apply as a result of subparagraph (1)(b)(ii) if the information did not omit any matter or thing without which the information is misleading in a material particular.

Note: A defendant bears an evidential burden in relation to the matter in subsection (3). See subsection 13.3(3).

(4) Subsection (1) does not apply as a result of subparagraph (1)(c)(i) if, before the information was given by a person to the Commonwealth entity, the Commonwealth entity did not take reasonable steps to inform the person of the existence of the offence against subsection (1).

Note: A defendant bears an evidential burden in relation to the matter in subsection (4). See subsection 13.3(3).

(5) Subsection (1) does not apply as a result of subparagraph (1)(c)(ii) if, before the information was given by a person (the ***first person***) to the person mentioned in that subparagraph (the ***second person***), the second person did not take reasonable steps to inform the first person of the existence of the offence against subsection (1).

Note: A defendant bears an evidential burden in relation to the matter in subsection (5). See subsection 13.3(3).

(6) For the purposes of subsections (4) and (5), it is sufficient if the following form of words is used:

"Giving false or misleading information is a serious offence".

137.2 False or misleading documents

(1) A person commits an offence if:

(a) the person produces a document to another person; and

(b) the person does so knowing that the document is false or misleading; and

(c) the document is produced in compliance or purported compliance with a law of the Commonwealth.

Penalty: Imprisonment for 12 months.

(2) Subsection (1) does not apply if the document is not false or misleading in a material particular.

Note: A defendant bears an evidential burden in relation to the matter in subsection (2). See subsection 13.3(3).

(3) Subsection (1) does not apply to a person who produces a document if the document is accompanied by a written statement signed by the person or, in the case of a body corporate, by a competent officer of the body corporate:

(a) stating that the document is, to the knowledge of the first-mentioned person, false or misleading in a material particular; and

(b) setting out, or referring to, the material particular in which the document is, to the knowledge of the first-mentioned person, false or misleading.

Note: A defendant bears an evidential burden in relation to the matter in subsection (3). See subsection 13.3(3).

Schedule 1 Draft Response

1. Names, position title and responsibilities of each person employed, or otherwise engaged, by Dream Big to provide NDIS supports or services;

- Alex Bowers, Support Worker, gives support to our participants.
- Blake Sadler, Director of Operations, Support Coordinator for our participants.
- Ousman Kamara, Support Worker, gives support to our participants.
- Paula Stanford, Support Worker, gives support to our participants.
- Samza Serry, Support Worker, gives support to our participants.
- Tori Fitton, Director of Finance, oversees finance for the business, invoicing participants, payroll, in and out goings.
- Virginie Fanny-Dulloo, Director of Housing and Operations, housing enquiries, schedular for support workers, documents for participants that require support workers.

2. Details of the involvement and role of Ms Veronica Reid in the establishment and ongoing operations of Dream Big;

- Trustee of the company
- No other involvement

3. Details of the involvement and role of Ms Reid and Mr Reid in the establishment and ongoing operations of Dream Big and the delivery of supports and services to Ms Ogden;

- Mr Reid Submitted the ASIC form on our behalf as we did not know how to do this and were out of jobs and fearful of not being able to put food on the table. It was only a good deed nothing more to help the ex-employees.
- No involvement in the ongoings of the operations of Dream Big and the delivery of supports and services to Ms Ogden other than Ms Reid allowed Ms Ogden to rent the property in Cottesloe as per the request of her husband from our knowledge.

4. Details of the financial arrangements of Dream Big, including details of its bank accounts and signatories to those bank accounts;

- Dream Big bank with Commonwealth
- Account was set up by Virginie Fanny-Dulloo at the Armadale branch
- Virginie Fanny-Dulloo and Tori Fitton are the only Signatories/ authorizations to the account

5. Details of contracts or agreements entered into by Dream Big with other entities and/or individuals, including Ms Reid and Access Disability Services WA Pty Ltd;

- No contracts or agreements entered into by Dream Big with Access Disability Services WA Pty Ltd.
- Rental of properties if we needed for our participants.

6. Details of the arrangements for the delivery of supports and services at 3 MacArthur St, Cottesloe WA 6011 and any other property owned by Mr and/or Ms Reid;

- No details of the arrangements for the delivery of supports and services at 3 MacArthur St, Cottesloe WA 6011 with Ms Reid and Mr Reid
- Supports and services delivered to participants occupying 3 MacArthur St, Cottesloe WA 6011, from Dream Big support workers and participants individual third-party support workers from Mable
- Supports and services delivered to participants occupying 25/19 Malibu Rd Safety Bay, from Dream Big support workers

7. Details of how Dream Big has built its NDIS participant client-base, including details of any information about NDIS participants sourced from or provided by Forward Focussed Group Pty Ltd and/or Hybrid Hive Pty Ltd and/or Ms Reid;

- Participants from Forward Focused Group Pty Ltd reached out to Blake to see if we were still in business. They had begged us to create our own company and help them because they did not wish to go with any other providers.
- Participants from Hybrid Hive Pty Ltd reached out to Blake to see if we were still in business. They had begged us to create our own company and help them because they did not wish to go with any other providers.
- No client's information given to us from Ms Reid or Mr. Reid
- Blake Sadler had been contacted by multiple participants requesting help specifically from him.
- Jonathan Shapiera became Dream Bigs client when Dream Big took over from access disability at the request of jonathan shapiera and his concerns with his treatment and billing of his plan by access disability.
- Annette Ogden became Dream Bigs client when Dream Big took over from Paul at access disability due to request from Ms Ogden's husband, Mr Ogden

8. Details of how Dream Big came to commence delivering supports and services to Ms Ogden in or about December 2022, including details of the dates in which Dream Big commenced the delivery of supports and services and any service agreements executed and/or varied; and

- Virginie Fanny-Dulloo was contacted by support workers, transferred to Access Disability Services WA Pty Ltd from Hybrid Hive regarding not being paid for supports provided to Ms Ogden from Access Disability Services
- Annett's husband was concerned with Paul at access disability not staffing enough and adequate people for his wife, so he requested we take over the house and supports for Annette's safety and wellbeing. We then agreed to do so.
- Tori Fitton contacted Mr Ogden because his wife, Ms Ogden was currently living on the premises and receiving care from Access Disability Services
- Tori Fitton informed Mr Ogden Dream Big was taking over the lease from Hybrid Hive and if he would like his wife to continue to stay at the property, she will need to be onboarded to Dream Big and receive supports from Dream Big support workers
- Mr Ogden agreed to move Ms Ogden over to Dream Big
- Tori Fitton informed Mr Ogden a Service Agreement will need to be signed before Dream Big can commence rostering support workers for Ms Ogden

- Supports and services started on the 07/12/2022 at a 1:1 rate, as outlined by the signed Service Agreement 6/12/2022
- Ms Ogden also received supports from a third-party company, Mable. They would come from 10am – 2pm, Monday to Friday. 9am- 1pm Saturday to Sunday for one-on-one support
- Virginie Fanny-Dulloo was asked twice to cover a Mable Ladies shift. These occurred on the 08/12/2022 and 13/12/2022
- Ms Ogden received 1:1 supports and services from Dream Big 20 hours a day, seven days a week.
- Mr. Ogden then denied paying our staff or support work done due to having to pay Mable 1:1 support cost referencing the Mable staff as "Annette's family and friends ". When advised friends cannot be paid by NDIS Mr Ogden made threats to let us go and make a complaint.
- Mr Ogden emailed Tori Fitton on the 20/12/2022 indicating the ceasing of services effective immediately
- Supports and services were provided to Ms Ogden by Dream Big from the 07/12/2022 to 20/12/2022
- Mr. Ogden also stated he will not be paying any rent, utilities or anything else.

9. Details concerning the cessation of supports and services by Dream Big to Ms Ogden in December 2022.

- Mr Ogden emailed Tori Fitton on the 20/12/2022 informing he is ceasing our services for MS Ogden effective immediately
- Mr Ogden outlined his concerns in the email, to which Tori Fitton replied
- Dream Big DID NOT cease the supports and services to Ms Ogden, this was done by her husband, Mr Ogden

TRANSCRIPT

Reference:
4-HOIWASG

Interview between:
MATT READ
MARIE SHARON VIRGINIE FANNY-DULLOO

Also present:
KEREN HAYWOOD

Thursday, 09 March 2023, at 11:05AM

At Level 1/200 St George's Terrace, Perth, Western Australia, 6000

READ: Okay. So, that is now recording. This is an electronically video recorded interview between Matt Read, Assistant Director of National Disability Insurance Scheme Quality and Safeguards Commission, and I'm going to say the name I've got and then we'll go through your full name. But Virginie Fanny-Dulloo?

FANNY-DULLOO: Hmm.

READ: Yep? Okay. The interview is being conducted at the NDIS Quality and Safeguards Commission's office located at Level 1/200 St George's Terrace, Perth, WA, on Thursday 9th of March 2023. The time by my clock is now 11:05AM. Also present is Keren Haywood, senior investigator, who will be assisting me with the interview today. For the purpose of transcription voice identification, can you please state your name in full and spell your name.

FANNY-DULLOO: Yep. So, full name is Marie, M-A-R-I-E, Sharon, S-H-A-R-O-N, Virginie, V-I-R-G-I-N-I-E - - -

READ: Yep.

FANNY-DULLOO: - - - Fanny-Dulloo, F-A-N-N-Y, hyphen, D-U-L-L-O-O.

READ: Okay.

FANNY-DULLOO: And, there's two O's.

READ: Two O's?

FANNY-DULLOO: Yes.

READ: Yep. Okay. During the interview, my questions and your answers will be recorded on the electronic video recorder as our interview takes place. Do you understand that?

FANNY-DULLOO: Yep.

READ: A copy of the interview can be provided to you at your request either at the conclusion of this interview or at any time in the future. Do you have any difficulties understanding what I'm saying?

FANNY-DULLOO: No.

READ: Do you have any difficulties reading or understanding the English language?

FANNY-DULLOO: No.

READ: Do you identify as being Aboriginal or Torres Strait Islander descent?

FANNY-DULLOO: No.

READ: So – and I have my identity card here which basically shows that I am an authorised person. Can you please confirm that I've just shown you my identity card.

FANNY-DULLOO: Yes.

READ: If you require a break at any time, please let me know and I'll arrange a break.

FANNY-DULLOO: Yep.

READ: Do you have any questions around that?

FANNY-DULLOO: No.

READ: Okay. So, in a notice under Section 56 of the National Disability Insurance Scheme Act 2013, you were directed to appear before myself to answers questions. The notice was dated the 20th of January 2023 and at your request an extension was granted by the delegate for you to attend today, which is Thursday the 9th of March 2023. Do you agree?

FANNY-DULLOO: Yes.

READ: Yep. Okay. So, Section 57 of sub-section 3 of the NDIS Act 2013 does – so Section 57, sub-section 3 talks about a reasonable excuse and privilege that you have against self-incrimination. I must inform you that under Section 57, sub-section (1) of the NDIS Act, it is an offence to refuse to answer questions asked by myself or Keren during this interview and the offence is a maximum of 30 penalty units which is effectively a financial amount of $8250. However, under Section 57, sub-section (2) of the NDIS Act, you may refuse or fail to give information if you have a reasonable excuse. This includes refusing to answer a question on grounds that it may tend to incriminate you or expose you to a penalty. What this means is that if you're asked – and I'll try and put this into normal terms. What it means is that if you're asked a question, the answer to which you believe might tend to incriminate you to

either prosecution or penalty, then please say that – to avoid any potential self-incrimination, "I prefer not to answer that question". Do you understand that?

FANNY-DULLOO: Yes.

READ: Yep. So, do you understand what I mean by – what is the meaning of "self-incrimination"?

FANNY-DULLOO: Yep.

READ: To something that you say that might actually - - -

FANNY-DULLOO: Go against me.

READ: Yeah. That may be used further down the line.

FANNY-DULLOO: Yep.

READ: Potentially at court or to make a decision around the penalty.

FANNY-DULLOO: I'm not sure I will remember what – the whole line, what I need to say but - - -

READ: That's fine. So, we will have that discussion each time - - -

FANNY-DULLOO: Hmm.

READ: - - - if indeed you actually say, "I'd rather not answer" - - -

FANNY-DULLOO: Yep. Yep. Okay.

READ: - - - "because I want to preserve myself." Because if you do decide to use the potential for self-incrimination or self-exposure to a

penalty as a reasonable excuse, you will be asked to clarify how the reasonable excuse applies.

FANNY-DULLOO: Hmm.

READ: So, while you're not required to tell me the details of the matters that you may – that you say may incriminate or expose you, you will be asked to explain to answer the question why it may incriminate you. Okay?

FANNY-DULLOO: Okay.

READ: It's a bit complex but I guess we can cover that - - -

FANNY-DULLOO: Yeah. It's very complex because then there's no way of telling – like, of saying that if you need to explain that. Yeah. That's right.

READ: But my advice is if you're not comfortable with answering a question because you think, "Is this going to lead me open to penalty or something?" then please say I'm not comfortable, and we can – we'll have that discussion.

FANNY-DULLOO: Okay.

READ: And, I'll guide you through that because we make sure you've got your rights but aware of a medium to provide a reason why, you know, it's - - -

FANNY-DULLOO: Hmm.

READ: Okay. In other words, how the response to the question being asked might incriminate you or expose you to a penalty, but keep

in mind that our investigation – the commission's investigation – is focused on Dream Big as an organisation. Okay?

FANNY-DULLOO: (no verbal response)

READ: I remind you that failure to provide information without a reasonable excuse is an offence. If you are prosecuted for an offence under Section 57 of the Act for refusing or failing to comply with a requirement under Section 55 or 55A of the NDIS Act, including a question asked of you in this interview, you will bear the evidential burden of proving that you had a reasonable excuse not to answer. Okay? So, in other words, the – the onus is on you to prove why you shouldn't answer a question. All right?

FANNY-DULLOO: Mmm.

READ: Okay. Also, in addition to the National Disability Act, there's Section 1371, sub-section (1) of the Criminal Code Act 1995 which is a Commonwealth Criminal Code Act. And, it's a serious offence under that section of that Act to knowingly provide false or misleading information to a person who is exercising powers of performing functions under, or in accordance with a law of conduct. So, we're a Commonwealth government agency so it comes under the criminal code. So, it's a Commonwealth offence to give false of misleading information. A court may impose penalties or make orders against you for doing so. Do you understand that?

FANNY-DULLOO: Yes.

READ: Good. You do have the right to have a lawyer or independent support person present during the interview. Do you understand that?

FANNY-DULLOO: Yes.

READ: Yeah. And, we had a conversation pre - - -

FANNY-DULLOO: Yes.

READ: Before the interview about two persons that had come to support you, but they weren't disclosed in writing two days before as per the notice requirements.

FANNY-DULLOO: Hmm.

READ: Okay. Do you agree that there's no other person present in the room apart from myself, yourself and Keren Haywood?

FANNY-DULLOO: Yes.

READ: Keren, did I ask you to introduce – now, if you just introduce yourself with name, position and spell your name?

HAYWOOD: Yep. My name's Keren Haywood. I'm a senior investigator here at the NDIS Commission. I'll spell out my name. It's K-E-R-E-N H-A-Y-W-O-O-D.

READ: Okay. And, can you – do you agree that you're attending this interview as directed in the Section 56 notice that you were provided with?

HAYWOOD: Yes.

READ: And, can you confirm that you are not therefore attending – participating under coercion, threat or inducement?

FANNY-DULLOO: Sorry. Can you repeat that.

READ: So, you confirm that you're here under the Section 56 direction which is a legal requirement?

FANNY-DULLOO: Yep.

READ: As opposed to being threatened, coerced or induced to come by the Commission, me, Keren or any other person?

FANNY-DULLOO: Yeah.

READ: Okay. Are you under the influence of any prescribed or unprescribed medication, drugs or alcohol at the current time?

FANNY-DULLOO: No.

READ: Is there any reason why you cannot complete this interview at this time?

FANNY-DULLOO: No.

READ: No. Do you have any questions you would like to ask before we continue?

FANNY-DULLOO: No.

READ: Okay. So, you gave your name as Marie Sharon Virginie Fanny-Dulloo. Is that your full name?

FANNY-DULLOO: Yes.

READ: Do you by any other name?

FANNY-DULLOO: Virginie.

READ: Virginie. Okay. What is your age and date of birth?

FANNY-DULLOO: 39; 11.01.1984.

READ: Okay. So, you're 39 years of age?

FANNY-DULLOO: Yes.

READ: 11th of January 1984. Yeah?

FANNY-DULLOO: (no verbal response)

READ: And, what is your current address?

FANNY-DULLOO: 33 Stillwell Circuit, S-T-I-L-L-W-E-L-L Circuit.

READ: Yep.

FANNY-DULLOO: In Hilbert, H-I-L-B-E-R-T.

READ: H-A - - -

FANNY-DULLOO: H-I-L-B-E-R-T.

READ: V-E-R-T?

FANNY-DULLOO: B for B.

READ: Hilbert?

HAYWOOD: Hilbert?

FANNY-DULLOO: Yes.

HAYWOOD: What number is it?

FANNY-DULLOO: 6112. The home address?

HAYWOOD: Yeah.

FANNY-DULLOO: Thirty-three. 33 Stillwell Circuit in Hilbert.

READ: And, the postcode is 6112?

FANNY-DULLOO: Yes.

READ: Okay. So, what is your occupation?

FANNY-DULLOO: Currently the director of housing at the Dream Big.

READ: Okay. So, what is the name of your employer – full name?

FANNY-DULLOO: So, it's the Dream Big Employment Pty Ltd.

READ: Yeah. Okay. And, what's your – so you're a director, Dream Big. What's your employment status? Permanent full time? Casual?

FANNY-DULLOO: Full time.

READ: Full time. Are you an Australian citizen or Australian permanent resident?

FANNY-DULLOO: Citizen.

READ: Yeah. So, the purpose of this interview is to assist the NDIS Quality and Safeguards Commission in its investigation of alleged contraventions of the National Disability Insurance Scheme Act 2013. Specifically, this relates to Dream Big Employment Proprietary Limited – Pty Ltd - - -

FANNY-DULLOO: Hmm.

READ: And, whether the entity has breached the NDIS Code of Conduct around pressuring and coercing participants to receive supports and services from Dream Big Employment Pty Ltd. But also whether Ms Vida Reid and/or Mr Simon Reid have directly or indirectly had or continue to have any involvement whatsoever in the establishment and/or the current ongoing operations of Dream Big Employment Pty Ltd. So, two-fold. Have Dream Big breached the code of conduct in their behaviour in relation to pressuring, coercing or influencing participants to come on board.

FANNY-DULLOO: Hmm.

READ: But also around Simon and Vida's involvement in anything to do with Dream Big.

FANNY-DULLOO: Okay.

READ: Be it miles away on a periphary or influencing staff attending meetings – anything whatsoever. That's what we're talking about.

FANNY-DULLOO: Yeah.

READ: Okay? And, I'm now going to ask you some questions in relation to these matters, and this is where I need to caution you, which is you do not have to say anything but anything you do say may be recorded and given in evidence. Do you fully understand that caution?

FANNY-DULLOO: Yes.

READ: Okay. And – okay. So, you know, this is an interview where you attended. It's an oppy, you know, to hear what concerns may or may not be.

FANNY-DULLOO: Hmm.

READ: And, also, for you to have your say. It's not really the time to protect others, if protecting others is going to come back and cause you some serious grief if you've got a good reputable background CV behind you for the future.

FANNY-DULLOO: Hmm.

READ: That's a comment I just want to make at this stage. Okay?

FANNY-DULLOO: Hmm.

READ: And, you don't have to comment on that, but I think we just need to take that into account. Okay. So, what is your working history and qualifications around that?

FANNY-DULLOO: NDIS? Or you want the whole thing?

READ: Yeah. Your – yeah. What's your background history working, you know, [0:13:58]?

FANNY-DULLOO: So, I've – I've done the Bachelor of Business in Hotel and Hospitality, and then working in hotels for a few years. I went working – mining. So, FIFO. Utility – bus driving at – so bus driving on – at the mines, and try and save, and then came up to –

to NDIS as an account officer and worked my way up to – to housing – to a housing manager, and – and, yeah.

READ: So, when – when did you come on board the NDIS when you came – as account officer and housing manager?

FANNY-DULLOO: In 2021. October 2021.

READ: So, did you have any NDIS exposure before that?

FANNY-DULLOO: Not NDIS exposure but I had the accounts – accounts officer because I was working in a hotel. That's where I was in night editing and all accounts for the – for hotels and all that.

READ: Yeah. Yeah. Okay. But for the purpose of the NDIS environment and dealing – providing supports and services, has it been since October 2021?

FANNY-DULLOO: Yes. So – and then, I - - -

READ: Yeah. So, it's only just over a year then really? And – yes – 18 months, I guess.

FANNY-DULLOO: [0:15:28] two years. Yeah. Yep.

READ: Yep. Yeah. So, what – based on that and your career, if you like, what previous – what industry experience do you have specific to supports and services and, you know, as someone who provides it day to day or running a business.

FANNY-DULLOO: So, I was in – in hotel. So, I was manager. So, front office and HR and supervisors in hotels; not regards to disability people but I was

on board for accounts officer where I then learned a little bit more with regards to the training that was online from the NDIS training and then, from there, I did learn quite a fair bit about how NDIS work and what it is about, and I wanted to do a little bit – like, went out see how – how the work is done really.

READ: Yeah.

FANNY-DULLOO: Like, what it's all about.

READ: Yeah. So, how did you first come to get involved in the NDIS space?

FANNY-DULLOO: Well, there was [0:16:32] so – which I applied for, because I was back then doing bus driving for [0:16:38]. So, early mornings and – yeah. So, I was just – it's quite – bus driving is good but in an environment, like, having people spitting onto you when you're driving or make – you know. So, late nights and all that. And then, I saw that – and I was like – I read about it. I read what NDIS was, what it's standing for, and I feel like I could help in terms of all that. So, accounts officer, on one side was like something I – it's included in my [0:17:11] business. So, that's why I wanted to go back to what I've previously done.

READ: So, who was the first company then that put out that advert that you applied for?

FANNY-DULLOO: For the advert?

READ: Yeah.

FANNY-DULLOO: Forward Focused Group.

READ: Oh, okay. So, you've gone straight – you're straight into Forward Focused Group in – which would lead onto – you know, you know what we've been talking about – the people involved and stuff. So, who recruited you to FFG, Forward Focussed Group?

FANNY-DULLOO: So, there was – who was it – so Tori Roberts and Vida Reid back then.

READ: Yeah. Okay. And, so of the companies – sticking to the NDIS space, if you like – you started with Forward Focussed Group.

FANNY-DULLOO: Hmm.

READ: What other companies have you kind of worked for?

FANNY-DULLOO: With the NDIS?

READ: Yeah. Regardless of who's – regardless of whether Vida's involved or not. So, Forward Focussed Group. Any others?

FANNY-DULLOO: Yeah. So, I worked for The Hive, as the accounts officer for The Hive.

READ: Yeah.

FANNY-DULLOO: And then, when we started doing the housing, I went on – doing housing because then a few, like, I worked almost – most of the year in there, and I kind of understood, "Oh, what's NDIS?"

READ: Yeah.

FANNY-DULLOO: And, a little bit more about NDIS [0:18:42].

READ: Yeah. So, how long did you work for FFG before The Hive?

FANNY-DULLOO: So, October 2021 until – I can't remember really. Like, I would guess February maybe or even January 2022.

READ: Yeah.

FANNY-DULLOO: Yeah. I think around – I can't really remember a lot. Oh, just around that because then I was – I was out of the country for at least a month and a half back in – in March.

READ: Yeah. Okay. So – and what was your day to day involvement and, you know, work responsibilities with the Forward Focussed Group? What tasks did you do? And, where were you based, and all that sort of thing?

FANNY-DULLOO: So, accounting, as the name suggests itself. So, it's with regards to the accounts. So, invoicing, pulling up on payments, and billing as well, and payroll sheet for support workers.

READ: Yeah. Okay. All right. And, so you met Vi – and so went on to work for Hive, and what were your responsibilities with The Hive?

FANNY-DULLOO: So, accounts officer at the beginning – same.

READ: Yeah.

FANNY-DULLOO: So, the invoicing with regards to – like, invoicing, billing. So, billing, invoicing and payroll as well.

READ: Yeah.

FANNY-DULLOO: And, follow up on payments and – and all that.

READ: Okay. So, with Vida Reid, did you have any knowledge of her before you applied for – advert?

FANNY-DULLOO: No.

READ: Did you apply for any other NDIS positions? Any support work or providers or anything?

FANNY-DULLOO: No. Not really. So, Tori and I, we worked together when we were working at – in a hotel. So, she's the one who asked me – like, called me because – and was, like, "Oh, we're actually looking so would you like to apply for it."

READ: And, who's that? Full name?

FANNY-DULLOO: Tori Roberts. I don't know what's her full name.

READ: And, what's her position?

FANNY-DULLOO: She's not with – with us – work with us anymore.

READ: No.

FANNY-DULLOO: So, when I was – when I started, she already left.

READ: Oh, okay. And, how did you know her then? You worked for each other?

FANNY-DULLOO: Yes. When I was working hotels before.

READ: Yeah. Okay.

FANNY-DULLOO: She was a receptionist there, and I was the front office manager there.

READ: Yeah. So, did you say you didn't know Vida before this?

READ: No. Okay. So, what was your kind of context and level of relationship with her once you started working for Forward Focussed Group?

FANNY-DULLOO: Nothing really. Like, we don't – like, in the morning we might have meetings. Like – but, no. Nothing really. Because I worked in the accounts. So, we had, like, a separate office, like, compared to a support coordinator was on – on the floor.

READ: Yeah.

FANNY-DULLOO: So, we don't really have contact with – with her really at all.

READ: Yeah.

FANNY-DULLOO: Before it goes to what's happening. Like, she's in the office. Say, "Hi," and all that but no contacts in terms of, you know.

READ: Yeah.

FANNY-DULLOO: No.

READ: And, where was the office for FFG?

FANNY-DULLOO: In Armidale.

READ: Right. What's the address of that one?

FANNY-DULLOO: 2/210 Jull Street.

READ: Yep. Okay. And, has that – did that remain the – what about The Hive, when you start working at The Hive – did you work from that premises? Or any others?

FANNY-DULLOO: From that premises.

READ: Yep. Have you ever worked out of any other premises other than the Jull Street premises?

FANNY-DULLOO: So, we have houses as well – so which is – so we worked from time to time going there and to be able to support there.

READ: Yeah. Do you know where they are?

FANNY-DULLOO: Yeah.

READ: What addresses are they?

FANNY-DULLOO: Cottesloe, which we don't have anymore but - - -

READ: Which one?

FANNY-DULLOO: Back then? The Cottesloe House which is - - -

READ: Cottesloe? Yeah.

FANNY-DULLOO: - - - 3 MacArthur Road, Cottesloe.

READ: Yeah.

FANNY-DULLOO: So – and then, what else? Okay. So, not – that one is when it was housing. So, not before when I was with – with The Hive and the accounts. Sorry.

READ: Yep.

FANNY-DULLOO: So, The Hive accounts, I worked at the Armidale office. All right? And then, around August, that's when I became the housing manager or helping with the housing – like, housing people, a

housing team. That's why from time to time I would go up to the SIL houses which was one in Cottesloe House and – like, in Cottesloe, and the other one was at Safety Bay.

READ: Do you know the Safety Bay address?

FANNY-DULLOO: Not on top of my head.

READ: No. Okay. Okay. So, as accounts officer, did you get involved in any supports and services?

FANNY-DULLOO: No.

READ: Did you ever go out to the house and support persons with disability?

FANNY-DULLOO: No.

READ: Or provide services to them?

FANNY-DULLOO: No.

READ: No. Were you ever involved in, kind of – kind of attracting, if you like, and attracting new participants? Or - - -

FANNY-DULLOO: No.

READ: No. Or retaining them? Or dealing with anything around - - -

FANNY-DULLOO: No.

READ: That was in the FFG and The Hive?

FANNY-DULLOO: That was – that was a coordination job.

READ: Yeah. Who – so who did that sort of work?

FANNY-DULLOO: Support coordinator. There was a lot. So - - -

READ: There were a lot of support coordinators?

FANNY-DULLOO: Yeah. So - - -

READ: Yeah.

FANNY-DULLOO: So, to help the participants that we do have. Our job was just to, like I said, billing or invoicing – whatever the support coordinators was, you know, like - - -

READ: Yeah.

FANNY-DULLOO: - - - they do their job, they play it the – on Caviar, like, the system we're using, and we extracted that from – from there, and billed as per what the – the Caviar says.

READ: Yeah.

FANNY-DULLOO: And, with regards to support worker back when I was in – at the house, they have the [0:24:49] that we were using as a system. So then, we get the report from the [0:24:56] for the [0:24:59] which is, like, clocking in and clock out of our support workers. And, based on that, that's how we – we were going to [0:25:06]. Because they have where they are and which [0:25:08] they went through.

READ: Yeah.

FANNY-DULLOO: So, not in terms of attracting or anything. No.

READ: Yeah. So, the meetings you mention that you go to, what would – what were the contents of those meetings that you went to?

FANNY-DULLOO: In the morning. So, mostly training. There was a lot of training in the sense of, you know, it's not just the support coordination. It was – everyone was there so that we can learn ourself as well in terms of – for example, when there was any changes. Like, what's – what's an SDA? What's an STA, for example? What's an NTA? Like, all the terms in the price guide that, you know, sometimes might be a little bit – can't read, understand – so they will be, like – like, about that. About how as well, like, you know, if there's any – anything that needed to be – to be attended in terms, like, we do have regular training with the – with – its term of support coordination, but wanted us to – everyone be there so that we understood as well what the job is about. So, that we – you know, to be able to bill, you also need somehow to understand the work that is being done. So – so, yeah. That's what the meeting was about.

READ: Yeah. Okay. Was there any content around building the business? And – because any business has to be sustainable, doesn't it? And, in the NDIS space you need to – if you're going to – if your business is to provide supports and services, you need participants to provide support and services to. So, were there any strategies discussed? Or any - - -

FANNY-DULLOO: Well, I worked as an employee at Forward Focussed or The Hive.

READ: Yeah.

FANNY-DULLOO: So, I have no – like, you know, in, like, nothing to do with regards to that part, if there's anything to - - -

READ: Yeah.

FANNY-DULLOO: Because we were accounts. So, once, you know, the training about – things are done, we go and do our own – own meeting with our CFO.

READ: Yeah.

FANNY-DULLOO: So, that's why we're – we're not in that, so I have no idea.

READ: Yeah. So, you mentioned the Jull Street in Armidale.

FANNY-DULLOO: Hmm.

READ: So, that's accounts. Did you ever get involved in paying the bills for that place? In other words, do you know – have any knowledge around who owned it? Or who was renting it? And, where the bills were paid to?

FANNY-DULLOO: No. I don't.

READ: No.

FANNY-DULLOO: We deal with only participants and – and billing of – I will guess that work for – with the CFO. Not about - - -

READ: And, who was the CFO?

FANNY-DULLOO: Rejaul.

READ: Who?

FANNY-DULLOO: Rejaul.

READ: Rachel?

FANNY-DULLOO: Rejaul, R-E-J-A-U-L.

READ: R-E-J-A-U-L. And, what's their surname?

FANNY-DULLOO: Alam, A-L-A-M.

READ: And, what was their position?

FANNY-DULLOO: CFO.

READ: Is that Chief Financial Officer?

FANNY-DULLOO: Yes.

READ: Okay. So, you believe that they would have been involved in that sort of thing?

FANNY-DULLOO: Yep.

READ: So, do you know who owns that property now?

FANNY-DULLOO: Like, the - - -

READ: The Jull Street.

FANNY-DULLOO: Jull Street?

READ: Yeah.

FANNY-DULLOO: Well, it has been – it went – it went back to the landlord. So, I don't know who's the landlord.